In the Matter Of:

ROSARIO vs ABDELHALIM

CGC-21-594102

TRANSCRIPT OF PROCEEDINGS

January 27, 2025

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IN THE SUPERIOR COURT OF THE STATE OF CALIFORNIA

IN AND FOR THE COUNTY OF SAN FRANCISCO

HONORABLE GARRETT L. WONG, PRESIDING

FRANCISCUS DYLAN ROSARIO,
Plaintiff,
vs.
SUBHI ABDELHALIM, et al.,
Defendants.

CASE NO. CGC-21-594102

REPORTER'S TRANSCRIPT OF PROCEEDINGS

MONDAY, JANUARY 27, 2025

JURY TRIAL

VOLUME 1
(Pages 1- 61)

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MONDAY, JANUARY 27, 2025

AFTERNOON SESSION

FRANCISCUS DYLAN ROSARIO vs. SUBHI ABDELHALIM, et al.

The above-entitled matter came on regularly this date in the Superior Court of California, County of San Francisco, before Honorable Garrett L. Wong, Judge presiding.

Plaintiff, FRANCISCUS DYLAN ROSARIO, was appearing In Pro Per.

Defendants, SUBHI ABDELHALIM, et al., were represented by PRIYA D. NAVARATNASINGHAM and ALBERTO REYNA, Attorneys at Law.

ALESIA L. COLLINS, Certified Shorthand Reporter, License No. 7751, was present and acting.

Kareem Sobati and Evan Keegan, were also present as aides to Plaintiff, Mr. Rosario.

The following proceedings were had and taken, to wit:

P R O C E E D I N G S

THE COURT: Your appearances, please.

MR. ROSARIO: Franciscus Rosario.

THE COURT: Okay.

MR. ROSARIO: Plaintiff.

THE COURT: And, your name, sir?

MR. SOBATI: My name is Kareem Sobati, Your Honor. I am Mr. Rosario's legal aide and assistant. He has disabilities, so I'm

helping him today.

THE COURT: Do you have a card or something that you can --

MR. SOBATI: I don't actually have a physical card, but I'm happy to put all my personal information, including my license or otherwise, whatever you need.

THE COURT: Let's at least have it written.

MR. SOBATI: Sure. Absolutely. My pleasure. Thank you.

THE COURT: Okay. Let's just take a seat, and we'll have Kimberly here fill it out.

And, you're -- you're Defense counsel. Your names, please?

MS. NAVARATNASINGHAM: Good afternoon, Your Honor. Priya Navaratnasingham, for defendant.

MR. REYNA: Good afternoon, Your Honor. Alberto Reyna, on behalf of the defendant.

THE COURT: Okay. Thank you.

Okay. Are you ready to proceed to trial? Mr. Rosario?

MR. ROSARIO: Yeah. I was hoping to have a case management hearing.

THE COURT: You mean a case management settlement hearing?

MR. ROSARIO: I don't know what they call it.

THE COURT: You mean a case management, you mean how the case is going to be tried?

MR. ROSARIO: In camera, I think is what it's called.

THE COURT: I don't do those unless you've got a reason.

MR. ROSARIO: Well, yeah. I have some substantive evidence

that has, you know, very high probative value to the case, which my -- my basis and everything that I'm talking about. It's a 911 recording. And, we haven't been able to ascertain whether the Defense was able to or was given access to that or not, and we could be -- it can be requested by -- from the 911 services, or the Court could, of course, accept my copy that I have.

THE COURT: Okay. Have you discussed this matter with Ms. Navaratnasingham, is that how you pronounce it?

MS. NAVARATNASINGHAM: Yes, Your Honor. Thank you.

The plaintiff has stated in an email -- in emails that there is a 911 recording. There was something produced to the settlement conference officer. We're objecting to that. It's one of the subjects of in motions in limine as we -- it lacks foundation, and it wasn't produced during discovery.

MR. ROSARIO: We --

THE COURT: Yes, sir.

MR. ROSARIO: I provided the -- the numbers for -- the CAD numbers to them during discovery in a document. I only discovered the existence of the actual audio track when -- in December, and I am actually in the process of applying for the -- the -- what do you call it? There's a --

MR. SOBATI: ADA accommodation.

MR. ROSARIO: Yeah, the accommodation for people of -- it's a 2 -- was it 24D?

MR. SOBATI: MC 410? I'm sorry.

MR. ROSARIO: No. There is another one that the people have damage, brain damage, and -- what's it called? There is a particular accommodation they can classify the case for somebody who needs accommodation.

THE COURT: Okay. Well, there's two things going on. I think one is an issue with respect to some evidence that's going to come in. And, I think defense counsel has indicated to me that they have some papers which are asking the Court to preclude that particular evidence from being heard before a jury.

I assume this is a jury trial, correct?

MS. NAVARATNASINGHAM: Correct.

THE COURT: Okay. So, there are 19 different motions in limine that have been filed by the Defense in this case. And before I get to those, I want to know if, Mr. Rosario, you have any motions in limine that you want to submit to the Court.

MR. ROSARIO: Yes. I provided those via the File & Serve, and those were online, and I unfortunately couldn't afford to print a whole bunch of them, but those were filed and provided to the Court. They can be brought up for you.

I objected to the -- to the -- to the exclusion of that 911 record because of, I guess it's called completeness. They're going to depend upon a record from the police, but they're trying to omit the 911 record that caused the police to show up.

THE COURT: Okay. The only thing I want to know is whether you -- at this point whether you have submitted any papers to the

Court. And, typically what we require are courtesy copies to the Court. And, it sounds like you're unable to do so, one, because you don't have the money to do it, and, two, you're unable to find another way to submit those to the Court.

Let me find out first whether there is anything that has been filed by you, and perhaps we can print them out. But, I will ask defense counsel whether you have received any motions in limine.

MS. NAVARATNASINGHAM: Your Honor, we received an ex-parte application, which in the proposed order references it as motion in limine number one. That's the only thing that we received.

We received several ex-partes over the last couple of weeks, and that one was phrased ex-parte, but in the body at the bottom it said motion in limine number one. That's all we received.

THE COURT: Okay. Do you have that in front of you?

MS. NAVARATNASINGHAM: I do not know if I have a copy of his, Your Honor.

THE COURT: All right. Well, let's -- let's -- let's see if we can accommodate Mr. Rosario. But, I will ask the clerk whether we can -- whether there is such an item that's been in -- placed in the docket and -- and then we'll take it from there, because I need to take a look at that.

I have reviewed the other 19 motions in limine from the Defense. Have you had an opportunity to look at those?

MR. ROSARIO: Yes. And, that was the substance of those papers that I filed via File & Serve. I did check the box for

the -- for the courtesy copies, but I wasn't sure when they could deliver that.

THE COURT: They may have been delivered to Department 206, but let's see what we have in the docket. Ms. Septien?

THE CLERK: When was the -- when were they submitted through File & Serve, what date?

MR. ROSARIO: There's been several different sets on there, but there was the most recent one as of today, this morning.

THE CLERK: We do have an opposition to defendant's motion in limine.

MR. ROSARIO: Yeah, that's right.

THE CLERK: Filed today. Would you like us to print them out, Your Honor?

THE COURT: Depends on how long they are. But, let's see if we can have them print it out, and then the Court will make a decision about how we're going to handle those. It may be that some of the motions in limine --

THE CLERK: It's 103 pages.

THE COURT: It's 103 pages?

THE CLERK: Yes. It's got exhibits attached to it.

THE COURT: Let's take -- let's take a look at the motion itself or the Memorandum of Points and Authorities, if there is such a section. And then, perhaps it may be that the motions in limine that the defendant has submitted to us might answer some of the issues or questions that we have here.

MR. ROSARIO: Your Honor, I have -- I filed an opposition to defendant's motion in limine number 17. Its transaction number was 75515259. The Defense was served that as a one of the listed items. I can see the transaction here.

THE COURT: Well, that's fine. It means absolutely nothing to me. I need to have a copy of the papers so that I can review them. And, if you filed it as late as today, the Court is not going to have an opportunity to take a look at these items. I may have to adjourn so that we can have a set reviewed, not only by myself, but by defense counsel.

So there's a lot of things that you are supposed to do, which I laid out in the civil trial guidance, that I want you to be aware of. And, if you are plaintiff representing yourself in this matter, you are held to the same standard as the Defense is, and I expect you to be fully ready and prepared.

MR. ROSARIO: Yes, sir.

THE COURT: Fully ready to be -- not only be prepared, but to proceed with the case.

MR. ROSARIO: Yes.

THE COURT: But, I -- I don't know at this point whether we can even print these items out.

MR. ROSARIO: There's also a prayer to the Court that I had added in there, which effectively -- oh, okay. There it is. Relief under CCP 473. The 473 rule is the one that I was trying to mention earlier that --

THE CLERK: That's the one filed on January 23rd?

MR. ROSARIO: Yes. Excusable neglect, mistaken inadvertence or surprise.

MR. SOBATI: Excuse me, Miss, it's January 27th.

THE CLERK: 27th.

MR. ROSARIO: I tried to file it in different ways. I didn't understand. I tried to go through the ex-parte system, and they told me to bring it here to you. So, I re-filed and made sure everything was correctly packaged, so that way I could address the Court.

They were aware of it. They have had a copy of that 473 order that I was trying to pass through for a week now. There is no surprise to them.

THE COURT: Let me ask them. Have you seen this document?

MS. NAVARATNASINGHAM: There's been a number of motions, Your Honor. The one -- anything that was filed today we have not seen, so we would like an opportunity to review that just for the record.

There was a motion seeking relief under 473(b). I want to say that that was served last week via ex-parte application, but the Court didn't hear it.

THE COURT: Was that filed in Department 206?

MR. REYNA: 302, Your Honor.

MS. NAVARATNASINGHAM: 302.

MR. ROSARIO: On the 21st, Your Honor.

THE COURT: That's a law and motion courtroom. Was there something that you didn't file in law and motion? It's 302, correct?

MS. NAVARATNASINGHAM: He filed his ex-parte in 302, yes.

THE COURT: Okay.

MR. ROSARIO: I was attempting to get Judge Quinn to help me figure out to how to file the CCP 473, and he told me it would be more appropriate to take that up with you when I saw you.

It was -- Mr. Reyna was actually on the call, but then he left earlier, and I ended up having a conversation with Judge Quinn about that.

THE COURT: Okay. So, I need to have a look at whatever has been filed, and you need to sit down and write out on a piece of paper what document I'm supposed to be looking at. You're supposed to tell me. I don't tell you how to run your case. And, once you have done that, I'll -- well, that will be shared, of course, with defense counsel so we have an opportunity to understand and appreciate what you're trying to do.

I -- I really don't know at this point, judging from what you have said to me, why you would file a request to relieve a party from a judgment, dismissal, order, or other proceeding. I -- I don't -- that's a partial quote from Code of Civil Procedure Section 473(b). What relief are you seeking?

THE WITNESS: Excusable neglect, because of the brain damage I've been suffering, Your Honor. It's been very difficult for me

to navigate the procedures of the Court, and I have been pleading to the Court, the mercy of the Court, to be able to offer me that opportunity to not have my case tried based on procedural, you know, specificity, but based upon its merit.

THE COURT: Well, okay. So, you're -- it sounds like what you're asking, and I will have defense counsel address it, is that you're going to continue the case, am I correct?

MR. ROSARIO: If that were appropriate for me to get the 911 records and make sure that these documents are correctly put into your hands in the appropriate way, it would be appropriate if you feel so.

THE COURT: Let me see if I've got this correct. The essence of what you're asking for is for the Court to set aside the trial day because you have not had an opportunity to obtain 911 evidence in this case, am I correct?

MR. ROSARIO: I -- I have it. I just don't have a certified copy in the defense's hand yet that could be used here in court that would be admissible to your satisfaction, I don't know. But, I didn't want to presume that, so that's why I was here to ask for the -- for the relief, so I can make sure that I have that, because a good portion of not only their case, but my case, is based upon the police report. And, we don't have the 911 that was the causation of the police report, so in order for us to have completeness it makes sense for us to have that 911 call.

THE COURT: Okay. Let me hear from defense counsel.

MS. NAVARATNASINGHAM: Yes. Thank you, Your Honor. We oppose any request for continuance of this trial date. The case has been pending for some time, discovery has been closed. Up until about a few months ago, Mr. Rosario was represented by counsel, the Dolan Law Firm, who no longer represents him.

We -- we oppose any continuance. The discovery has been closed, expert disclosure has closed, expert discovery has closed, and we're ready to proceed, Your Honor.

THE COURT: What about this matter of a 911 call?

MS. NAVARATNASINGHAM: Yeah, Your Honor. We addressed that in one of our motions in limine. That was never produced in discovery, this 911 call, that all of a sudden is turning up as of December 18th, the date of our MSC, where he submits that to our MSC officer. It lacks foundation. It's not authenticated. We don't know where it came from, where he got it from. Discovery is closed, and that evidence is inadmissible.

THE COURT: Well, what's the substance of the 911 call? Was it someone who observed what happened?

MR. ROSARIO: Your Honor, it was the plaintiff -- the defendant himself confessing to 911 that he struck me in the road, in the crosswalk. It's in there. He said it clearly as day, and it's in the record. As well as a passerby who saw the hit-and-run. It's a very, very substantial record. And, it's still available, because the city is currently still holding a lien essentially because they called the 911 services to come and

assist me, and I have to pay for that. So, the city is still holding that record, and they're just expecting that my prior counsel had a copy of it. They sent it to me on digital format over the internet, and they told me to get another copy.

Because I don't know how to navigate the Court system very well after the brain damage, it's been very difficult, that I came here to ask the Court to make sure that if you could place an order to record -- to request that directly from the emergency services. I can do it, but I think it would be much faster if the Court made the order.

THE COURT: I don't think I have that authority.

MR. ROSARIO: I can do it again, but if we would agree that a 911 record is official because it is a public record that submit -- it's damaging to the Defense, and that's why they want to block it.

THE COURT: Have you heard the evidence?

MS. NAVARATNASINGHAM: No, Your Honor. No. So, the 911 called that he produced at the MSC to the MSC officer was a lady, and it has no link whatsoever to this accident. There is no way we can tell what that is related to.

If he says that he has a 911 call from the defendant, we have never heard that.

MR. ROSARIO: That's absurdity. The defendant, they actually provided me a piece of paper showing that the defendant himself -- claiming the defendant himself called 911. During the 911 call

there was an excited utterance from the defendant admitting in confession to the operator that he had struck me and ran me over in the crosswalk.

This is the substance -- this is a fundamental substance of the importance of this 911 record that the Defense is continuously trying to deny and delay, or to try and exclude it from the record.

THE COURT: Well, is that in the form of what we describe as a computer aid dispatch, it's a printout of what was said?

MR. ROSARIO: Yes, sir. There is a CAD number that's been provided. It was provided to them in September in an interrogatory document that I had forwarded to them. They did not, unfortunately, pay attention to it, or were just ignoring me, and now once we get to the trial -- one would have presumed that had the insurer done a proper investigation they would have normally listened to all of the 911 records.

The Defense is trying to cherry-pick the police record without pulling the 911 record that caused the police for them to show up in the first place. So, it's convenient for them to try to exclude that, because the information in there is damming to their case.

THE COURT: Counsel?

MS. NAVARATNASINGHAM: Well, Your Honor, this is not our lawsuit. We didn't bring this lawsuit. The burden is not on us to produce evidence. And, if he has cited a police report in

special interrogatories or form interrogatories, we went through the proper channels to subpoena the police report, and that's what we have, and it has a custodian of records declaration.

He's the plaintiff. It's his burden if it's evidence that he wants to present to this trial. After so many years, he has that burden to produce that evidence in an admissible format.

MR. ROSARIO: Okay. I have included that in the opposition to the defense's motion in limine number 17. It's attached to that, as well as the CD scans, and as well as the official numbers. It's fully in that printout for you to look at. I believe it's on --

MR. SOBATI: It's -- that is the link, the 103 pages.

MR. ROSARIO: It's 103, but I believe it's Exhibit A, at page 26, I believe, here. Hold on a second. One second, Your Honor.

Yes, it's at page -- page 40. Starting at 39 of that document, 40 through 46 is the CAD records, as well as the dialogue directly from the driver stating, and I quote, the nine -- the CAD number says, "RP in van and hit a male pedestrian."

And, then there was a subsequent call almost 30 seconds later, at the exact same time that the first call was going on, saying that a woman had driven by at an earlier point, and she had seen me on the sidewalk, and there was no vehicle nor any person there.

We have two 911 records that the Defense has been trying to suppress. And, I -- I can't -- I wouldn't be able to try the case without the official 911 records from which the police report that they're depending on was instigated. It doesn't provide completeness, Your Honor.

THE COURT: Defense counsel?

MS. NAVARATNASINGHAM: Your Honor, the recordings, again, completely lacks foundation; not authenticated. We have no idea what they're -- Mr. Rosario is referring to. We have not heard any recordings from our client.

This third-party witness that he says saw the accident, she -- there is no identifying information on that whatsoever, and we don't know where the recording came from. And, that's the subject of our motion in limine. It's too late. We're on the first day of trial here, and we're -- we oppose any continuance and would like to proceed.

THE COURT: Okay. So, there's a couple of things going on here. First of all, Mr. Rosario, the items that you seek to retrieve are not available, apparently. Although you might have submitted some kind of document which has been referred to as computed aided dispatch, those are typically, from what I recall, typed out shorthand of 911 calls; okay? So, that's one thing.

That would be in the course -- it would be a form of hearsay. But, I would have to see the -- see whether or not that material would be subject to a hearsay exception which would allow you to

1 use it at trial, because it's a -- it's an out-of-court statement
2 offered to prove the truth of some matter.
3 MR. ROSARIO: It's falls under the excited utterance.
4 THE COURT: It may, but I have to hear it first.
5 MR. ROSARIO: Yes.
6 THE COURT: I don't know if it does or does not. I have to
7 listen to the context of whether that falls into some exception.
8 Number two, I think you want to offer this in your case in
9 chief, but it may be that I will only permit it if you were to
10 directly ask -- and, you can call their client to the witness
11 stand and treat him or her as an adverse witness and ask him or
12 her whether he or she made those statements. I don't recall
13 whether Subhi Abdelhalim is a man or woman.
14 MS. NAVARATNASINGHAM: He's male.
15 THE COURT: It's a male. Okay. So, there are a lot of
16 avenues for you to have this admitted, but I -- at this point, I
17 am -- my hands are tied.
18 What I can do is, we can go through the motions in limine.
19 It doesn't sound like you prepared a response to every single one
20 of them, just that you selected a few where you have some problems
21 with. But, I need -- and, maybe I have to look at the document --
22 the materials that have been submitted to the -- filed with the
23 Court to decide the admissibility of those items. And, I may have
24 to do that after we have met.
25 But, right now what I want to do is go through the motions in

limine that we do have, it's 1 through 19. Ordinarily, I would only hear five, because I think many of them -- many motions in limine are redundant, but I think we have the time to go through each and every one of them, and then I can reserve or take under submission those items which you identified as tethered to this issue regarding the 911 document.

MR. ROSARIO: Your Honor?

THE COURT: I can't comment on its admissibility at this point because I don't have anything in front of me.

MR. ROSARIO: Correct. I understand.

THE COURT: And, to the extent that you are seeking relief from default, you're essentially saying -- from what I gather, you're seeking relief from the fact that discovery is late in this matter. Well, I need to take a look at what the discovery is and then hear from defense counsel, who are already saying you're too late.

And then the question, I mean, how significant is this document, and whether or not you can actually use it, based on the fact that you produced this on the eve of trial. Many times court -- the Court will not permit something, in spite of a party's inability to proceed.

Now, someone might argue they made a good faith effort, but as far as I am concerned there are other ways to advise defense counsel, and not at the very last minute. So, those are things that I am going to take a look at.

MR. ROSARIO: Your Honor, when new evidence is suddenly discovered, like when my former counsel sent me all these files and I opened it up and I discovered it in Jan -- in December, I immediately notified the Defense about this, and I referred to it.

They know that the 911 calls are public record and the incident numbers are directly linked. Either they had decided to overlook it because it was damaging to them, or they -- they failed to pull that out, but the information has been provided.

THE COURT: Understood. But, it's not their obligation to bring this information to the attention of a jury; it's your obligation to do so. You're the plaintiff in this case. You are carrying the case, and you have the burden of proving by a preponderance of the evidence your case, and they don't have any responsibility to help you prove your case.

So, I'm going to take a look at this and -- but what I want to do is go through the motions in limine, and you can tell me if you have provided some sort of response to one of these, or you can tell me in open court here why you oppose the motion. Some of them you may not oppose at all.

MR. ROSARIO: No, I have opposition to all of them. I didn't want to flood your inbox, due to the fact that the Defense had sent out 19 of them, and I was trying to be considerate to Your Honor to not flood that and ask for permission to drop 19 oppositions into the box.

THE COURT: I appreciate that, but your obligation is to have

on hand on the day of trial all oppositions to their motions in limine. And, if you were counsel I would just proceed, because it's your obligation, again, to submit them to the Court.

MR. ROSARIO: We could have them printed if we had a short recess, Your Honor, and it would be made available to you.

THE COURT: All right. Let's come back at 2:30. I expect those oppositions ready for me, because I am -- I'm not going to have -- if it was just a couple of dozen pages that you were going to submit to the Court, I might be able to do that. But, the other question is whether defendant has a set of those documents, and it looks like they're nodding that they do not, so you need to make two sets.

MR. ROSARIO: Yes, sir.

THE COURT: One for me, and one for -- for them, if you have already filed them in -- with the clerk's office.

MR. ROSARIO: Yes, Your Honor, sir. Okay.

THE COURT: Come back at -- is 2:30 enough time to get together two sets of documents?

MR. ROSARIO: Maybe 45 minutes. I have to go to a local print shop.

THE COURT: Let's just come back at 3:00 o'clock, then.

(Recess taken.)

THE COURT: We're back on the record in the matter of Rosario vs. Abdelhalim. The record should reflect that we have defense counsel present and we have Mr. Rosario present, along with two

others. Your names, please?

MR. KEEGAN: Evan Keegan.

MR. SOBATI: And, Kareem Sobati, Your Honor.

THE COURT: And, do you plan to speak during --

MR. ROSARIO: They're providing facility help. I have issues --

THE COURT: Okay.

MR. ROSARIO: I have physical --

MS. NAVARATNASINGHAM: Your Honor, may I?

THE COURT: Yes.

MS. NAVARATNASINGHAM: May I speak on that issue, Your Honor?

THE COURT: Yes.

MS. NAVARATNASINGHAM: I don't believe either Mr. Keegan or, I'm sorry, Mr. Sobati, are legal counsel or qualified in any way to represent Mr. Rosario here today, and so I -- I don't believe that they can be sitting at this table to represent Mr. Rosario.

Additionally, Mr. Keegan and Ms. Rosario, who is in the gallery, have been identified as witnesses on his witness list, and so we would ask that they be excluded while we have substantive conversations.

MR. ROSARIO: Your Honor, I'm incapable of typing and writing very much anymore.

Evan, please explain it to him.

MR. KEEGAN: Yes, Your Honor. I'm an aide to Mr. Rosario. I'll just be typing on his behalf.

THE COURT: What are you, a witness in this case?

MR. KEEGAN: I am named as a witness, correct.

MR. ROSARIO: Not necessarily.

MR. KEEGAN: Not if you choose not to call me.

MR. ROSARIO: Not as a significant material witness, Your Honor. That's correct. He can provide lay -- lay testimony as to my condition, my physical and mental condition, being that he has been assisting me as -- and they have known about him -- you have met them through -- at the MSCs, Your Honor.

MR. KEEGAN: Correct.

MR. ROSARIO: They met Mr. Keegan at the MSCs, and he's been working with me and providing paralegal work for me for months now, so he is not a stranger to them. They know that I have a physical capability -- my hand is not -- I barely use it, so...

THE COURT: Do we have another witness in the back?

MR. ROSARIO: That is my wife, Your Honor. She comes in and helps me with straightening my spine.

THE COURT: All right.

MR. ROSARIO: I have -- yes, I do have three people who are here to support me, because normally I would be at home with just Mr. Keegan and Mrs. Rosario. Ms. Sobati came up to assist with the technical implementations, because I have difficulty with my memory now.

THE COURT: Okay. They're not expert witnesses, correct?

MR. ROSARIO: No, Your Honor.

1 MS. NAVARATNASINGHAM: Your Honor, they were listed on his
2 witness list, and he just now just stated that he intends to call
3 them to talk about his limitations. If they are going to be
4 witnesses and called as witnesses at this trial, we would ask that
5 they be excluded from the courtroom.
6 THE COURT: I think you have a motion in limine with respect
7 to individuals speaking to his medical condition, and if he is
8 going to -- if they're going to testify as to the medical
9 condition, they're not -- I'll tell you right now that I would be
10 in agreement with your motion in limine.
11 So, to the extent that they're providing support for Mr.
12 Rosario, I am -- I don't have any difficulty with that, since
13 they're not going to be able to testify about his medical
14 limitation in any event.
15 MS. NAVARATNASINGHAM: Okay. Thank you, Your Honor.
16 Understood.
17 THE COURT: I'm aware of your concerns, but people can't talk
18 about -- they, themselves, as plaintiff or, for that matter, the
19 individuals in the courtroom, they're not medical doctors and
20 haven't examined him. The Court is not going to permit any
21 testimony with regard Mr. Rosario's physical condition or
22 limitations.
23 Okay. So, I think we can proceed with the motions in limine
24 that you have filed. There is one motion in limine I think we --
25 let's get this one out of the way first, which has to do with the

record of the 911 calls and so forth that he has submitted as an opposition to motion in limine number 17. I think he's characterized this as ostensibly a motion in limine. Am I correct, Mr. Rosario?

MR. ROSARIO: To -- to include it, yes, sir.

THE COURT: Yes. So you want to have it considered as one of your motions in limine, correct?

MR. ROSARIO: Right. I provided an opposition, or countered.

THE COURT: Are there other motions in limine that you have?

MR. ROSARIO: Yes, sir. They're all provided in that book of paper for you, sir. There's quite a number of them. I believe -- I'm not sure exactly the order, but I have prepared a response to all 19.

THE COURT: No, that's not my question. My question is, what affirmative motions in limine have you submitted? I think we can address them as we go along. Why don't you tell me the first one you want the Court to consider.

MR. ROSARIO: I would like the Court to very first consider the addition of the 911 to be -- to be included in the evidence, Your Honor.

THE COURT: Okay.

MR. ROSARIO: That would be the number 17 is their objections. And, I do have a global opposition to all of them which I believe would address, rather than having to go through a lot of these over and over.

THE COURT: Well, no. I think -- I want to make it clear. You said that you have a motion -- you have a number of motions in limine.

MR. ROSARIO: Yes.

THE COURT: We will do your opposition to defense motion in limine number 17 first. Let's just get that out of the way first.

MR. ROSARIO: Okay.

THE COURT: Then we will deal with any other motions in limine that you have submitted, and then we will take up the Defense motions in limine. Understood? Let's get these in order.

All right, sir.

MR. ROSARIO: Number 17.

THE COURT: Yes. Let's just let him make his motion to have this evidence, which apparently consists of the items identified in his opposition to defense motion in limine number 17 as the various Exhibits A through L. We're going to go through them one by one.

MS. NAVARATNASINGHAM: That was in this large stack, Your Honor, that --

THE COURT: I believe it is entitled --

MR. ROSARIO: OPP 017. I have that particular format. Yes, it would be titled, Your Honor, Defendant --

THE COURT: Do you have that?

MS. NAVARATNASINGHAM: We're looking -- we're looking for it.

MR. ROSARIO: Plaintiff's Opposition to Defendant's Motion in

Limine number 17.

MR. SOBATI: Your Honor, in theory, chronologically as we just printed that, that should be somewhere down two-thirds of the way down that pile. I do apologize for that.

MR. ROSARIO: I believe -- I belive eliminating this would not only violate my 14th Amendment to the U.S. Constitution --

THE COURT: Wait a minute. Wait a minute. Before you say anything you have to give the other side the opportunity to review your opposition.

MR. ROSARIO: Okay.

THE COURT: Sir, do you have a copy for defense counsel, or can you identify it?

MS. NAVARATNASINGHAM: We located it, Your Honor.

MR. ROSARIO: In the meantime --

THE COURT: No, no, no. Let me keep you straight and narrow. First thing we're going to do is the opposition that you have to defendant's motion in limine number 17.

MR. ROSARIO: Okay.

THE COURT: You have various exhibits it looks like you want to have admitted in this case.

MR. ROSARIO: Yes, sir.

THE COURT: We are going to go through each and every one of them so we have a clear path with respect to each of these exhibits.

MR. ROSARIO: Okay.

THE COURT: So, Exhibit A is a receipt to the Dolan Law Firm that's dated 5-12-2021, for $70. And, attached to that is a document which is seven pages in total. So, there are six pages in addition to the receipt. The receipt is number 987352. And, I'll ask Defense to review these documents.

All right. The first question I have to Mr. Rosario is, some of these exhibits -- and, I will identify the fifth page of Exhibit A, the sixth page of Exhibit A -- have items that have been blacked out or redacted. Can you tell me who or what was involved with that redaction, or was that something that you just received and copied off the disc -- the discs that you have presented?

MR. ROSARIO: Those were redacted by the emergency services. I believe that there was personally identifying information of the individual or the phone numbers. You can see on F145631 they redacted the anonymous phone number, as well as they redacted the defendant's phone number at 145608. They approximately came in at about 22 seconds apart from each other.

THE COURT: All right. Is there any objection to having these admitted?

MS. NAVARATNASINGHAM: Yes, Your Honor. We -- first of all, this is the first -- I mean, we're just -- these were not produced in discovery -- during the regular course of discovery. It appears from this receipt that they were retained in 2021, so I'm not sure why we're seeing them here now.

We -- one of our motions in limine is to exclude documents that were not produced in discovery. Moreover, they lack foundation, they're not authenticated, and we really don't know who redacted these things and what -- if that representation is true. So...

THE COURT: Okay. Do you have the compact disc, or disc that --

MR. ROSARIO: Dolan Law Firm maintains a hard copy of that, and it can be made available. It's not something that I carry around, because it was entrusted to them, and I was to pick it up at my nearest ability. But, that can be -- such a disc can be retrieved, yes.

THE COURT: Okay.

MR. ROSARIO: The digital versions are online and published since they are public record. And, I have provided in the document the URLs for Your Honor to be able to review those. They can be corroborated along with the voice prints and the audio watermarks that identify them as authentic SF Emergency Services calls.

THE COURT: Okay. So, tell me why this hasn't been disclosed to the Defense since the date -- it appears that the date of the exhibit was turned over to the Dolan Law Firm was on May 12, 2021. So, it's been in the possession of the Dolan Law Firm since May 12, 2021. Can you tell me why that hasn't been disclosed to defendants?

MR. ROSARIO: In fact, it was, Your Honor.

THE COURT: Okay.

MR. ROSARIO: On -- on -- it was sent to Mr. Alberto Reyna on September 9th of 2024. He was in reception of the file that contained the -- my supplemental responses. And, on the FROG PDF file, on line 28 -- excuse me -- page 28, lines 23 and 25, the SFPD CAD log is referred to. Being that I wasn't in the position to be able to pay for getting copies from the 911 system, we referred them because they are public records. The defense has had ample time to be able to do that.

Again, also on page 9 of the supplemental response to SROG on page 9, lines 9 through 11, we actually provided the CAD numbers for the defense to be able to retrieve that. These records are public record and are freely available for them to be able to access. The Defense has failed to get their own copy, even though we stated clearly that these would be used.

THE COURT: Sir, I'm not quite sure where you're referring to a supplemental briefing.

MR. ROSARIO: The Defense had provided a supplemental ROGS referred to on line -- let's see here.

THE COURT: Is that an exhibit?

MR. ROSARIO: It's an interrogatory that was requested of me by the Defense, Your Honor, and I responded to that.

THE COURT: Do you have a copy of that interrogatory? Is it part of your exhibits?

MR. ROSARIO: That was provided -- actually, the interrogatory was provided to us by the Defense, and we provided it back to them, as stated in the -- in our --

THE COURT: That doesn't help me, because I'm -- you're saying that you told the Defense in one of your interrogatory responses -- I assume that's what it was -- that you advised them of the existence of these materials which related to the compact disc, which are photographed in Exhibit A to your opposition to the motion in limine number 17.

And, I am asking you what proof do you have that this information, or this data, or this discovery was submitted to the other side, because they're complaining that they didn't get it until today.

MR. ROSARIO: That's -- well, if they deny that they received the email from me --

THE COURT: I'm asking you --

MR. ROSARIO: I haven't --

THE COURT: Where is the interrogatory, or the email, or whatever proof that you submitted this material to the defendants in this case? They're saying they don't have it. And, if I am not mistaken, they didn't receive it until today. Am I correct?

MS. NAVARATNASINGHAM: Your Honor, maybe if I could clarify, Your Honor? With reference to the form interrogatories and special interrogatories, I believe what Mr. Rosario is referring to is that they identified the traffic collision report and the

CAD number. Is that identified? Okay.

These documents, these CDs, we never received these CDs, certainly. On Saturday -- during our break we went back and looked at our email, and on Saturday we received this -- this copy, exactly what you see here, but we never received -- that's on Saturday, Your Honor. I didn't see it until we were in the break room right now.

We never received these CDs. We never -- this was never produced in discovery, and he has had it for four years. We don't have the original audio or any of the original documents.

MR. ROSARIO: Your Honor, we provided a URL for them. We can't -- we can only transmit through email. I don't know how to actually print an audio file. It's not possible. So, I don't know how much I can say that, because the defense decides to systematically ignore it and say they continue to not have it. I can provide it seven, eight times in a row. I can provide all the emails of that. The defense can continue to deny that they have ever seen it, so how do we resolve it?

THE COURT: Look, you're supposed to obtain a copy of the CD in each -- in each -- there are apparently two discs that could have been copied and reproduced and submitted to the other side. It's been three and a half years, nearly four, that this has been outstanding, and they received it last week.

I am not in the habit of -- of preventing you from submitting the evidence, but they also have an equal right to have evidence

submitted to them in a timely fashion, and discovery has closed in this case.

MR. ROSARIO: I -- if you keep on telling the Defense where to get it -- I don't have the physical capacity to give it to them. I have to pay for the copy and give it to them, and they can continue to say you fabricated the disc.

The only way that the defense can validate it's an original copy is, I tell them they can get it from the services themselves and validate it.

THE COURT: That's not correct. If you, as part of a response, discovery response, produce a document with an affidavit that this is a true and correct copy of the items that have been photographed in subject A, then your job is complete. But, I don't have those here.

MR. ROSARIO: Why are they so worried about the contents of that -- of this?

THE COURT: It's a matter of fairness. Today is trial day, Mr. Rosario, and they're supposed to have all of the evidence that you are going to produce in this case or use, and the Court is not inclined to allow you to use this material unless and until you show me that they have had fair notice of these items.

It's -- we do not litigate by surprise, nor do we try to help -- I understand you're a pro per. I am, frankly, showing a great deal of patience here, largely because I understand that you are at a critical disadvantage. However, that disadvantage

dissipates when you don't comply with the Code of Civil Procedure.

There are all kinds of rules that say that you must disclose items, and you haven't done that as a matter of course. If you don't disclose those items, what they are saying in their motion in limine is you can't use them.

MR. ROSARIO: I don't --

THE COURT: You can't use them, specifically.

MR. ROSARIO: I don't --

THE COURT: Now, I also know that there are transcripts in there of the compact disc, and those would never be admitted into evidence. They would use -- typically, those so-called transcripts would solely be used for the jury to use as a guide when they're hearing the audio transmission from the compact discs. In turn, I tell them those transcripts are not admitted as evidence. Only what you see and hear from the disc, the audio/visual disc, controls as evidence.

MR. ROSARIO: Okay.

THE COURT: Now I may not permit you, unless you can show me that you have disclosed this information to the other side by way of an interrogatory, or email, or something else, to use this. That does not prevent you from examining a witness and asking that witness whether he said something or not.

Of course, anything and everything that you ask a witness will be governed by the rules of evidence, and if there is a hearsay objection the Court will entertain it and rule

accordingly. I am the gatekeeper to make sure that evidence is reliable and that it's offered before the jury in a trustworthy fashion.

MR. ROSARIO: Okay. Your Honor, I only became aware of this in December. It's now January. I got it immediately in their hands and told them that it was there. I've sent emails -- because I found it buried deep -- when Dolan had given me the materials, I immediately contacted them. The trail of records going back to, I believe December 9th, when I told them of the existence of it, I did not, being a pro per litigant, know how to pull these records. I know that Dolan did it. I saw that it was buried in the file, and I pulled it up. I immediately said, here's what I found. I sent them an email saying there was a 911 record for it, and it was referenced in the files.

I -- I -- it's not like I ever mentioned the 911 records ever before this date -- before the date in December. I didn't even know they exist, Your Honor. We can validate that. There was never even a single mention of it.

This information -- this evidence is brand new to me, even -- once I found out what the implications were, Your Honor, I moved immediately, as per the law asked me to, to notify the Defense. I don't know how to make the Defense force them to accept that it's valid. I don't know how to do that, Your Honor.

All I know is I can do my best in good faith to tell them that these records exist. I can tell them that the files and the

information was there. I can upload things. But, I didn't -- I wasn't aware that I had to buy a disc for them and give it to them. They could still say that I faked the disc, so I don't know what to say.

THE COURT: No, that's not how it works.

MR. ROSARIO: I'm sorry, Your Honor. I'm not an attorney. I apologize.

THE COURT: I still must hold you accordingly, and you have to abide by -- abide by the rules and the Code of Civil Procedure.

MR. ROSARIO: Can we -- you said that there's many ways for us to enter this information and bring it to the --

THE COURT: You can try any way you want, but if there is an objection, I will rule on -- I will rule on the objection. However, at this point, until you can show me that this evidence was disclosed in an interrogatory or by way of email that the defendants had knowledge of this information, and you do so accordingly, then you've got to give the defendants an opportunity to see that date and to tell me whether or not that's accurate or not.

MR. ROSARIO: Okay. Thank you, Your Honor. We can provide that.

THE COURT: So, for the time being the evidence is excluded, unless and until you can lay a foundation for its admissibility. That's -- that applies to -- in particular applies to the compact disc that you have presented to me this afternoon by way of

Exhibit A.

MR. ROSARIO: We will have those retrieved for you, Your Honor. I will get the emails and the interrogatories printed, and I will --

THE COURT: Well, I think --

MR. ROSARIO: Thank you very much for giving us time to do that.

THE COURT: Well, the sooner the better. I don't want to interrupt the trial with a hearing on the side waiting -- having the jury wait for this, or postponing an afternoon so I can address this issue.

You need to get that to me as quickly as possible, and you need to let Ms. Navaratnasingham know about this as soon as possible, or Mr. Reyna.

MR. ROSARIO: Yes, Your Honor. I will do that.

THE COURT: Any comments from the Defense?

MS. NAVARATNASINGHAM: No.

THE COURT: It's a preliminary ruling here, because I need to see the foundational -- the foundational requirements met by plaintiff in this case before I can even consider whether it's admissible or not. And, even if the video is admitted, the so-called transcripts that are in that purport to be a recording of, or a -- essentially a written account of what happened in the CDs, that will never be admitted as evidence.

The jurors may get a copy of it, but as I always instruct

jurors, it is not evidence. It is simply there for you to use as a guide.

MR. ROSARIO: Okay.

THE COURT: Very well.

MR. ROSARIO: I guess the problem is then, if -- if this is admitted, I have to strike the motion to strike their -- the police report, because they wouldn't have a causation that the police report exists if it wasn't for the 911 call that caused it. So, they're -- by blocking it, they are essentially blocking the police report --

THE COURT: I don't understand what the context is, because police reports generally, under the Evidence Code and under applicable law, are not admissible.

MR. ROSARIO: Oh. Thank you for clarifying that, Your Honor.

THE COURT: All right. What other motions in limine would you like to call the Court's attention to?

MR. ROSARIO: I would like to have the TBI brain scans from SimonMed added in. Like I said, I am not familiar with the protocols of -- of discovery and evidence, and that's why I have been asking for the -- the accommodation for my -- for my -- for my mental capacity and the relief, Your Honor, because I want to make sure that the jury -- who are the final arbiters of truth -- are given the opportunity to see all available evidence, not being precluded and having the Defense to decide on what the jury should see, but let the jury decide on what is substantive and probative

evidence rather than having it cut before they're even able to look at it.

THE COURT: Okay. So, before I do anything I just want to make clear for the parties as to the first motion in limine by plaintiff, that it is denied without prejudice and subject to a foundation that must be laid.

I think I have been already clear about what I need to the parties, but for purposes of the minutes it shall read that plaintiff's motion in limine to admit materials regarding the 911 call, including CDs, are denied subject to ability to lay a foundation for that material.

Okay. So, number two is -- I'm not quite sure. Are you seeking to have admitted the --

MR. ROSARIO: Some evidence that was collected by a MRI third-party service after the -- it felt like right around the discovery deadline, right when my -- when my attorneys -- my prior counsel had dropped me, and I was doing everything I can to juggle everything back.

Now, when I got to the doctor they corroborated that I have the brain damage, and the Defense is trying to block that, so I'm just asking Your Honor how do I ensure that -- that -- that the jury is able to see the evidence, even if it's from a third party? I can have that provided directly to -- to the Defense.

The reason is, if I send -- if I send the -- the Defense an audio or video, they continue to claim that it's fake or false.

1 They said I fabricated 911 calls, and they said I fabricated MRI
2 scans, and they're going to keep on doing this. They're using
3 weaponization of procedure, and it's just -- I don't know how -- I
4 guess this is how they do it. This is how they make money, how
5 they do it.
6 But, I just need guidance on how to -- in a way that the
7 Court finds acceptable -- provide the evidence so that they can be
8 admitted. I don't know how to do these things.
9 THE COURT: All right. So, I think this is related to motion
10 in limine by the Defense number five; is that correct?
11 MS. NAVARATNASINGHAM: Yes, Your Honor. It's only -- yes,
12 Your Honor.
13 THE COURT: So, do you want to make argument?
14 MS. NAVARATNASINGHAM: Is it number four?
15 THE COURT: Well, it's -- number four states -- right, number
16 four.
17 MS. NAVARATNASINGHAM: Yes.
18 THE COURT: The document list is number five. I'm sorry.
19 So it's defense motion in limine number four, to preclude
20 plaintiff from offering any testimony or argument that he
21 sustained any brain injury, including but not limited to an
22 alleged traumatic brain injury, and that he was result -- he has
23 resulting cognitive deficits as a result of the incident. Your --
24 your opportunity to argue that, please.
25 MS. NAVARATNASINGHAM: Yes, Your Honor. I mean, I -- I do

1 submit on my papers. I think that the case law for -- for
2 efficiency here, is addressed in the papers. But, essentially the
3 case law particularly says that with injuries where the complexity
4 of the causation issue is beyond common experience, expert
5 testimony is required to establish causation. And, in this case,
6 a brain injury.
7 And, going back to my motion in limine number one. The
8 plaintiff has not designated any retained or non-retained experts
9 to provide any testimony on that matter. And, otherwise, I submit
10 on my papers, Your Honor, just to --
11 THE COURT: Yes. Okay.
12 MR. ROSARIO: I agree. I believe that obvious causation is a
13 very simple thing to do when a person is -- any layperson seeing
14 that there's brain damage has been verified
15 through three-dimensional volumetric scans.
16 You say you have less brain matter on the left side of your
17 brain than you do on your right, which most human beings have
18 symmetric brains. You can say, wow, something happened there.
19 That's like if somebody gets their arm cut off, okay, something
20 happened there. It's an obvious causation.
21 So, I don't believe that you need an expert to corroborate
22 that. If a volumetric scan says, hey, there is asymmetry that is
23 obvious, and it's not something that we can even select a
24 third-party to analyze it that they found it. How that gets
25 entered in, in a fashion that the Court says, hey, this is

substantive to Mr. Rosario's claim of damages, I -- I submit to however you feel that that can be done, Your Honor.

THE COURT: Anything else?

MS. NAVARATNASINGHAM: If Your Honor would like me to argue further, unless I -- there have been no experts designated in this case, so I submit on my papers.

THE COURT: Well, Mr. Rosario, you need an expert to speak to the issue of traumatic brain injury. Motion number four -- in limine number four by defendants is granted.

MR. ROSARIO: I -- Your Honor, I -- Your Honor, I do have an expert. He is in New York. Is that acceptable?

THE COURT: He's not listed as an expert. You are precluded from --

MR. ROSARIO: Oh, yeah, yeah. You're right. He was a non-retained expert before. I provided him in a prior witness declaration. His name is Dr. Siyar Bahadir -- Dr. Siyar Bahadir, who did the original three-dimensional volumetric. And, he said he could come in via a remote session, but he's in New York, and he flies back and forth with his family in Turkey. He's a neurosurgeon out at NYU.

Would that -- if the Defense is willing to get a -- somebody to also do a three-dimensional volumetric, or we can agree that SimonMed can produce it out of their -- they did the MRI -- and provide it to both the Defense and myself, we can agree on that the record is true and authentic.

THE COURT: Counsel?

MS. NAVARATNASINGHAM: Your Honor, there -- there was no designation of expert witnesses or non-retained expert witnesses in this case. So, if Your Honor would like me to argue further, I think -- I think we object to all of that and the presentation of this late evidence.

THE COURT: It's too late.

MR. ROSARIO: Okay.

THE COURT: For either non-retained or retained experts. It's just simply too late for you to proceed with this evidence. The evidence is excluded. The motion is granted.

MR. ROSARIO: Okay.

THE COURT: All right. Your next motion, Mr. Rosario?

MR. ROSARIO: Relief under CCP 473.

THE COURT: It's relief, but what is the relief that you are seeking?

MR. ROSARIO: For -- I'm looking for relief from the procedural process, Your Honor, being that I'm pro per, and asking the Court to take mercy and give me the ability to provide lay witness testimony and other ways.

The Defense has a significant advantage already by blocking my -- my very basic, most fundamental basis of -- of this case. I only took over the case from Dolan and was able to even understand what was going on inside the discovery. Dolan Law Firm had told me that they didn't want me to produce the -- the MRI that we just

discussed, and that's why I removed them from my -- from my -- from representing me. And, I -- and, I tried immediately after that to present and give the information to the Defense, and they have refused to acknowledge it whatsoever.

I don't understand the mechanisms, other than when I provided the Defense the MRI images, the originals, I emailed them to -- the hyperlink for Mr. Reyna to download. And so, again, these procedural things are preventing me from being able to try my case, Your Honor.

THE COURT: Very well. Response?

MS. NAVARATNASINGHAM: Your Honor -- I'm not sure what relief is being requested, Your Honor. To be relieved of procedural requirements? We object to that. We should all be held to the same standard here today.

MR. ROSARIO: Okay. So, under California Civil Code 74, due to excusable neglect, mistake, inadvertence or surprise, the plaintiff's disabilities and pro per status have created an extraordinary challenge in complying with procedural rules, relief is warranted to prevent procedural technicalities from obstructing the plaintiff's fundamental right to a fair trial.

My pro per status in this trial necessitates immediate relief to address the egregious conduct of the Defense, who has been using their tactics of procedure to deny every single move.

And, unfortunately, I don't have the resources nor capacity to be able to match those types of moves, Your Honor. So, I

respectfully submit the statement, seeking relief and protection from the Court to prevent irreparable harm caused by the defendant's tactics and actions.

Under California Code and applicable rules, the Court has the authority and duty to ensure that fairness and prevent procedural abuse in civil litigation.

What I have looked for is to provide that fair play and equal access under CCP 128 and 177. And, the -- that the -- the Defense is able to -- they have far more weight and resources in their balance.

You have already limited one of my things, and if I -- if I am not able to have a fair standing, then I am not even able to get -- to even be able to seek any kind of equality in the Court.

So, I think that -- I believe that a fair -- in all fairness, with an organization as big as theirs, and well funded, and attorneys to do all sorts of different procedural things, I think that and I believe that it's absolutely imperative that the Court be able to allow relief under CCP 74 -- 473.

THE COURT: Anything else?

MS. NAVARATNASINGHAM: I have nothing to add to my prior statement.

THE COURT: Well, the Court is charged with the obligation of administering justice in a fair and equitable manner. You are seeking a remedy which is non-existent at this time. In order to recover 473(b) relief you must have made some sort of mistake, you

failed to do something, you neglected to do something, there was some sort of surprise you weren't aware of.

There's a number of matters which the Court will give you an opportunity to be excused from, but it's not designed in order to provide you with an added advantage simply because you are a layperson.

MR. ROSARIO: Understood.

THE COURT: That is not the intent of the statute. Typically what we see under 473(b) is someone missing a date or missing something, and they come to the court and they say I didn't know, or I made a mistake, or I had no idea. All of those revolve around the same notion that it was inadvertent and not the fault or -- not the fault of the individual who has been the victim of this mistake, be it the attorney who made the mistake or a party.

MR. ROSARIO: Isn't that what we just discussed in the last -- isn't that what we just discussed in --

THE COURT: No. What you're asking for is something in advance of the trial.

MR. ROSARIO: No.

THE COURT: Yes, you are. You're asking for a procedural advantage. I'm not willing to give that to you simply because you're a pro per. You're held to the same standard everyone else is. So, when you walk into this courtroom, every party is treated the same way. I will not give any party a different advantage.

We will give some accomodation to you because you have some

physical limitations, but beyond that, that does not address the substantive issues that come before the Court. You're held to the same standard as everyone else.

You have to file things on time. You have to deliver things to the other side. The other side has to know about what you're asking for from the Court. This is all about how we run these courts. Please do not ask me for relief from what is essentially some sort of default.

MR. ROSARIO: Okay.

THE COURT: It simply doesn't apply here. Your motion for relief under 473, the Code of Civil Procedure, is denied.

MR. ROSARIO: Your Honor, does that mean it has to be specific against a certain failure of mine, for example, me not getting the --

THE COURT: I can't tell you. It's a hypothetical question. I don't answer hypothetical questions.

MR. ROSARIO: Like, for example, my failure to understand the methodology of transmitting MRI images? Is that --

THE COURT: I'm not here to give you legal advice, sir.

MR. ROSARIO: All right.

THE COURT: Another motion in limine, sir?

MR. ROSARIO: Well, I have -- I have a, like a fax thing, and then I have an opposition to theirs, but I believe that the last piece of evidence that I was trying to present would have been the body cams of the police, to ensure that they were brought in.

THE COURT: Well, in order to have the body cameras admitted you will have to have police officers to authenticate the body camera images or video recordings. That is not a function of a motion in limine.

MR. ROSARIO: Okay.

THE COURT: It will be up to you to lay the foundation in order to have the evidence admitted at trial before a jury.

MR. ROSARIO: Okay.

THE COURT: Let's turn now, if you are prepared to do so, I have very -- I have roughly 17 -- 16 or 17 motions in limine which have been presented to the Court by the Defense. I understand that you have presented a global response to the Court that -- with respect to an opposition to defendant's motions in limine.

So, let's proceed with motion in limine number one by Defense. It is to exclude plaintiff from offering expert or non-retained expert testimony.

Your motion, Mr. Reyna or Ms. -- I'm sorry -- Navaratnasingham?

MS. NAVARATNASINGHAM: Yes, Your Honor. We submit on our motion paperwork. Mr. Rosario did not designate any experts -- retained or non-retained experts. We're asking that that testimony and opinion be excluded.

MR. ROSARIO: No. I specified them twice to you.

THE COURT: What have you specified?

MR. ROSARIO: I specified non-retained experts on, I believe

-- what month was that? They keep on saying that they never got these things, and they're actually in the Court record on the county docket. I believe where you can go to the Superior Court website and you can see that I published expert witness lists, so I don't know why they keep on saying that. It's public knowledge. Anybody can download it.

THE COURT: Well, I don't have those materials in front of me.

MR. ROSARIO: Then if they can't provide a list of particular ones, I can provide the list of witnesses and the records that are stamped by the clerk when my witness appears, then they can't deny that it wasn't given to them.

THE COURT: Okay. Number one, who are the experts or non-expert witnesses that you have designated for trial?

MR. ROSARIO: Hold on a second here, Your Honor. Who are the ones that they are trying to exclude?

THE COURT: No. Who are the experts, either designated or not, that you wish to have offered at trial?

MR. ROSARIO: I have Dr. Thomas Sean Halligan, Dr. Lin Wang, Dr. Don Lipson, Dr. Blaszak, Dr. Rustamzadeh, we had previously defined. And, then I have non-retained Parvin Patel, Greg Jones. There's more here. Here you go.

THE COURT: These individuals, when did you submit a list of the experts, either designated or non-designated, to the Defense? What was the date?

1 MR. ROSARIO: Hold on one second, Your Honor. One second,
2 Your Honor. There were four sheets of them that were served to
3 PSA Law.
4 We served Kevin Flores. The first one was Dr. Siyar Bahadir,
5 Dr. Jeff Victoroff, Dr. Allman, Micki Maes, Greg Jones, Jonothon
6 Angell. That was delivered to them exactly on September 4th of
7 2024.
8 The next one includes Leif Lemon, Pamela Miller, Ross Raffin,
9 Dr. Lin Wang, Miguel Solari, Paul Orozco. That one was delivered
10 to them again on September 4, 2024.
11 Then I had Kamani Palmer, Linda Aquino, Dr. Rene Gonzalez,
12 registered nurse Sara Hunter, Dr. Edward Rustamzadeh, and the
13 Stanford medical neurology person of record. And that, again, was
14 delivered on September 4, 2024, and stamped by the clerk of the
15 county.
16 MS. NAVARATNASINGHAM: Your Honor, I believe what Mr. Rosario
17 is referring to is when this matter was initially set for trial --
18 no -- excuse me -- we had a January trial date -- he had served a
19 list of 25 witnesses, which were some medical professionals and
20 some friends and family.
21 We are talking about an expert witness designation which was
22 served -- the parties -- we served a demand for exchange of expert
23 witness designation to be served 50 days before trial. Fifty days
24 before trial, on December 9th, we served our demand of expert
25 witness designation which complied with the code and included our

1 designated experts, summary of their testimony, everything
2 required by the code. We never received a designation from Mr.
3 Rosario. He has not designated any non-retained or retained
4 experts in this case.
5 MR. ROSARIO: That -- those are the non-retained. The
6 retained -- retained ones you have to provide all of the reports
7 and designation -- declarations. The non-retained, they're --
8 they're recognized. So, I mean --
9 THE COURT: Okay. Do you have a response?
10 MS. NAVARATNASINGHAM: If he's referring to a witness list, a
11 list of -- you know, I think we received one also on the 22nd of
12 January, about 50 witnesses on there -- that is not a code
13 compliant expert witness designation.
14 MR. ROSARIO: Not all of them are experts, no. Again, this
15 is again another procedural thing that I am unaware of, Your
16 Honor.
17 THE COURT: Are these doctors under subpoena?
18 MR. ROSARIO: Under subpoena?
19 THE COURT: Yes.
20 MR. ROSARIO: No. They're -- they are offering voluntarily
21 out of the goodness of their hearts to come over and tell the
22 truth under oath.
23 THE COURT: Are they ready to proceed?
24 MR. ROSARIO: Yeah. Some of them, yeah, right now.
25 THE COURT: Well, you're not in compliance, because with an

1 expert witness the Defense is entitled to take their deposition.
2 MR. ROSARIO: Okay.
3 THE COURT: And to look at their files, and so forth.
4 MR. ROSARIO: To what extent of the files is the Defense
5 supposed to look, all the reports and that type of stuff, Your
6 Honor?
7 THE COURT: Anything that's pertinent to your case that you
8 believe is going to -- you're going to have the expert testify to.
9 They've got a file which would be submitted to the defendants
10 for them to examine your expert and non-retained experts, so a
11 witness list is not sufficient to meet the requirements of the
12 code.
13 MR. ROSARIO: So, the lay witnesses are not --
14 THE COURT: Lay witnesses, they can testify.
15 MR. ROSARIO: So, an expert cannot? No unretained experts.
16 Okay. Is the rule also the same in reverse if they don't give me
17 their documents?
18 THE COURT: Let's keep it to this motion in limine. If you
19 have other motions in limine that you wish to have the Court
20 consider, I would be happy to do that, but don't get distracted by
21 other things.
22 I am required to simply address the one issue that's in front
23 of me right now, which is a motion to exclude your expert
24 witnesses, be they retained or non-retained. So far I haven't
25 heard anything which shows that you have been in compliance with

1 the Code of Civil Procedure here.
2 Anything else?
3 MR. ROSARIO: That was number one, right?
4 THE COURT: Yes. The motion in limine number one will be
5 granted for failure to comply with the Code of Civil Procedure,
6 and I'll get the section here in a moment.
7 MR. ROSARIO: So, the -- I see. It's procedure. I guess at
8 this point, Your Honor, I'm going to have to ask for a
9 continuance, Your Honor, because in order for me to comply with
10 these type of rules to make sure that things are in line I'm going
11 to have to either, one, provide -- ask for a continuance to make
12 sure that the Defense gets those -- gets those proper --
13 properly -- as well as the discs and everything else. It's kind
14 of pushed me to that place.
15 THE COURT: Okay.
16 MR. ROSARIO: I need an emergency continuance to make sure
17 that I can provide that to the Defense. Of course, on the back
18 side, it also would give the Defense time to prepare things that
19 from their experts that they haven't provided to me.
20 THE COURT: Look, there is certain requirements under the
21 Code of Civil Procedure, specifically under Section 2024.010, and
22 what follows are cutoff dates, discovery cutoff dates, which is
23 specifically Section 2024.030, which is discovery cutoff for
24 expert witnesses. That has not been complied with. So, the Court
25 will grant the motion because of the failure to comply with the

cutoff requirement of Section 2024.030. Motion is granted.

With regard to a trial continuance, you're now here in this court, and if you want to get a continuance you will need to go back to Department 206. As far as I'm concerned, your motion is denied. You said -- you represented at trial that -- at trial call, I would assume that you represented that you were ready.

MR. ROSARIO: Your Honor?

THE COURT: Yes.

MR. ROSARIO: I'm asking to reopen discovery. And, if there were continuances necessary -- I cannot proceed with the conditions because of, you know, the -- my negligence, or not knowledge of the process, and so I was -- that's why I asked for this -- for this 473 to begin with, to have these types of things put aside.

If I can't have the 473, then I have to ask for relief to have an extension for discovery. The Court has the power to do that. And --

THE COURT: I do have the power to continue the matter, but I must find good cause. I do not find good cause. Again, Section 473, to be specific, deals with amendment of pleadings. That is not what we have here, so I will not grant a continuance.

MR. ROSARIO: Under what cause can I then -- Your Honor, I was given the files by my attorney, and I have done everything I have in good faith. I -- you -- I can only do what I can do.

They asked for a continuance, Your Honor, to have an expert

1 witness, and they continued it for three months. I didn't ask for
2 anything because I made my best effort. I have worked day and
3 night to try to put this together, Your Honor, and I am asking for
4 a balance.
5 If they are granted a continuance to have one witness be able
6 to make -- be present, I am just asking for a continuance for the
7 discovery so I can make sure that the materials -- so I can have a
8 fair trial.
9 THE COURT: May I hear from defense counsel, please?
10 MS. NAVARATNASINGHAM: Your Honor, we object to any
11 continuance of the trial date. We're prepared to move forward.
12 We're on the first day of trial. And, I do believe the Court's
13 order previously stated there that was the last time that there
14 was going to be a trial continuance in this case.
15 THE COURT: That was Judge East?
16 MS. NAVARATNASINGHAM: Massullo. Judge Massullo.
17 MR. ROSARIO: There was a stipulation, actually, there was an
18 additional thing, unless there was something severe. Your Honor,
19 when finding new evidence is not severe, when getting an MRI that
20 says I have brain damage is not severe, when -- those things are
21 considered severe, Your Honor. This is going in the public
22 record. Obviously, people would -- anybody in the public would
23 agree that those are severe circumstances to allow for a
24 continuance. Absolutely.
25 THE COURT: Here is the concern I have here: First of all,

the presiding judge's department has said there will be no further continuances. If you want to go back to the presiding judge's department, to Department 206, we will alert them that you will be coming back tomorrow to seek a continuance. The Court is not granting you a request to continue a case.

When a case is sent to this department, it is well known throughout the courthouse, lawyers know that the case will be tried. If you want to settle the case, I tell parties you settle outside the courtroom. I have nothing to do with the settlement. If you want to continue the matter, you must return to Department 206 to seek a continuance.

The Court is here to try a case. Beyond that, you must give notice to defense counsel that you are going in to Department 206 for a request for a continuance. I think it's too late today to ask to see anybody at 4:25 p.m., but certainly you may try to contact them tomorrow to see how you can set something up. The Court, otherwise, will expect you here tomorrow to continue these motions in limine.

MR. ROSARIO: All right, Your Honor. I failed to show the excusable neglect, mistake, inadvertence, or surprise sufficient to satisfy the conditions.

THE COURT: Sir, that applies to pleadings, not to the case itself. This is a trial matter. And discovery, while there are reasons to excuse mistakes with respect to discovery, that is not this case here.

This case, I will point out, is four years old. It was filed in 2021. It is now 2025. It may be a little under four years, but, nevertheless, the Court looks at the case filing date or the case filing number and it shows 2021.

And, for your edification, the Court has taken that into consideration. And, I understand why the presiding judge, Department 206, has indicated this is the last continuance.

MR. ROSARIO: The continuance was -- was -- and, I agreed to it, Your Honor. Last year, when my attorney had -- had essentially threatened to abandon me, and I had made my best effort -- I actually could show about 20 emails to try and find an attorney. We are right up to the date, and I made my best efforts in good faith. But now, understanding your and the Court's requirement for these things, due to my pro per I am going to have to insist that I return back to 206. I would like to go down there now. This doesn't make any sense. I would be severely prejudiced to proceed.

THE COURT: Well, you can return to Department 206 tomorrow morning and see what they have to say. I don't know if they have ex-parte hearings tomorrow, but I would imagine defense counsel will want to be there to discuss the matter with that court -- with the presiding judge's court. I don't have any control over that. But, I expect to see you back here at 10:00 a.m.

MR. ROSARIO: Judge East, you said, Your Honor?

THE COURT: Whoever is in that department who is managing the

calendar. It may be Judge East, it may be someone who is sitting in on her caseload.

MR. ROSARIO: So, I can continue to -- I'm -- until I'm able to get a time with her, I'm just going to have to keep returning to see her.

THE COURT: Yeah. I think you need to contact the folks in Department 206 tomorrow morning, first thing in the morning, and ask them how you would set up a request for a continuance. But, all matters go back to Department 206 if there is a request to continue the matter.

Very well. Shall we let 206 know?

MR. ROSARIO: Yes, Your Honor. I have made my best effort based on what I am physically able to do. That's why the people I care about are here to help. They obviously know they cannot be attorneys for me. They -- I am going to have to continue, otherwise, I'm severely prejudiced. I can't present any witnesses, I can't present any data, I can't present any evidence.

THE COURT: Sir, the Court is not in session right now. The recording has gone off. I'm sorry. We have a court reporter here. The clerk did not pose a question to you, so I haven't barely listened to anything you have just said in the last five minutes, and I am actually waiting for a response from my clerk to tell me whether you have an opportunity to go down to Department 206 tomorrow.

THE CLERK: They're open at 9:00 a.m., and they can go

downstairs to 206 and arrange to request for a continuance at that time.

THE COURT: Very well. You're ordered to appear in Department 206 at 9:00 a.m. And, whenever you've completed your hearing down there you are ordered to return up to this department to advise the Court of the ruling by Department 206.

All right. Thank you. See you tomorrow.

MS. NAVARATNASINGHAM: Your Honor, just for clarification, depending on the outcome of tomorrow morning, we will pick up motions in limine tomorrow?

THE COURT: We will continue with the motions in limine that you have submitted to the Court.

MS. NAVARATNASINGHAM: Okay. Thank you, Your Honor.

(Whereupon, the proceedings adjourned.)

CERTIFICATE OF COURT REPORTER

I, ALESIA L. COLLINS, CSR, hereby certify that I am a Certified Shorthand Reporter and that I reported verbatim in shorthand writing the following proceedings completely and correctly to the best of my ability:

COURT: SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO

JUDGE: HONORABLE GARRETT L. WONG

ACTION: FRANCISCUS DYLAN ROSARIO,
PLAINTIFF
VS.
SUBHI ABDELHALIM, et al.,
DEFENDANT
CASE NO. CGC-21-594102

DATE: Monday, January 27, 2025

I further certify that I have caused said shorthand writing to be transcribed into typewriting by Computer-Aided Transcription, and that Pages 1 through 61, inclusive, constitute an accurate and complete transcription of all of my shorthand writing for the date specified.

DATED: January 27, 2025

ALESIA L. COLLINS, CSR
Official Court Reporter
CSR License No. 7751

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IN THE SUPERIOR COURT OF THE STATE OF CALIFORNIA

IN THE CITY AND COUNTY OF SAN FRANCISCO

---ooo---

FRANCISCUS DYLAN ROSARIO, Plaintiff, vs. SUBHI ABDELHALIM, et al Defendant.	CASE NO. CGC-21-594102

REPORTER'S TRANSCRIPT OF PROCEEDINGS

BEFORE THE HON. GARRETT L. WONG, JUDGE

DEPARTMENT 504

Tuesday, January 28, 2025

Reported by:

Angie Diner, RMR, CRR, CSR 9581

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PROCEEDINGS FOR JANUARY 28, 2025

GARRETT L. WONG PRESIDING DEPT. 504

---ooo---

THE CLERK: Here on the matter of the Franciscus Dylan Rosario v. Subhi Abdelhalim, Case Number CDC-21-594102.

Would you like appearances?

THE COURT: Yes.

THE CLERK: Appearances, please.

MS. NAVARATNASINGHAM: Good morning, Your Honor. Priya Navaratnasingham for defendant.

MR. REYNA: Good morning, Your Honor. Albert Reyna on behalf of defendant.

MR. SOBATI: Good morning, Your Honor. Kareem Sobati as legal aide.

THE COURT: Okay. I understand that Mr. Rosario is unavailable today. Is that correct, sir?

MR. SOBATI: Mr. Rosario is currently in the emergency room being evaluated for multiple conditions. So I have not heard back any update. As of now, in this moment, he's in the emergency room, I believe in the South Bay. I can find out the facility if you'd like.

THE COURT: He's in the South Bay?

1 MR. SOBATI: He's in the South Bay currently.
2 That, I do know. I could find you the exact hospital
3 as well.
4 THE COURT: I need to know which hospital.
5 MR. SOBATI: Yes, Your Honor. One second.
6 Is it acceptable to text, Your Honor?
7 THE COURT: Yes.
8 MR. SOBATI: He's at Santa Clara Valley
9 Medical Center, unless they refer him somewhere else.
10 I haven't spoken to them, because he said they might
11 send him somewhere else. I don't know. I don't
12 think he's been seen by the actual doctor yet. So
13 that was the last update I have, Your Honor.
14 THE COURT: Okay. Well, what's the request?
15 MR. SOBATI: Your Honor, I was told, though
16 I'm not -- I did not file the forms, that an e-mail
17 was sent. Obviously it's very late notice that they
18 sent. Our other legal aide that you saw here
19 yesterday, Mr. Evan Keegan, sent that in before these
20 proceedings now. So I believe -- I don't know if
21 that was -- I can check, actually, because I was
22 CC'd. I will tell you now. That would have been not
23 very long ago. Excuse me here. 9:33 a.m.
24 THE COURT: Well, we -- I'm sorry?
25 MR. SOBATI: About 30 minutes ago, Your Honor,

at 9:33 a.m. And that notice was sent to this department as well as Department 206, where we were obviously instructed to go by you at the end of proceedings yesterday.

THE COURT: Right. Department 206 has now, of course, sent the matter back to this department to consider the request for a continuance. He's not here because of a medical -- apparently a medical emergency. The Court received by e-mail a motion this morning at 9:33 a.m. Today's date is January 28, '25. Okay.

Well, we haven't called the jury in. And, Ms. Navaratnasingham, what you would you like to?

MS. NAVARATNASINGHAM: Yes, Your Honor. Thank you. I would like just to be heard.

Your Honor, preliminarily, once again, I don't believe that -- Mr. Rosario is not here, and that's akin to a nonappearance. And I don't believe his representative here is a lawyer, is qualified to represent him without him here. I don't believe he's even a certified paralegal, to represent Mr. Rosario.

Aside from that, we did appear in Department 206 this morning, and the Court denied -- the Court informed us that we all appeared and stated ready yesterday, and so she denied the request for

1 trial continuance and said that trial would proceed.
2 So with Mr. Rosario's failure to appear today for
3 trial, we would ask that the Court dismiss this
4 matter pursuant to CCP 581d, as we believe that the
5 plaintiff has abandoned his case. It would also be
6 the fifth trial continuance, Your Honor, if that was
7 granted.
8 THE COURT: Okay.
9 MR. SOBATI: Your Honor, Mr. Rosario has never
10 requested a continuance up until this point, whereas
11 opposing counsel has done so three times.
12 THE COURT: Well --
13 MS. NAVARATNASINGHAM: You're not
14 Mr. Rosario's lawyer.
15 THE COURT: I understand that. It's --
16 MR. SOBATI: Correct. Thankfully.
17 THE COURT: I think where the Court's
18 concerned here, he does have somebody here. Whether
19 or not he is a lawyer or a paralegal or something
20 else which legitimizes his status as a professional,
21 he does have someone here who is representing that
22 Mr. Rosario is currently at a medical facility, and I
23 think the problem is that the Court would suffer
24 immediate reversal if I were to grant the dismissal
25 at this time. There's sufficient facts, although I

1 concede it's hearsay, to allow the Court to make a
2 decision that I'll simply have to continue the
3 matter, given what the request is. I think if this
4 were taken up to the Court of Appeal by Mr. Rosario,
5 that we would be right back here again. The Court of
6 Appeal expects us to have a case fully on the merits.
7 Number two, he has made a new motion by way of
8 e-mail, which seems to focus on the fact that he
9 wishes to reopen discovery, and I have to address
10 those, notwithstanding the fact that there are 19
11 motions in limine that have to be resolved, only 2 or
12 3 of them of which we -- the Court decided yesterday.
13 So I would simply tell you that the Court is
14 aware of the numerous motions to continue, I don't
15 know by whom and for what reasons. Those are
16 generally addressed by Department 206 and the
17 presiding judge's court, and I can't make any
18 decisions right now as to whether or not this
19 continuance would be appropriate. However, I do want
20 to ask, when was this case filed? Do you know?
21 MR. REYNA: July 27th, 2021, Your Honor.
22 THE COURT: Okay. So given that it was in
23 July of 2021, he's got about a year before the
24 five-year statute kicks in. And all I'll say is
25 that -- you can carry this back to Mr. Rosario --

1 MR. SOBATI: Yes, Your Honor.
2 THE COURT: -- that he's up against a
3 dismissal by way of the Code of Civil Procedure.
4 MR. SOBATI: Yes, Your Honor.
5 THE COURT: Next, we can simply put this over
6 for a status and trial setting date, and we can also
7 hear these motions in limine in the meanwhile so that
8 we get these issues resolved. And he'll have to
9 appear for this newest motion. The Court, again, has
10 an express desire to have the case heard on the
11 merits; however these multiple requests by
12 Mr. Rosario make it very difficult for the Court to
13 get going with the case. The parties represented
14 yesterday that they were ready to proceed to the
15 presiding judge of this court. And as I mentioned
16 yesterday, when a case is sent to me, I try it, we
17 proceed.
18 So Mr. Rosario better have filed appropriate
19 motions in the meanwhile, not by e-mail; but he
20 better file an appropriate motion that the Court can
21 hear at an appropriate time. And the rule of thumb
22 is he has so many days before a hearing to file that
23 motion, at 16 court days. I will not treat this as a
24 motion in limine because it's not, it is a motion to
25 continue. And what I'm going to do is I'm -- we're

1 not going to have the motion filed at this time,
2 unless defendants have some objection, but I think
3 it's better that we see a formal document properly
4 noticed, and I'm going to give you one week to tell
5 us when we can have this hearing.
6 MR. SOBATI: Yes, Your Honor.
7 THE COURT: Counsel, there's not much I can do
8 here, but I think if -- as long as we are able to do
9 this procedurally correct, then that will address any
10 concerns that the Court of Appeal will have with
11 regard to fully hearing this matter on the merits.
12 So -- and I'm speaking not only to the motion that's
13 been presented by way of e-mail, but the other
14 motions in limine that you have brought.
15 So let's have a status on February 3rd, and
16 then we can set a date on February 3rd so that papers
17 can be timely filed, and that will be it. I'm not
18 saying that -- I'm going to set the date of
19 February 3rd; but on February 3rd, I expect that
20 we'll have some status or update on his medical
21 condition. And judging from what that date will be,
22 I will require a projected date for a hearing on this
23 matter. It could be anytime in March other than
24 March 13th or 14th.
25 MR. SOBATI: Your Honor, is the -- is that --

1 just that obviously we don't know his medical
2 condition. We need to be here in person in one week,
3 or can he be remote, hypothetically, if he's still
4 wherever he is?
5 THE COURT: Well, I think -- let me hear from
6 defense counsel here.
7 MS. NAVARATNASINGHAM: Yes, Your Honor. Thank
8 you. We would like him to appear in person, Your
9 Honor, on that date.
10 THE COURT: He's ordered here in person. If
11 he's in a hospital, then I want to see some proof
12 that he's in a hospital.
13 MR. SOBATI: Of course, Your Honor. Yes.
14 What time would that be, Your Honor, on
15 February 3rd?
16 THE COURT: That would be Monday morning, next
17 Monday morning, February 3rd, at 9:30.
18 MR. SOBATI: Thank you.
19 MS. NAVARATNASINGHAM: Your Honor, may I --
20 I'm sorry to interrupt you. If I may.
21 So, Your Honor, I just want to clarify that
22 with regards to this -- this setting, that all
23 discovery and pretrial deadlines remain closed and
24 are not reopened, number one.
25 THE COURT: Well, okay. Let me answer that

1 question: Depends on what his ask is. And having
2 looked at the code, I will need to know from him the
3 basis under the code as to why matters of discovery
4 should be reopened, that I'm leaving it open because
5 he's not here and I simply cannot close something
6 without hearing from him. And mind you, I have, this
7 morning, reviewed the Code of Civil Procedure with
8 respect to multiple discovery requests to reopen for
9 a variety of different matters, and the Court and the
10 Code of Procedure seems to -- well, the Code of Civil
11 Procedure seems to suggest there are circumstances
12 akin to what you find in 473b -- that is, mistaken --
13 inadvertence and so forth -- that may allow a Court
14 to reopen. You'll need to look at whatever you
15 anticipate. And it may very well be that we set a
16 hearing on a motion to reopen various forms of
17 discovery, which will give you an opportunity to file
18 an opposition and then to file a reply. But we'll
19 just simply have to see. I have to extend every way
20 for plaintiff -- I'm not suggesting granting it, but
21 I have to give him every opportunity to lay out his
22 record so that you will have an opportunity to have
23 an opposition for the Court to review.
24 And I will tell -- is it Mr. Sobati?
25 MR. SOBATI: Yes, Your Honor.

1 THE COURT: If you are assisting him, I would
2 appreciate something that is cogent and organized.
3 Yesterday when I was here, I did not understand -- I
4 got the gist of what he had to say, but the papers
5 were very disorganized, and it was very hard for the
6 Court to maneuver and understand what his asks were.
7 MR. SOBATI: It's unacceptable, Your Honor.
8 My apologies.
9 THE COURT: If I -- it's not your apologies.
10 I'm not asking for that. What I am asking for is
11 something that is organized and linear.
12 MR. SOBATI: Yes, Your Honor.
13 THE COURT: And if there are items that he is
14 seeking to have admitted, he needs to get on that
15 right now, and as soon as he's recovered those
16 items -- for example, those compact discs -- if he
17 does, in fact, recover them, then he needs to hand
18 them over to defense immediately. Anything that he
19 finds in the way of discovery must be turned over to
20 the defense as soon as he has a copy for them.
21 MR. SOBATI: Yes, Your Honor.
22 THE COURT: So I will then consider whether or
23 not some of these items that he wishes to have
24 admitted should be, depending on what defense counsel
25 has to say about them. The Court does not approve of

1 late discovery, but the Court also recognizes that
2 for pro pers, the concepts around the Code of Civil
3 Procedure can be mystifying and confusing and
4 difficult to understand. However, it's defense
5 counsels' opportunity here to explain to the Court
6 why some of this material should not be presented at
7 trial.
8 Let me just say, mind you, even if I say
9 they're -- they might be admitted at trial, they
10 still must meet evidentiary foundation thresholds in
11 order to have them admitted. So just because the
12 Court says there have been -- they can be exchanged
13 and so forth doesn't mean that they're going to get
14 in front of a jury. I've been doing this for a long
15 time, and a lot of people have a lot of things that
16 they want to have admitted, but because they cannot
17 establish the basic foundational requirements for the
18 admissibility of evidence, the material does not come
19 into -- in before the trier of fact. So, defense
20 counsel, I'm not saying that anything that I allow
21 discovery for means that it's automatically admitted
22 in the courtroom. It's just that it's something
23 which is consistent with the purpose of discovery,
24 and sometimes some items may be not admitted, but
25 sometimes it can be used for purposes of impeachment.

1 So that's always something that is in the -- within
2 the consideration of the Court.
3 Very well. So I'll see -- yes, ma'am.
4 MS. NAVARATNASINGHAM: I'm sorry, Your Honor.
5 May I just say a few more things just for my record
6 here?
7 THE COURT: Certainly.
8 MS. NAVARATNASINGHAM: The other thing, Your
9 Honor, is I know we did hear motions in limine
10 yesterday, and I just want to confirm that those
11 rulings are -- they stand and that there will be no
12 revisiting of those motions.
13 THE COURT: Well, they stand for now. If
14 there's a continuance because of some medical
15 condition which -- the case has to be continued and
16 it's reassigned to another judge, then that new judge
17 may revisit the motions in limine. There isn't a
18 so-called rule of the case here. New trial judges
19 can be -- can change because motions in limine are --
20 and rulings are fluid. And I'll simply point out
21 that any trial judge who rules earlier on a motion in
22 limine may change his or her or their mind at trial,
23 depending on how the evidence comes in. So it
24 happens on occasion, but not very frequently. So I
25 think you would have to relitigate those issues

1 should this matter be reassigned to another bench
2 officer, but I'll keep them as long as I am here and
3 can hear the case.
4 MS. NAVARATNASINGHAM: The last thing, Your
5 Honor, is I have a 70-year-old client who is a small
6 business owner here in San Francisco, has been
7 extremely stressed about the case, and it's been
8 ongoing for four years --
9 THE COURT: It's this defendant in this
10 matter?
11 MS. NAVARATNASINGHAM: My defendant, yes.
12 THE COURT: I didn't understand that the
13 defendant was 70 years old.
14 MS. NAVARATNASINGHAM: He's 70 years old and
15 he's been -- you know, and from our Motion in Limine
16 Number 8, you'll see that my -- both my client and
17 our office has received continued threats almost
18 weekly from the plaintiff, extremely threatening. We
19 actually have our building security on alert for him.
20 So we oppose the continuance because we want this
21 over. My client is 70. He's extremely stressed
22 about this. He's -- we've been preparing for this
23 trial because we just need this to end, we need
24 Mr. Rosario's conduct to end, and that is explained
25 in my Motion in Limine Number 8, which we'll be

1 supplementing with another very threatening e-mail
2 that we received on Saturday.
3 But I do intend to move for costs for
4 preparation and fees for my client and our office for
5 having to deal with this, and now a potential
6 continuance. Would that be a motion, Your Honor,
7 that I should file?
8 THE COURT: Yes.
9 MS. NAVARATNASINGHAM: Okay.
10 THE COURT: Again, my preliminary view is the
11 costs may be awarded, depending on what the
12 circumstances are, and they may be denied. If it's
13 because of an actual medical reason, the Court simply
14 cannot -- I'm saying it out loud -- without more,
15 grant that request. However, I mean, if it's not a
16 legitimate medical excuse -- and we won't know until
17 we see it -- I can't really do anything with the
18 aspect of cost. I don't know if there's any other
19 alternatives with regard to threats, but if your
20 client feels that it's important enough, there are
21 other remedies that he may seek to enjoin Mr. Rosario
22 from his threats. We have those daily kinds of
23 matters in this courthouse. So, again, I can't
24 practice law and tell you what they are, but there
25 are restraining orders that can be issued against

1 Mr. Rosario, and I'm not -- I can't tell Mr. Sobati
2 at this moment, Tell him to, you know, stop doing
3 this. It may be a court order that requires him
4 to -- requires him to stop these threats either by
5 e-mail or otherwise.
6 So I understand your client's interest in
7 resolving this as quickly as we can, but,
8 unfortunately, the wheels of justice turn slowly.
9 But we'll know on February 3rd what the next step is.
10 MS. NAVARATNASINGHAM: Okay.
11 THE COURT: And that's the most I can do at
12 this moment.
13 Okay. Anything else you want to address?
14 MS. NAVARATNASINGHAM: No, Your Honor. Thank
15 you very much.
16 MR. SOBATI: Thank you, Your Honor.
17 THE COURT: Tell your client we will move as
18 quickly as possible. If a trial date is set in this
19 matter, it will be a permanent date, without any
20 further continuances short of good cause. Again,
21 good cause always trumps anything that the Court
22 intends to do, and it happens frequently, more
23 frequently than I would like to say it does. But in
24 any event, I'll conclude the session this morning.
25 MS. NAVARATNASINGHAM: Thank you.

MR. SOBATI: Thank you.

(Proceedings adjourned at 10:25 a.m.).

STATE OF CALIFORNIA) SS.

I do hereby certify that the foregoing proceedings in the within-entitled cause were taken at the time and place herein named; that the proceedings are a true record of the all witness testimony as reported by me, a duly certified shorthand reporter and a disinterested person, and was thereafter transcribed into typewriting by computer.

I further certify that I am not interested in the outcome of the said action, nor connected with, nor related to any of the parties in said action, nor to their respective counsel.

IN WITNESS WHEREOF, I have hereunto set my hand this 21st of February, 2025.

Angie Diner

_____

ANGIE DINER, 9581

Certified Shorthand Reporter

In the Matter Of:

FRANCISCUS DYLAN ROSARIO vs SUBHI ABDELHALIM

CGC-21-594102

TRANSCRIPT OF PROCEEDINGS

February 03, 2025

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IN THE SUPERIOR COURT OF THE STATE OF CALIFORNIA

IN AND FOR THE COUNTY OF SAN FRANCISCO

BEFORE THE HONORABLE JUDGE GARRETT L. WONG

DEPARTMENT 504

---o0o---

FRANCISCUS DYLAN ROSARIO, Plaintiff, vs. SUBHI ABDELHALIM, Defendant.	No. CGC-21-594102

REPORTER'S TRANSCRIPT OF PROCEEDINGS

February 3rd, 2025

Job No.: J12297228
Reported by:
LAURA AXELSEN, RMR, CRR, CRC, RDR
C.S.R. NO. 6173

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---oOo---

P R O C E E D I N G S

9:32 a.m.

---oOo---

THE CLERK: All rise. All rise, please. Department 504 is now in session. The honorable Garrett L. Wong, Judge, presiding.

THE COURT: Good morning. Please be seated. May I have your appearances, please? Plaintiff's first.

MR. KEEGAN: Evan Keegan on behalf of Mr. Rosario.

THE COURT: The first name or last name Keegan?

MR. KEEGAN: Last name Keegan.

MS. NAVARATNASINGHAM: Good morning, your Honor. Priya Navaratnasingham for defendant.

MR. REYNA: Good morning, your Honor. Alberto Reyna on behalf of defendant.

THE COURT: Thank you. So Mr. Rosario is not present. What is his status, Mr. Keegan?

MR. KEEGAN: That's correct, yes. So I believe Mr. Rosario sent an email last night to Department 504 email, and so his medical condition is still ongoing in terms of what the extent of his injuries and diagnoses are, and so, your Honor, I can share -- obviously, with HIPAA regulations and whatnot I

can share with the court personally, you know, under seal what the statuses of those are, but with discovery being closed, we just ask that that would be kept, you know, for the Court and the Court alone.

THE COURT: All right. Ms. Navaratnasingham?

MS. NAVARATNASINGHAM: Yes. Good morning, your Honor. We're not copied on notice communication to the court last night. So it's the first we're learning of that here this morning. Secondarily, once again, we have someone who is not Mr. Rosario's lawyer or licensed to represent him speaking for him in here in court today.

Third, we submit to this court that we're entitled to those records as well because he's put his health at issue by failing to appear for now day three of trial, which should have been day three of trial, and, your Honor, if I can just state for the record, Mr. Rosario was physically fine through the entire first day of trial, answered ready.

It was only with when he received adverse rulings on his motions in limine that he decided that he was going to suspend trial and put this court and us in a difficult situation. He never made any mention of any inability to proceed with this trial at any time until he received the adverse rulings on the motions.

I appreciate -- and I -- and -- I -- rightfully so, I appreciate this court's concern about prejudice to Mr. Rosario and in avoiding that, but my client, as I previewed for the court last week, has also suffered extreme prejudice with this case. Uhm, whether it's related to this case or not or related to Mr. Rosario, my client literally has masked men coming to his store and dropping paper saying, we're going to get you on his store floor.

There's tremendous stress on my client. I don't know if it's related to this, but given the nature and the tones of the emails that we've received from Mr. Rosario, which we've submitted to this court, we have serious concerns and would like to move the case forward. I think if the roles were reversed and I received adverse rulings on my motions in limine is the asked to suspend trial, I feel confident that that would be denied. And so I -- I -- he's provided no information whatsoever about what physical ailment that he now, you know, came out of nowhere after day one of trial, and so we, once again, move to dismissal of this case pursuant to CCP 581D. We believe the plaintiff has abandoned his case.

THE COURT: Well, Mr. Keegan, you're not a lawyer; am I correct?

MR. KEEGAN: That's correct, yes.

THE COURT: Okay. Okay. So I don't have the email from the clerk because I have a substitute clerk this morning. In Department 504, let's see if it's here.

MR. KEEGAN: Your Honor, I have a copy, if that would please to court, of email correspondence.

THE COURT: You're supposed to provide a copy to defense counsel first. So I would like for you to do that.

MR. KEEGAN: Your Honor, the only -- the one contingency here is that the email to the court, the reason that defense was not included it was because it contains the sensitive medical information private to Mr. Rosario and the court as well.

THE COURT: Well, I can appreciate that. But whenever you place your medical condition at issue and it's in the case as well, then there is a waiver. So he's not able to exercise his privilege under the Evidence Code because he has put that at issue before the court, specifically with respect to the fact that he, physically or medically, cannot appear in courtroom. And, frankly, what I understand his reason -- so far as I've heard from you -- is that he has a medical condition that is preventing him from appearing in the

1 courtroom.
2 So if you put that at issue before the Court,
3 then it becomes, essentially, a waiver and is made
4 available to opposing counsel. And I will try to
5 provide the Evidence Code Section, but they are
6 entitled, that is, defense counsel and defendant is
7 entitled to the ex parte communication made to this
8 court. So to the extent that he's asserting his
9 physician/patient privilege under Evidence Code section
10 990 and 991, that privilege is waived, and I will find
11 the communication waiver here.
12 996 of the Evidence Code, "there is no
13 privilege as to a communication relevant to an issue
14 concerning the condition of the patient if such issue
15 has been tendered by" -- 99 Evidence Code Section 996,
16 Subdivision A, the patient, Subdivision B, "any party
17 claiming through or under the patient."
18 And I think that would be suffice or
19 sufficient. I don't have the complaint in front of me,
20 so I don't know whether he has brought a claim for
21 damages for injury under Section 376 or 377 of the Code
22 of Civil Procedure, which I'm going to consider right
23 now. 376 is an action by parents of a child for
24 injures, and 377, I believe, addresses beneficiaries of
25 the decedent's estate.

Of course, Mr. Rosario is not a decedent. He's in a hospital. So Evidence Code Section 996, Subdivision A and Subdivision B apply. There's a waiver. So please hand over that material to defense counsel. I don't have a copy. You're supposed to have copies for the Court. Do we have a copy? Could you print one out from Department or from the Department 504?

THE CLERK: I don't have access to it yet.

THE COURT: You don't have access?

THE CLERK: May I just copy that?

THE COURT: Yeah, we'll just have that copied.

THE CLERK: I'll be right back.

THE COURT: While my clerk is copying the document, I understand that there have been threats to Mr. Abdelhalim, but I'm not aware of when they took place. I'm aware that there have been but I'm not aware whether there have been currently threats made to Mr. Abdelhalim, defendant in this case.

MS. NAVARATNASINGHAM: Do you know around -- the masked men, when that occurred?

MR. REYNA: I believe it was January 7th, your Honor.

MS. NAVARATNASINGHAM: And, then, your Honor, that was the -- and, again, I -- we don't know that

that's related to this case. It's just given the emails that we've received from Mr. Rosario, it just seems very coincidental. The emails that we received up until the Saturday before trial started, uhm, which would have been January --

MR. REYNA: 25th.

MS. NAVARATNASINGHAM: -- 25th. And after we submitted those emails to the Court via a motion in limine, for reasons -- because there are comments in those emails that we think if a jury hears will be prejudicial, since we've submitted those emails to the court, we have not received any emails from Mr. Rosario.

THE COURT: Okay. Well, the trial was set on the 21st or the first appearance was the 21st of January?

MR. REYNA: 27th, your Honor.

MS. NAVARATNASINGHAM: 27th, your Honor.

THE COURT: I'm sorry. Today is February 3rd. My mistake. Okay. So it's the 27th of January, and you're saying there were emails right up to the 27th?

MS. NAVARATNASINGHAM: The 25th, the Saturday before trial started.

THE COURT: Okay. And there hasn't been anything since then?

MS. NAVARATNASINGHAM: Correct, because we

submitted them as part of the exhibits to this court.

THE COURT: Okay.

MR. KEEGAN: Your Honor, this seems highly speculative. Email threat versus masked men coming into the defendant's -- I don't see a connection here.

THE COURT: Well, they've said that this is highly coincidental, but I'm not drawing any connection between the two yet short of further evidence, and I think Mr. Reyna or Ms. Navaratnasingham would agree.

MR. KEEGAN: Your Honor, I would like to remind the Court that the circumstances and the location of which the defendant is running his -- his store and the activities surrounding that store, which are part of -- part of the material case here, and the types of activities that are going on, and the types of clients that are going in and out of the defendant's location.

THE COURT: What about them? You said you're reminding me that this -- that some of these events took place in his grocery store. So tell me what is important about my understanding that it is where it was? I have no idea where it was. What's the address of his grocery store or business?

MR. REYNA: I'm not sure of the exact address. I know the business name. Sonoma Liquors here in San Francisco.

MR. KEEGAN: Fifth Street and Jessie.
THE COURT: Okay. 8th street and Jessie?
MR. KEEGAN: Fifth street.
THE COURT: So what's the significance of that?
MR. KEEGAN: Uhm, your Honor, we would be happy to show video documentation of the types of clients that are around the market, uhm, and the types of activities that are going on -- elicit activities.
THE COURT: Well, Mr. Keegan, you're not a lawyer, and if you were a lawyer, you'd be laughed out of the courthouse because that's not pertinent to the accident. That is personal injury suit.
MR. KEEGAN: Absolutely.
THE COURT: Correct?
MR. KEEGAN: Correct.
THE COURT: Where the defendant in this case is alleged to have struck Mr. Rosario when he was using a scooter of some sort. So why would the individuals who frequent Mr. Abdelhalim's place of business have any relevance an accident? Tell me.
MR. KEEGAN: Absolutely, your Honor. So my response is more in terms of Mr. Abdelhalim's clientele and any notion that Mr. Rosario would somehow be connected to the types of activities that go on as a

result of some sort of harassment that's alleged here. Simply an explanation.

THE COURT: There's no logical relevance as to why that would be pertinent evidence in this case.

MR. KEEGAN: Not evidence. Not evidence.

THE COURT: I won't even consider that.

MR. KEEGAN: Not evidence, your Honor, just an explanation of response, if you will.

THE COURT: Well, let me -- this document that has been sent to us is a two-page email along with the earlier email that was submitted to the court requesting a continuance on medical necessity and reopening of discovery. That was dated January 28th. Now we have an email submitted to the court on February 2nd, 2025, at 5:21 p.m. It is an ex parte communication, and I've ordered the disclosure to defense counsel.

MR. KEEGAN: Absolutely, your Honor. So continuance off of the email thread. Mr. Rosario has, you know, a greatly burden and has been able to use assisted devices to be able to type this proposed motion and so, if it pleases the Court, Mr. Rosario would like to present a proposed motion for continuous of trial due to ADA protected medical reasons, and I have a copy here. Mr. Clerk, if I may approach, and I have a copy for PSA as well.

THE COURT: You have a copy for defense counsel?

MR. KEEGAN: Yes, I do, your Honor.

THE COURT: Ms. Navaratnasingham, have you had an opportunity to review the email that has been submitted to the court?

MS. NAVARATNASINGHAM: Yes, your Honor. Thank you. I -- I see just the comments from -- maybe appears to be Mr. Rosario or his wife -- and I just wanted to note for the record, and I'm sure the court observed this as well, but the medical record doesn't seem to have any diagnosis. It doesn't say that he's actually hospitalized. We actually don't know where Mr. Rosario is now, as we it sit here today.

It says he was seen at the emergency room on January 28th with no diagnoses, no basis for a comment that he can return to work on February 11. It also says family and patient report that they have a chronic injury. There's no diagnosis whatsoever or evaluation on this record to explain why he's not here today. And we would, of course, you know, this would be -- if this is continued again, this would be the fifth trial continuance in this case and we would, of course, oppose any further continuance.

THE COURT: Well, okay. I'm not granting a

1 continuance yet. But we're in the middle of --
2 essentially, we are in the middle of the trial,
3 although, opening statements have not begun. The Court
4 has ruled on a handful of motions in limine, one of
5 which I think is key to this case. Designated or
6 non-designated have not been part of an exchange
7 required by the Code of Civil Procedure. He already
8 understands that rule, and so I have to, I think,
9 continue this -- not continue in a formal sense but I
10 have to put this matter over for a further conference.
11 Perhaps we'll have to do it on the 18th of February,
12 if that works for all parties.
13 I mean, the representation I have is from the
14 doctor. I can't surmise from the doctor exactly what
15 his condition is, but it says that he's subject to some
16 sort of bed rest, and I would gather from Mr. Keegan
17 that I would assume that he's at home now --
18 MR. KEEGAN: Yes.
19 THE COURT: -- trying to recuperate and will
20 be available on -- on February 11th or afterwards.
21 What I can't have, and I think this is the concern of
22 the Court and from defense counsel, is to keep
23 continuing this every two or three weeks because of his
24 medical condition. I will need -- if he decides to come
25 to appear through Mr. Keegan on February 18, or rather

if he decides not to appear on February 18th, then we will decide then. The other thing that I have here is a proposed motion for continuance of trial due to ADA protected medical reasons.

Well, essentially, here I think it's a medical condition that we're not entirely understand how it affects whether or not he can appear in court. He has to appear in court for the court to make an accommodation under the American Disabilities Act. So far he has not done that.

So the Court will certainly be open to making accommodations under the American Disabilities Act, but he hasn't really specified what it is that is required of the court to make accommodations, and to that extent, he needs to -- or Mr. Keegan, you'll need to have some explanation to the parties and to the court as to what specifically is required of the court in order to accommodate him.

The assumption is that he's going to appear in court. So far he has not appeared in court. So we can't really do anything until he appears in court. Meanwhile, this proposed motion for continuance of trial -- perhaps what we can do is since today is the third, and I've asked to have him return on the 18th. My -- my proposal is to grant Mr. Rosario an order

shortening time to file this.

I don't think it's going to take much for the defendants to object, and have you file something. Perhaps on the 10th so that the Court -- I know it's a little bit short, but that will give you -- well, it gives you, essentially, I think eight days -- court days. There's a couple of holidays that are folded in there, but, essentially, eight days of today, but that's not giving you enough time. How much time do you need to file something? Do you want to have it filed on the 10th so that the Court can consider it on the 18th?

MS. NAVARATNASINGHAM: That's fine, your Honor. We can do that.

THE COURT: Okay.

MS. NAVARATNASINGHAM: Your Honor, I'm so sorry.

THE COURT: Yes.

MS. NAVARATNASINGHAM: Mr. Reyna just reminded me we actually have an MSC in another matter in Alameda on February 18th. Would it be possible to do more flexible? Otherwise, we're just stuck on that date.

THE COURT: Well, we can do it February 24th. How's that?

MS. NAVARATNASINGHAM: Okay. I have another trial starting February 26th. The 17th or the

19th?

THE COURT: Well, it's essentially -- the 17th of February is a court holiday.

MS. NAVARATNASINGHAM: Oh, that's right.

THE COURT: And you could appear on the 19th if you -- I think I'm going to order the parties present. So if you want to appear on the 19th, that's fine with the Court. That should give Mr. Rosario an extra week of -- yes?

MS. NAVARATNASINGHAM: I'm so sorry. I'm so sorry. The 19th is the MSE and a mediation on the 18th, but I'll figure that out. So if we could do the 18th, that would be good. I'm so sorry, your Honor. I got my dates mixed up.

THE COURT: Well, where is this mediation? Here in this county?

MS. NAVARATNASINGHAM: Yeah, but I can get another attorney to cover the mediation on the 18th. The MSE is on the 19th, which is in Alameda. So if we could go back to the 18th. I'm so sorry, your Honor.

THE COURT: It's up to you. I'm trying to make it convenient for everyone.

MS. NAVARATNASINGHAM: Yeah. Okay. Yes, February the 18th.

THE COURT: Okay.

THE COURT: Okay. So we can start at 9:30 on the 18th of February. That should give Mr. Rosario sufficient time to recuperate and there will be an opposition due -- when would you like to file it? 10th?

MS. NAVARATNASINGHAM: Yeah, we can do that, your Honor.

THE COURT: Okay. Let's have it filed on the 10th. No replies. He can argue his reply hearing 2/18.

MS. NAVARATNASINGHAM: Your Honor, the hearing on February 18th is a further status conference, correct? And to also hear this motion, correct?

THE COURT: Yes.

MS. NAVARATNASINGHAM: Okay. Thank you.

THE COURT: I couldn't order the trial -- even if I denied it, I couldn't order the trial to begin on February 18th. That wouldn't be fair to either party, and I recognize that you need to prepare. I need to have jury instructions, verdict forms from plaintiff. Now, I wouldn't oppose having your set, but Mr. Rosario needs to comply with the San Francisco local rules of court, and I'm going to tell Mr. Keegan right now that he should review Local Rule of Court 6.0. And that goes all the way through 6.8. So there's a number of things

that he must submit to the court which he has not done yet.

MR. KEEGAN: I'll be sure and let him know, your Honor.

THE COURT: Thank you. Anything else?

MS. NAVARATNASINGHAM: No, thank you, your Honor, for your time.

THE COURT: If he -- if he's seeking American Disabilities Act accommodations, he needs to submit that as soon as possible to our court, that is, to my department, so that my staff can refer this to room 205, which handles accommodations for American Disabilities Act. That's, essentially, our central office. All right.

MR. KEEGAN: Sounds great. Thanks, your Honor.

THE COURT: Okay. We're off the record.

(Discussion off the record.)

THE COURT: We're back on the record. All defense counsel is present. Mr. Keegan is present. And the record will indicate that the Court is ordering Mr. Rosario to appear on February 18th in this courtroom in person. That's 2025. If he cannot, then he must present the court with a valid medical excuse beyond what we've received this morning, articulating

the condition, the nature of the condition, the -- or rather the diagnosis and the prognosis for recovery.

I'll also remind Mr. Rosario while this case is not near the five-year statute, that the case is -- has under -- the court has under submission a dismissal of the action under 581 subdivision D of the Code of Civil Procedure. The court has not yet ruled on it, but that issue is whether Mr. Rosario has, in fact, abandoned these proceedings.

Now, it sounds as if he has not, but the failure to make appearances, should the Court find that this is a willful failure simply to stall or delay the case, may be grounds for good cause to dismiss this matter. The Court cannot keep continuing this case or rather delaying this case any further.

The Court has a schedule to accommodate, and Mr. Rosario needs to understand that there are only so many occasions when the Court can put this matter over and therefore inconvenience other counsel, defense counsel, the defendant, and anybody else who is involved with this case. Very well.

MS. NAVARATNASINGHAM: Thank you, your Honor.

MR. KEEGAN: Thanks, your Honor.

MR. REYNA: Thank you, your Honor.

THE REPORTER: Does anybody want this

transcribed at this point?

MS. NAVARATNASINGHAM: Yeah.

(The proceedings were adjourned at 10:06 a.m.)

---oOo---

CERTIFICATE

I, the undersigned, a Certified Shorthand Reporter for the state of California, hereby certify that the foregoing proceedings were reported by me, a disinterested person, and were thereafter transcribed under my direction into typewriting; that the foregoing is a full, complete, and true record of said proceedings.

Executed this 13th day of February , 2025.

LAURA AXELSEN, CSR NO. 6173

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In the Matter Of:

ROSARIO vs ABDELHALIM, ET AL.

CGC-21-594102

HEARING

February 18, 2025

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IN THE SUPERIOR COURT OF THE STATE OF CALIFORNIA

IN AND FOR THE COUNTY OF SAN FRANCISCO -

UNLIMITED JURISDICTION

BEFORE THE HON. GARRETT L. WONG - DEPT. 504

---oOo---

FRANCISCUS DYLAN ROSARIO,

Plaintiff,

vs. Case No. CGC-21-594102

SUBHI ABDELHALIM, INDIVIDUALLY,
and DBA SONOMA LIQOUR, DOES 1 TO
50,

Defendants.
_____/

REPORTER'S TRANSCRIPT OF PROCEEDINGS

Tuesday, February 18, 2025

REPORTED BY:

SANDRA L. CARRANZA, CRR, RPR, CSR 7062

Job No. J12424517

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---oOo---

1 SAN FRANCISCO, CALIFORNIA 9:30 AM
2 P R O C E E D I N G S
3 - - -
4 THE COURT: All right.
5 We are on the record in the matter of Rosario
6 versus Abdelhalim, and that's San Francisco Superior
7 Court No. CGC-21-594102.
8 Appearances, please.
9 Mr. Rosario.
10 MR. ROSARIO: Franciscus Rosario. Thank you.
11 THE COURT: Who is sitting with you?
12 MR. ROSARIO: Mr. Sobati.
13 MR. SOBATI: Kareem Sobati, Your Honor.
14 MS. NAVARATNASINGHAM: Good morning, Your
15 Honor. Priya Navaratnasingham for defendant.
16 MR. REYNA: Good morning, Your Honor. Alberto
17 Reyna for defendant.
18 THE COURT: Okay. I understand we have some
19 lawyers from the Dolan firm that are present in the
20 courtroom; am I correct?
21 MR. JESSUP: Yes, Your Honor. Jeremy Jessup
22 from Dolan Law Firm.
23 MS. LEVY: Kim Levy from Dolan Law Firm.
24 THE COURT: All right. And you are here
25 pursuant to a subpoena. I have not seen the subpoena.

So can you tell me why they're here? I assume they're Mr. Rosario's --

MR. JESSUP: Former counsel.

THE COURT: -- former counsel, and they're here on the basis of some subpoena that you issued?

MR. ROSARIO: Yes, Your Honor. You had mentioned that the providence of the 911 transcript CDs that were not passed to the defense, that you wanted me to prove to you where those were to be able to provide those. We had 911 emergency services send those to you and Dolan had a copy since 2021.

THE COURT: Okay.

MR. ROSARIO: So they are here to testify on that and provide those documents.

THE COURT: All right.

Counsel, do you have the -- I think it's the compact disc or recording that Mr. Rosario referenced?

MR. JESSUP: Your Honor, are you talking about the -- well, there's a bunch of things. We have, and was produced to defense counsel, body cam footage, about five videos, as well as the 911 audio, as well as the CAD log. In addition --

THE COURT: Okay. Sorry. I'm trying to take this down.

A body cam and what else did you provide?

MR. JESSUP: The 911 audio calls.

THE COURT: What else?

MR. JESSUP: And the CAD report. The CAD, C-A-D, report.

THE COURT: Right.

MR. JESSUP: Along with various other documents.

THE COURT: Okay.

MR. JESSUP: In addition, Your Honor, these documents were identified in discovery, and last February -- I have a copy of the Compaq subpoena issued by defense to San Francisco Police Department requesting all of this data.

THE COURT: Defense issued a subpoena?

MR. JESSUP: Correct. Now -- sorry, Your Honor.

THE COURT: Go ahead.

MR. JESSUP: Prior to current defense counsel's involvement, there was other -- another firm involved on behalf of the defense. All of that -- those items were served on them in the production for discovery as well at Mr. Rosario's deposition, in addition, utilized in the deposition of defendants. Whether or not prior counsel gave that to current counsel, I don't know.

THE COURT: Okay.

MR. JESSUP: Thank you.

THE COURT: All right. Ms. Navaratnasingham.

MS. NAVARATNASINGHAM: Yes, Your Honor.

So this is news to me. We didn't realize that prior to handling counsel may have received it, and I can't confirm whether that was produced. I take counsel's word, of course, but we -- I can represent to you that our office did not receive the 911 call until the day of the MSC -- the day before the MSC and that was an attachment link. There was no sort of ability to verify whether that was accurate or not.

And we were not present -- our office was not on the case when Mr. Rosario's deposition was taken either.

THE COURT: I see. Okay.

I think there are certain copies of some materials that have been submitted by Mr. Rosario. I think we did get a copy of a reply from someone with the custodian of records for -- it may have been the fire department. Am I correct?

You issued a subpoena, Mr. Rosario, for some documents, and they said they no longer have them. I think that was the response.

MR. ROSARIO: We were concerned, Your Honor --

THE COURT: No. I'm just asking you whether --

you issued a subpoena of which department, police department or the fire department?

MR. ROSARIO: The San Francisco Department of Emergency Management Services.

THE COURT: Okay. And their reply was, We don't have -- what was it that you were seeking? I don't have the item in front of me. I don't have the response.

MR. ROSARIO: Mr. Sobati was the one that served that subpoena.

MR. SOBATI: Yes. Should I tell you about that on the record, Your Honor?

THE COURT: I'm sorry?

MR. SOBATI: May I tell you about the subpoena, Your Honor?

THE COURT: Yes.

MR. SOBATI: We served it locally, Your Honor, in person, at the SF Department of Emergency Management offices at which time they were directed to communicate with the Court. And then they would not -- they would not be providing whatever they provide to the Court to us, so we are unawares of exactly what may be or may not be in your possession.

THE COURT: Okay. Thank you.

MR. SOBATI: You're welcome.

THE COURT: All right. I just opened an envelope from the San Francisco Department of Emergency Services and it's a declaration from the custodian of records which indicates that they received a subpoena duces tecum in this matter seeking production of the following records from the department: CAD -- that's CAD -- 210352080.

And CAD is spelled out as Computer Aided Dispatch information.

They explain that the Department's secure computer database is kept or stored for a minimum of two years in accordance with the California Government Code Section 26202, and they're unable to provide records created prior to February 5th, 2022. I assume that the incident involved occurred before 2022, given that this case was filed in 2021.

Okay. So the question that I have is, do you have the 911 audio calls, the CAD report, or the body cams, Mr. Rosario?

MR. ROSARIO: I have copies, digital copies that I downloaded from my former counsel.

THE COURT: Okay. I think that we'll need to turn them over to defense now. To the extent that there's some issue about its reliability or verify that it's a true and correct copy, I think defense should at

1 least have an opportunity to look at it. I mean, I
2 don't think there's any hint or suggestion of splicing
3 or changing the items, but, Mr. Rosario, you need to
4 turn that over as soon as possible.
5 I assume that the Dolan firm does not have in
6 its possession any of these items, correct?
7 MR. JESSUP: Not on my person, Your Honor, but
8 we still retain a copy of the file as well as the
9 electronic data and, in fact, in his file with regards
10 to --
11 THE COURT: "His" being?
12 MR. JESSUP: I'm sorry. Within the --
13 Mr. Rosario's file, a copy of which was provided to him,
14 there's actually correspondence from the department,
15 police department, providing links to the body cam
16 footage, but we still have maintained possession of
17 these documents, but they were electronically sent to us
18 as well.
19 THE COURT: By?
20 MR. JESSUP: By the police department and the
21 department of emergency management.
22 THE COURT: Is it at all possible that these
23 electronic documents or these documents, that may be in
24 electronic form, may be sent directly to
25 Ms. Navaratnasingham? Because it's just --

MR. JESSUP: Absolutely. Well, what I'll do is, I will direct my office to -- they'll be a link because they're so big, and it'll be the -- I just want to make sure we get it right -- all the body cam footage, the 911 call, as well as the CAD report. We can send to counsel, as well as plaintiff, a link that they can access.

THE COURT: Does that work?

MS. NAVARATNASINGHAM: That's acceptable, yes, Your Honor.

THE COURT: Okay. Look, unless there's some issue with regard to the reliability and validity of these documents, the only issue that would remain is whether they are, in fact, logically relevant and legally relevant in the courtroom.

So I would like to release counsel this morning, from the Dolan firm, given their representations that they're going to provide that material.

How soon do you think you can get to it?

MR. JESSUP: As soon as I get back to the office, I can probably get it out within 20 minutes or 10 minutes.

THE COURT: Okay. Very good.

So we'll have that done today, given counsel's

representation, and then we can address the admissibility of those items later.

So, Mr. Rosario, please understand that in terms of whether or not they're authentic or not, the Court is inclined, unless there's some real concern raised by the defendants, is inclined to overrule any objection as to authenticity. However, there is still a question about whether or not its pertinent to the case either substance-wise or whether there's some other policy which would prevent it from being admissible under Evidence Code Section 352.

MR. ROSARIO: Understood, Your Honor.

There are several confessions by the defendant there, so I believe it's absolutely --

THE COURT: Well, sir, confessions are not -- that term is not used in a civil case.

MR. ROSARIO: I apologize. Excited utterances of fault.

THE COURT: If you don't understand what that term -- what the legal significance of those terms are, please don't use those terms.

MR. ROSARIO: Okay.

THE COURT: The Court adheres to evidentiary rules very strictly. You are likely to have an objection overruled if you cite the wrong objection.

1 All right. Thank you for coming in, sir.
2 MR. JESSUP: Your Honor, would you like me to
3 send or include the clerk on the e-mail to counsel?
4 THE COURT: No. I don't think that that's
5 required yet. It's an issue about admissibility.
6 They'll have to be printed out at some point for
7 purposes of keeping a good record. We don't digitally
8 retain evidence, as far as I understand, in this Court.
9 We don't digitally retain it. Goodness, I think we
10 would have warehouses to store the electronic evidence
11 as well.
12 So, in any event, I appreciate you making that
13 available, and what we'll do is, we'll just wait until
14 all the parties have the materials so we can take a look
15 at whether these documents are, in fact, admissible.
16 MR. JESSUP: Absolutely, Your Honor. I will
17 get right on it so not to delay the Court any further.
18 But I did see madam court reporter had her hand
19 up. Before I leave --
20 Yes, ma'am?
21 THE REPORTER: I need your cards, please.
22 MR. JESSUP: May I approach, Your Honor?
23 THE COURT: Yes, sir.
24 MR. JESSUP: Thank you.
25 THE COURT: Thank you for coming in this

morning.

All right. The next thing on our agenda, I believe, is a motion to continue this case.

Mr. Rosario.

MR. ROSARIO: Yes, Your Honor.

In light of the fact that we have been having difficulty getting the providence of this 911 record and extreme prejudices caused in my case, I'd like to note that, please, in your consideration of the continuance, sir.

THE COURT: Okay. Well, the way your discovery -- your continuance request was framed was that it's two grounds. One, was an ADA request, and the Court will indicate that we fielded an ADA request on February 7th, 2025. We don't consider it an ex-parte because there really wasn't anything that is tied to the substance of the case. It's simply a procedural matter which, if you want to call it that, it's an American Disabilities Act accommodation, and the Court, I believe, granted all the requests.

However, I believe defense counsel is entitled to see the request and we'll make arrangements to provide that to defense counsel.

MR. ROSARIO: Your Honor, I provided a black book with the details of my medical discharge papers or

aftercare from the --

THE COURT: That's not what your request was, sir. Your request was for the Court to allow you to use a laptop or electronic computer here. I don't have the request, so I'm working back a week or so, and I think the Court's distinct recollection of this was that you may use electronic equipment in the courtroom that belongs to you. The Court will not supply any electronic equipment to you. The Court does not have the capacity to provide that kind of equipment to you.

Further, you asked if Mr. -- I think it was Mr. Sobati, who is present today, and Mr. Keegan, who was present on February 3rd, to be present to assist you. I don't know if that was extended to your wife, but the Court will allow those three individuals to assist you.

And I think the other request was for frequent breaks which the Court doesn't have any issue with.

MR. ROSARIO: Thank you, Your Honor.

THE COURT: But that's your ADA requests. That will not be a cause for a continuance.

The second item which you are requesting is a continuance based on a request to continue discovery. I'm not quite sure what -- or continue the trial for discovery, and I'm not quite sure what specifically,

other than this 911 recording, that you need in order to proceed with your trial.

MR. ROSARIO: There is a number of other pieces of evidence that were -- as we already established -- that were kind of a surprise to me such as the body cams. Only had a matter of weeks. I have not been able to go through them.

Also, we found an eyewitness that was in the body cam and we've not been able to reach that eyewitness to be able to bring them in. I believe that has been very, very difficult. The eyewitness is in Louisiana now, who saw the collision firsthand and --

THE COURT: Let me just interrupt you, pardon me, Mr. Rosario, but your prior counsel, as represented by the lawyer that was in the courtroom this morning, and I don't recall his name, but he said that all this material was handed over to you. This would be the body cam, the 911 audio calls, the computer-aided dispatch report, so I'm not quite sure what you mean by being surprised by this material.

Now, if you received this material and you discovered somehow that there was a witness, and I'm not quite sure how you would find the witness unless you have the material, how that is a basis for discovery -- for a continuance.

MR. ROSARIO: There's more than that, Your Honor.

THE COURT: Go ahead. Tell me what's more here, but I'm just pointing that out.

MR. ROSARIO: Okay. We wanted to depose the witness as well as depose some of the police officers who were at the scene. I have not been able to be given that chance since I took over the case, and there's severe prejudice to me, because there's questions that need to be asked of the police officers that were not asked and that are relevant, absolutely relevant to the police officer's body cam. There's a lack of information that was not disclosed in there.

Those depositions are going to be absolutely critical for me to move forward and be able to try this case. I was denied that opportunity because the information was completely concealed from me.

I never received any access to any of the videos or 911 tapes before the moment they had sent me a hyperlink to download it, and it took me quite a while, Your Honor, to go through thousands of files, and they were buried very deeply. And I didn't even know that there was even 911 or body cam videos until they were pulled up, and I believe it was in December, and we were already like days away from the MSC conference, and I

1 was completely surprised, Your Honor. I have multiple
2 witnesses that will verify this. There was no prior
3 mention and that's in this pink book, your Honor.
4 I have the evidence to show that there is no
5 prior mention whatsoever before almost mid-December of
6 me having any knowledge of the 911 records and several
7 of the details in the video, and I have not been given a
8 chance to depose those individuals, which are absolutely
9 fundamental to the causation for this case, as well as
10 witnesses who were on the scene that were not recorded
11 in the police report.
12 There's actually an eyewitness that reported to
13 the police that he saw the incident; yet, that was not
14 recorded in the police report.
15 THE COURT: Well, something just struck me.
16 You did announce you were ready on January 27th of this
17 year, you were ready for trial, so if you knew about
18 this material in December, why is it that you announced
19 that you were ready on January 27th in front of the
20 presiding judge in this court?
21 MR. ROSARIO: I made several attempts to get a
22 continuance through ex-parte. I failed to secure that,
23 and then I was told that there were no more
24 continuances. Every time I made an attempt, Your Honor,
25 I was referred to come back to you to trial. So I was

1 under the presumption that I was going to figure out how
2 to get a continuance from you due to the surprise of
3 this information.
4 THE COURT: Well, the rules of -- the local
5 rules of our court require you to seek the continuance
6 from the presiding judge, and there are various steps
7 that you must take, whether they're ex-parte or not,
8 that you must follow, and they would not send you out to
9 my department unless you announced that you were ready
10 to proceed.
11 And I'll ask defense counsel, do you remember
12 what the representation was in Department 206 when the
13 case was called?
14 MR. REYNA: Yes, Your Honor. The plaintiff --
15 THE COURT: Why don't you announce your
16 appearance, please.
17 MR. REYNA: Yes, Your Honor. Alberto Reyna on
18 behalf of defendant.
19 The plaintiff represented on January 27, which
20 would have been the first day of trial or the morning
21 thereof, that he was ready for trial to the presiding
22 judge.
23 MR. ROSARIO: I was unaware that when the judge
24 tells me there's no continuance unless there's a severe
25 situation that I can ask for another continuance.

Unfortunately, I had agreed to the stipulation, Your Honor. That did not include that there were going to be no continuances. It was handwritten in by a judge. I believe the Judge East handwrote in that there's no continuances allowed.

The stipulation I signed, Your Honor, was to agree that I would -- that it would just extend because the defense had a witness who was out of the country. And then suddenly I'm here. Oh, great. I'm not allowed this.

So I tried every mechanism I could to ask for a continuance prior to the trial and, finally, once the eve of the trial is here, I'm being forced to go into that.

So, I mean, what do I do? If I -- I don't know. If I say I'm not ready for trial, does that mean they win by default? I'm not sure. So I just had to essentially throw myself in the mercy of the Court to try to figure out how to approach this correctly.

There's a lot of conditions around here that not only was I surprised, my health has been continuously degrading.

(Reporter clarification.)

MR. ROSARIO: My vision has been going out on me, Your Honor. I'm having difficulty with my left eye

and it's very difficult; it's going in and out of focus.

THE COURT: Well, sir, the order granting Mr. Abdelhalim's request for continuance was granted on September 17, 2024. It was not Judge East who signed off on it, but it was the prior presiding judge, Judge Massullo, M-A-S-S-U-L-L-O. And it said in pertinent part: It is hereby ordered the trial in this action currently set for September 23rd, 2024 be continued to January 27, 2025 at 9:30 a.m. in Department 206.

Number two: It is hereby ordered that all trial-related deadlines, discovery-related deadlines, including both expert and percipient witness discovery will be based on the new continued trial date as ordered by the Court.

Number three: All further requests to continue the trial date must be by noticed motion. This shall be the final continuance, except -- absent exceptional cause.

And then there are instructions about how to proceed with this matter and, yes, number three was handwritten, but that is within the province of the presiding judge.

So if you missed certain dates or you failed to follow certain rules laid out by the Code of Civil Procedure with respect to discovery, you didn't follow

it.

I don't know why -- I don't understand what the exceptional cause is here that allows me to grant a continuance based on an inability to look at some discovery that appears to have been in your possession as of December, and if there was something that you discovered in December, it seems to the Court that, frankly, you should have asked or moved for a continuance or called opposing counsel right away to say, look, I just found this material and I need additional time. Will you please agree to a further continuance; otherwise, I have to go into court to ask for a continuance from the presiding judge.

And I'm going to ask Mr. Reyna what the remarks were in December, if any, from Mr. Rosario regarding discovery.

MR. REYNA: Your Honor, the Court never heard his applications due to procedural issues with his applications, and so each time the Court just didn't hear his application requests.

THE COURT: Okay. So they were never considered by the Court, Mr. Rosario, so I guess somehow you missed some procedural guideline here or step in order to get it in front of the presiding judge for a continuance, so I'm not quite sure what you want me to

do here, since I have to follow the rules, too.

MR. ROSARIO: Yes, Your Honor. Well, I can provide you with, in the binder, Your Honor, the instances of where I had communicated with PSA law.

THE COURT: Who is PSA law?

MR. ROSARIO: The defense.

THE COURT: Oh, I see.

MR. ROSARIO: I provided a list of every single communication I had with them. I'm not an attorney, Your Honor, of course, I'm pro per, and I'm doing my best to abide by the procedure here. And so I highlighted and provided every e-mail that was ever sent by myself to them, with a date and the month, as well as the information that was in there.

And if it please Your Honor, I do need a little recess. My spine is starting to hurt me right now.

THE COURT: Is there something in here which you can point to, before we take a recess, which will aid the Court in assessing what attempts you made --

MR. ROSARIO: Yes.

THE COURT: -- to request a continuance? Is there a particular e-mail or date? You have it tabbed by month and date.

MR. ROSARIO: Yeah. There was an e-mail here on Friday, December 6th that was also sent, and there

1 was a mandatory settlement conference, and I know
2 they're not allowed to give me legal advice, but I
3 voiced that I did not have all of the evidence yet and
4 I --
5 THE COURT: Well, okay. So you're pointing to
6 something that you wrote on December 6th?
7 MR. ROSARIO: Yeah.
8 THE COURT: Was this the e-mail dated
9 December 6, 2024 at 9:43 a.m.?
10 MR. ROSARIO: Yes, Your Honor.
11 THE COURT: Can you point to a page? It's
12 apparently a five-page document and there are some other
13 pages that follow. Is there something that you want me
14 to look at?
15 MR. ROSARIO: The first page at the bottom,
16 that I have not been able to collect the essential
17 evidence, and I've asked -- I kept on asking in prior
18 e-mails -- I continued to ask the defense whether they
19 had knowledge of these things and they were just pretty
20 much stonewalling. They wouldn't make any
21 acknowledgement of the videos, 911 call records, and I
22 was completely surprised when we got the motion in
23 limines.
24 I was under the impression, as Dolan had
25 already testified, that they had them, and so I kept on

1 spending all this effort and time trying to figure out
2 why the defense was continuing to claim they never had
3 anything, when I was informed by my -- I guess now that
4 they have it. I presumed that Dolan had done their job,
5 and the defense continued to claim that they had never
6 had these things.
7 So I was in this kind of like catch-22 loop
8 trying to figure out why these guys keep on denying this
9 over and over and over, and then they testified under
10 penalty of perjury that they never heard about it, and
11 I'm just completely aghast that the defense continues to
12 make these claims for months. And then we get to trial
13 and they continue this game of saying, oh, we don't know
14 about anything. It's caused me so much energy and
15 effort, I'm completely worn down by trying to figure out
16 why the defense would be lying to the Court. And it's
17 caused me so much time. I didn't know what to do when
18 the defendant is being dishonest about what's been given
19 to them.
20 I'm sorry, Your Honor. It's just -- I didn't
21 know what to do. I tried to ask -- I didn't know how to
22 do this, and my attorney decided that, you know, what --
23 I didn't fit into their equation, so they wanted me
24 out -- they wanted me to settle with these guys
25 beforehand. So here I am. I'm here because they told

me that they didn't have any idea about it. Under penalty of perjury, they said they had no idea about it. They've had absolute access to that for months, and they continue to deny me about that. They were provided transcripts, they were provided images; transcripts were provided where they actually acknowledged that their defendant called 911; yet, they claimed no knowledge of these things, and I didn't know what to do when somebody is flat-out lying to my face.

I'm extremely upset. It's caused severe trauma and stress to me to try to figure out why a law firm, including this backing of AAA, would be continuously lying over and over and not -- it's upsetting and it's caused me everything.

I have not been able to do this. I don't know how to ask for a continuance when the defense just flat-out denies something, and I know this is how their tactics are. It's obvious. But you know what the thing is, it's not fair to me. The amount of effort I've had to do to try to figure out why they continue to say that they lack something. I've spent hours and hours of time in trying to figure out, how do I force them to acknowledge it before trial, and here we are at the trial, and I spent all my time just trying to even get the most basic piece of information on the table, and

1 they continue to deny it. Under penalty of perjury,
2 they continue to say they had no knowledge of it.
3 And what am I supposed to do? I can't control
4 somebody else's statements. I don't know what to do in
5 the face of something like that, Your Honor, when you
6 believe that we're being, you know -- their candor to
7 the tribunal saying that we're supposed to come forward
8 and be honest about what we know. And when somebody
9 says we don't have it, I start scrambling to try to
10 figure out why they don't have this.
11 And Dolan is not communicating with me because
12 they wanted me to settle. These guys are denying they
13 even had it. I spent all this effort, time, and money
14 and energy trying to sort that out. That consumed my
15 time, Your Honor, just the simple fact of causation.
16 And they denied it all the way to this point. You know,
17 whether that's their mechanism of wearing a person down,
18 it's not fair to me.
19 THE COURT: Okay. We are going to take a
20 15-minute break. We're going to allow defense counsel
21 to review the materials that you submitted to the Court,
22 specifically the December 6th, 2024 e-mail.
23 I think one of the questions I have for defense
24 counsel is, if there are depositions where these
25 materials were shown, did that raise any question in

1 your mind as to their pertinence? He certainly thinks
2 that they're relevant to the proceeding. I don't know
3 if they are or not.
4 The question is whether or not there was an
5 accident that was caused by their client and so forth,
6 whether that extends to his injuries and so forth.
7 So I haven't allowed you to say very much, or
8 rather, you haven't said very much so far, but I would
9 like for you to address those issues since Mr. Rosario
10 has made a number of accusations which apparently impugn
11 your integrity and I'd like to hear some response from
12 you.
13 Okay. So we'll be back at 10:30. Thank you.
14 (Recess taken.)
15 THE COURT: We're back on the record in the
16 matter of Rosario versus Subhi Abdelhalim, and counsel
17 is present for defendant, and Mr. Rosario is present
18 with Mr. Sobati.
19 All right. So I wanted to give either
20 Mr. Reyna or Ms. Navaratnasingham an opportunity to
21 respond to the remarks by Mr. Rosario. This is all in
22 the context of a motion to continue by plaintiff.
23 MS. NAVARATNASINGHAM: Yes, thank you, Your
24 Honor.
25 Your Honor, yes, we went through and reviewed

1 this December 6th e-mail that Mr. Rosario has referred
2 to and the e-mail is pretty consistent with, you know,
3 our motion in limine.
4 The e-mail has general statements of AAA's
5 tactics to delay the matter and our tactics to delay the
6 matter. I don't see anything specific in this e-mail
7 with reference to the 911 calls, and I don't see any
8 reference in here to a request for a continuance, number
9 one.
10 Number two, with reference to his allegations
11 of us lying, I'm not -- we did not -- so our motion in
12 limine to exclude the 911 call and there was, like, a
13 call statement or a call log was very specific to those
14 two items, and I am representing to this Court that we
15 did not have those two items until the day of the MSC
16 and those items were produced in connection with the
17 settlement to the settlement officer.
18 Now, if Mr. Jessup, who was here this morning,
19 his prior defense counsel, said that he produced those
20 links, okay, and he's going to produce those links to
21 me. I believe this Court, when you granted our motion
22 in limine, you did so without prejudice subject to that
23 discovery being produced.
24 And here again today the Court ordered
25 Mr. Jessup to provide me with the links, and I believe

1 you cured Mr. Rosario's concern. There's no prejudice
2 here.
3 I have -- I'm going to get the links presumably
4 today for the 911 call, and so I believe this Court has
5 already cured that concern and there is no prejudice to
6 Mr. Rosario on that end.
7 We also reviewed the deposition transcript.
8 Again, we were not counsel when Mr. Rosario was deposed,
9 but we reviewed the deposition transcript very quickly,
10 Your Honor, and there were no exhibits attached to the
11 deposition transcript.
12 The only reference to a 911 call is Mr. Rosario
13 testifying that the police arrived after 911 was called
14 by my client.
15 During the deposition, it appears that
16 Mr. Rosario produced some photographs and pay stubs.
17 That's the extent of that.
18 The responding officer has been deposed, Your
19 Honor, by Mr. Dolan's office -- or excuse me -- yes,
20 Mr. Dolan's office. The officer who prepared the
21 traffic collision report has been deposed. Mr. Dolan
22 was present at that deposition. Again, the exhibits to
23 that deposition were the traffic collision report and
24 some -- a photograph of the scene.
25 The traffic collision report, which we also

quickly reviewed, only makes references to photographs, which we have. It does not reference a 911 call or a call log and that is the -- that was the subject of our motions in limine, but, again, I'm not sure why we are still discussing this because I believe the Court cured Mr. Rosario's concern of prejudice because he's -- he's allowed counsel to produce it to me. And if there's issues regarding relevance and all that, we bring it up, you know, later on down the road, but I do not believe that's grounds for continuance.

THE COURT: Okay.

Mr. Rosario.

MR. ROSARIO: Yeah, I disagree. You know, it's convenient that they didn't acknowledge it, but the thing is that there was multiple other pieces of information, just not just the 911, for which I'm asking for the continuance, your Honor. The 911 was the predominant one that they claimed that they had no knowledge of, even though the defense had cited multiple times that he had called 911.

They even sent me an image of the defendant's phone records and this was absolutely under contention, and then they went on ahead to say, oh, we have no knowledge of it. You know, I can't imagine that they didn't read their own client's deposition. He was

1 deposed and he mentioned this. So this information has
2 always been available to them.
3 It cost a huge amount of time for me to try and
4 figure out how to compel people to the admission of the
5 911 record. This denial and this delay is very
6 convenient for them to try and say that, oh, it's been
7 resolved, on that particular issue maybe but not on the
8 rest of the other discovery that's still outstanding
9 that they have also still denied.
10 THE COURT: Well, I don't understand. If they
11 are saying that there's no issue with the
12 authenticity -- let's assume that they say there's no
13 issue with the authenticity of these items and you offer
14 them in trial and they object on some other grounds that
15 they're not relevant or something to that effect. How
16 are you harmed?
17 I don't understand where the prejudice is that
18 would be the basis for your continuance. You have the
19 materials. You can offer them in trial. And they have
20 a right to object on whatever legal grounds they believe
21 is permissible, and the Court will rule on whether or
22 not that objection is to be sustained or overruled.
23 So what's the harm here that would be the
24 reason for a continuance? I don't understand. Or what
25 am I missing here?

1 MR. ROSARIO: There are -- there are specific
2 witnesses that have been denied to me and access to
3 depositions, and without being able to have a little bit
4 more time to depose these individuals, I'm not -- I'm
5 going to be extremely prejudiced to be able to rely on
6 their testimony or impeach them. And I was only given
7 the files, Your Honor, literally, Here. Download it
8 yourself. You know --
9 THE COURT: Who said that to you?
10 MR. ROSARIO: Oh, Dolan law firm, my former
11 counsel, Your Honor.
12 THE COURT: But wait a second --
13 MR. ROSARIO: I got access to that, Your Honor,
14 and when you find something, you immediately tell the
15 other counsel, right? And they're like, oh, it's too
16 late to give it to us. And I'm, well, you know, that's
17 what you call surprise. It's the prejudice. I didn't
18 know these things. I have not been able to prepare any
19 kind of -- my case against this information.
20 Dolan admits that I didn't have that. They
21 only gave it to me when they were -- when they were
22 substituted as my counsel. I have not had adequate time
23 to even look at the data or even do a deposition of the
24 witnesses that were there. If that's not the definition
25 of prejudice due to surprise, I don't know.

MS. NAVARATNASINGHAM: Your Honor, may I quickly respond to that?

Mr. Rosario has been pro per since August of 2024. And I believe that the last time that we were -- at one of the hearings that would have been before Your Honor, I believe he said he only opened the file in December of 2024. That's not cause for a continuance here. You know, discovery is closed. This case has been pending for almost five years. He's been pro per since August of 2024. Presumably Mr. Dolan gave him the file at that point, and, again, I'm not sure -- as Your Honor said, I'm not sure what prejudice there is. Your Honor is allowing him to try to introduce the 911 record for a call recording, so ...

MR. ROSARIO: Discovery actually was open until the 27th of December, not the MSC.

MS. NAVARATNASINGHAM: Correct. But discovery is presently closed. That's what I'm saying.

MR. ROSARIO: Right. So when somebody finds something in mid-December, believe it or not, Your Honor, and they say, hey, let's have a meet-and-confer about this, and the defense denies and refuses to communicate with you about it or even acknowledge it, what do you do? Which I tried to establish that, hey, this information that you guys have, too, we are going

1 to talk about this during the trial. Nothing. And when
2 we get here, they want to block it. So I'm at this
3 place where I'm saying, okay, but you're right about me
4 having the files transferred to me in August. I'm not
5 an attorney. I was homeless. I lost my work and my
6 home because of my inability to work. I did my best,
7 and then the moment I found it, Your Honor, I
8 communicated saying, here, there's a 911 record. But
9 that does not mean that I was -- you know, had ample
10 time to look through that. Those files were only
11 located -- I can share the files, tree structure; they
12 are down about 12 levels, and I had to go through every
13 single one. There were thousands of records. So,
14 again, this is not my fault. But the Court would
15 understand if you found something in your garage like a
16 bloody knife and somebody from the neighborhood had been
17 killed, you're like, whoa, wait, hold on a second.
18 So I'm trying to find out how I can make sure
19 that I have the appropriate time now that we are here at
20 this point. I knew that the -- I had to triage which
21 are the most important pieces. There was a lot of
22 discovery, Your Honor, that's very important to my case.
23 The defense has asked for numerous
24 continuances. They even went as far as me waiting three
25 months for one of their witnesses. The fact that I can

1 just have a short time just to get the simple basics to
2 go forward, it absolutely serves the defense to be able
3 to press the matter and try to force it into trial when
4 I don't have the information. And, unfortunately, I
5 stipulated, out of kindness, that they would be
6 available and get one of their witnesses back that they
7 said was so important.
8 I'm feeling that not only my medical condition
9 and also the fact of the surprise warrants the ability
10 for me to just get a short time to be able to depose
11 these individuals. As you already know, I'm very
12 proactive in that. I took it upon myself to subpoena
13 Dolan to make sure that the records were going to be
14 brought and be available, and I ensured and guaranteed
15 to the Court that I'm going to approach it with the same
16 gusto. I'm not looking for a long continuance. I'm
17 just looking for enough time, Your Honor, to reopen
18 discovery and make sure that the pertinent relevant --
19 the information and the evidence that's relevant gets --
20 can be put in front of the jury.
21 This absolutely serves the defense, to block
22 it, because, hey, Mr. Rosario just got these things,
23 he's very surprised about it; let's go to trial before
24 he gets time to get his feet under him.
25 THE COURT: Well, again, I don't see the

defense, as you put it, blocking this information. You are welcome to try and have these items admitted at trial.

MR. ROSARIO: Okay.

THE COURT: It's subject to basic rules of evidence, so I don't see that as an issue, and you haven't explained to me how you're prejudiced other than to say, well, I got these materials in December and there appears to be something in those materials that I want to investigate further.

Had that been the case, I think the retort by defense counsel is, well, then you need to file a written continuance and have it heard by the presiding judge in Department 206. It doesn't sound like you did that. That's the rule.

MR. ROSARIO: That's not -- actually, on December 11, I believe, also, I had notified them that I was looking at -- deeper into the video cameras.

THE COURT: Who would have --

MR. ROSARIO: The defense, the PSA law. I notified PSA law that I was looking deeper into the video cameras after locating an eyewitness who testified during the video camera, and unfortunately, I went multiple times to the police department to try and adjust what happened, because I found a second audio

1 record that testifies that it was a hit-and-run, and I
2 kept on going back to the police department trying to
3 adjust that, you know, and I wasn't able to get any --
4 it's called a -- it's not an amendment, but it's a --
5 there's an original police record and they accepted more
6 information, because they had not known about that, but
7 they modified the police record, but they did not modify
8 it to show that there was a 911 call.
9 I was trying to make a statement to the police
10 about what -- that the crime that actually had been
11 committed, the hit-and-run. The man hit me with his
12 truck, drove off, walked back, and offered me money.
13 None of that made it into the record, and I have been
14 trying -- my attorney had said, Hey, you had an
15 opportunity to do that. And I said, oh, you mean, I can
16 actually alter a police record?
17 He said, yeah, you just have to go down and
18 make a statement. I actually have multiple -- multiple
19 times I actually went with Mr. Sobati, Mr. Keegan, to
20 the police department to establish that there was more
21 information that needed to be disclosed as well as try
22 to communicate with the police officers.
23 THE COURT: Did you go to Department 206 to
24 make a request?
25 THE WITNESS: Yes.

THE COURT: By way of writing?
THE WITNESS: Yes. I made ex-partes.
THE COURT: You made ex-partes, and I assume by doing the ex-partes, you had to notify the Phillips law firm?
MR. ROSARIO: Yes.
THE COURT: And you did that, correct?
MR. ROSARIO: Yes, Your Honor. They were given multiple proof of services and all those things were notified to them.
THE COURT: What did Department 206 tell you?
MR. ROSARIO: I didn't know the procedure very well, so I continued to fail on getting one piece or paper or something like that. Finally, we did get to one, and Judge Quinn said, You're really close to your trial. You should meet up with your -- with the judge that's going to be presiding over your case.
THE COURT: Okay. And then your trial date was on January 27, 2025?
MR. ROSARIO: Yes, Your Honor.
THE COURT: And you represented at that time that you were ready for trial; am I correct? At least that's what Mr. Reyna says.
MR. ROSARIO: Was I ready for trial?
THE COURT: Yeah.

MR. ROSARIO: Would not being ready for trial mean that I'd give it up?

THE COURT: No.

MR. ROSARIO: Oh, I had no idea about that. I didn't know I had a choice. I was told that there was no continuances, and I was forced to come here even whether I was ready or not. I had no idea.

I'm not a -- they didn't say, hey, by the way, if you don't have your evidence, you can ask for another continuance even though the judge says you can't ask for another continuance. I was, like -- I thought I was forced into the trial.

If I had known that there was a way that I could say, hey, I am not ready yet, I need more time, I'm sure the defense would have probably filed for an objection. They want me to go into trial without my evidence. Absolutely. It's absolutely to their advantage.

THE COURT: They're not saying -- they're not preventing you from having the body cam, the 911 audio calls, and the CAD report --

MR. ROSARIO: Okay.

THE COURT: -- being considered for admission. All right. They're not questioning the authenticity in the documents.

The question for admissibility, the second step, is to determine whether they are logically relevant; that is, they touch upon some issue in the courtroom, in the trial, that's tied to your complaint, and if not, then the Court may very well say the objection is sustained.

MR. ROSARIO: Your Honor --

THE COURT: If not -- if it's related, and I will -- it's for me to be that gatekeeper for evidence in this case.

MR. ROSARIO: Your Honor, I'm going to be extremely explicit. I found the evidence of two new witnesses in December, one who saw me get hit with the truck, another one who saw the hit-and-run. And I have not had time to get them to depose them or get in contact with them because I found them in mid-December. I had less then 30 days and discovery closed, and they denied -- started denying that the 911 even existed, so I'm absolutely prejudiced against being able to get the witnesses who saw me literally almost get killed in the street by the defendant, and the other person who drove by seeing the defendant flee from the scene.

So I'm not going to say, anything other than that there were eyewitnesses, I discovered them in December, and I'm asking for a continuance to find those

1 people and depose them, please, Your Honor.
2 THE COURT: Okay. Any final comments?
3 MS. NAVARATNASINGHAM: I had two comments, Your
4 Honor, and now I'm forgetting them because so much has
5 been said.
6 Well, I mean, we oppose the continuance. He's
7 been pro per since August. He's had the file since
8 August. According to Mr. Jessup, the body cam footage,
9 the 911 call, all this stuff has been in his possession
10 since August.
11 The motion in limine that I filed was saying
12 that the 911 call was not produced in the normal course
13 of discovery. Your Honor has cured that concern of his,
14 and you are allowing him to present that and subject to
15 relevance and other objections.
16 You know, the identification of late witnesses
17 is not grounds for a continuance. You are free to call
18 a witness to testify at trial. You don't necessarily
19 have to take a deposition. You know, you can list
20 people on your witness list. None of this is cause for
21 a continuance.
22 And so we, of course, object and would like to
23 select a trial date.
24 THE COURT: Very well.
25 Anything else, Mr. Rosario?

1 MR. ROSARIO: Yes. Because of the
2 inconsistencies of the police report that did not show
3 that, I guess I'm going to have to cross-examine the
4 officer who failed to put the eyewitnesses in there
5 during trial; is that correct?
6 THE COURT: Yes, you may do so.
7 MR. ROSARIO: Okay. Well, then, are there
8 other pieces that I have not been --
9 I believe medical records and --
10 MR. SOBATI: We have multiple --
11 THE COURT: Let's stick to the motion for
12 continuance first.
13 The admissibility of anything else is the
14 second consideration for documents, and whether they're
15 authentic or not, that's the second -- a different kind
16 of concern for the Court.
17 The Court is only concerned -- only interested
18 at this time in the grounds for the continuance. As far
19 as I understand it, you are requesting a continuance
20 based on the issue with respect to your medical
21 condition which the Court has granted in whole. There's
22 nothing here to prevent you -- based on what the Court
23 understands, we'll accommodate you completely, other
24 than to say that any electronic equipment you bring will
25 be yours, not the Court's. The Court does not have the

1 ability to provide you with laptops, printers, and so
2 forth.
3 Second, you are asking the Court for a
4 continuance based on what you have discovered within
5 your own materials, which you, apparently, have had
6 since August of 2024, and that includes two witnesses
7 who may have said something or saw something with regard
8 to your accident. You do not have a name and you have
9 been unable to get the name, but more importantly, the
10 discovery deadlines -- trial-related deadlines,
11 discovery-related deadlines, including percipient
12 witness discovery, expert discovery, having been based
13 on the January 27 trial date and that is contained in an
14 order that was issued granting the continuance by Judge
15 Massullo --
16 MR. ROSARIO: Your Honor, may I ask one
17 question here?
18 THE COURT: Not yet.
19 MR. ROSARIO: Sorry.
20 THE COURT: -- on September 17, 2024. And if
21 you discovered this material in December, you may have
22 sought relief from the presiding judge, but it appears
23 that -- how many efforts you made -- it was rejected by
24 Department 206, the presiding judge's courtroom or staff
25 or judge. Specifically the judge said that you did not

1 handle the matter procedurally. Correct?
2 Correct?
3 MR. ROSARIO: Those -- that last statement is
4 correct, Your Honor. The discovery of the -- of what my
5 attorney handed to me in August, the files, just like
6 President Joe Biden had a bunch of files when he was
7 president, or Donald Trump when he went home. He didn't
8 know there was stuff in the box and when he found it
9 months and months later, he then was aware of those
10 things. This is a common thing when somebody gets
11 something handed to them. That type of discovery, it
12 really changed the entire understanding of my case and
13 being press- -- pushed into this knowing that the judge
14 had said no more continuances.
15 What I believe would be fair, you know, is that
16 at least up to two to three weeks for me to be able to
17 prepare the proper information. I've been literally
18 running on -- like on a gerbil's cage trying to figure
19 out how to get this basic download done, let alone the
20 other pieces of information that I found when I got that
21 from my attorney, and that's obviously something I can
22 take up with my attorney in a separate matter.
23 The fact that they concealed those things from
24 me -- I mean, the fact that I wasn't even told that
25 there was eyewitnesses and confessions inside 911 calls

1 for four years, that's pretty disturbing. You can
2 imagine how you feel when you get to a trial, your
3 attorney dumps you if you don't take a settlement, and
4 instead you find, quite literally, a smoking gun like a
5 murder weapon.
6 So at this point right now I am going to
7 continue to state it, that I'm absolutely prejudiced.
8 This is going on the record. So when somebody finds,
9 quite literally, this type of information, they haven't
10 even been able to prepare a case about that, let alone
11 be able to get it together to be able to depose
12 people -- Your Honor, I found it literally days before
13 discovery closed. So yes, thank you very much for the
14 accommodations on the medical, but the foundation from
15 which somebody is surprised if they find murder weapons
16 or these types of things out of surprise, just like
17 Donald Trump said, Hey, I didn't know what's in those
18 boxes, you don't have the time to go through it.
19 THE COURT: Very well. Anything else?
20 MR. ROSARIO: Thank you, Your Honor. I
21 appreciate your consideration.
22 THE COURT: All right. Thank you.
23 Anything else?
24 MS. NAVARATNASINGHAM: No, Your Honor.
25 THE COURT: All right. The motion to continue

is denied.

An in propia persona litigant is held to the same rules of procedure as an attorney. The case is entitled Burnete, B-U-R-N-E-T-E, versus La Casa Dana, D-A-N-A, Apartments, a 2007 decision, 148 Cal.App.4th, 1262, for the pincite of 1267. Further, self-represented litigants are held to the same standards as attorneys and must comply with the rules of civil procedure.

Kobayashi, K-O-B-A-Y-A-S-H-I, versus Superior Court, 2009 decision, 175 Cal.App.4th 536-543.

And finally, "A doctrine generally requiring or permitting exceptional treatment of parties who represent themselves would lead to a quagmire in the trial courts. It would be unfair to the other parties to litigation." And that is a quote from Rappleyea, R-A-P-P-L-E-Y-E-A, versus Campbell, 1994 decision 8 Cal.4th 975 with a pincite of 984-985.

The Court does not find in this instance that there's sufficient grounds to grant a continuance.

The Court does not find that surprise under 473 of the CCP is a sufficient basis, given the facts that have been discussed this morning with respect to the basis for a continuance.

Again, on those two requests the motion to

1 continue is denied.
2 The Court will further point out that the Court
3 is not preventing plaintiff from seeking to have
4 admitted the items that he is concerned about and
5 expressed several remarks about a body cam, 911 audio
6 calls, a computer-aided dispatch report, which,
7 apparently, were provided to him in August when he
8 transitioned from Mr. Dolan's office to his in propia
9 persona status.
10 The Court is not, as he would frame it,
11 blocking him from seeking the admission of any of these
12 items unless there's some concern about the authenticity
13 of these items.
14 The Court is willing, based on the
15 representation of Mr. Jessup, J-E-S-S-U-P, of the Dolan
16 office to allow an agreement for authentication here
17 subject to some unexpected claim about the nature of
18 whatever is being submitted, and that applies to many of
19 the -- in fact, all of the items I just mentioned.
20 Now, with respect to medical records, the Court
21 will address those in a moment.
22 But in any event, the Court is not blocking
23 defendant -- or, rather, plaintiff from the admission,
24 nor is it blocking defendant from using these documents
25 if they choose to have them admitted in the courtroom.

1 So I don't find any prejudice with respect to
2 defendant in this matter. He's essentially -- he
3 essentially missed the discovery deadline and he's not
4 executed his request ex-parte or otherwise, written, as
5 required by the local rules and by the code to obtain
6 a continuance for good cause.
7 Very well.
8 MS. NAVARATNASINGHAM: For the record, I think
9 you said "defendant" but you meant "plaintiff."
10 THE COURT: I meant plaintiff. I'm sorry.
11 MS. NAVARATNASINGHAM: Thank you.
12 THE COURT: I did mean plaintiff's motion to
13 continue is denied for the reasons expressed by the
14 Court.
15 Very well. There's some other things that we
16 have to take up. There's the balance of the motions in
17 limine and also there's some issue with regard to
18 medical reports which have been presented to the Court
19 this morning. I've not seen those medical reports.
20 And is there some issue? And I have no idea
21 what defense has to say about these medical reports
22 other than they're there, except we have no expert
23 witnesses to talk about them, even if they were
24 admitted. It would require some testimony about the
25 nature of those documents.

1 I'm not saying I'm going to admit them, but
2 assuming they were admitted, then we have no one to, at
3 this point, to give an opinion about those medical
4 records at least from plaintiff. That has to be
5 established as a basic proof of each cause of action
6 that plaintiff seeks to prove in this case.
7 MR. ROSARIO: Thank you for the clarification,
8 Your Honor.
9 THE COURT: So to the extent that there are
10 medical records here, we'll just wait until trial. If
11 you want to seek to have them admitted, then you've got
12 to meet all the proper steps for admission of each one
13 of these items. That's the way I work it. That
14 doesn't -- it applies to pro pers and to any party who
15 appears in front of me. You've gotta show that these
16 are documents or items that are what they are, otherwise
17 authentic, and then you've gotta show that they are
18 pertinent or relevant to the case either the substance
19 of your issues, and it also has to meet the threshold of
20 legal relevance, which means that if it becomes
21 cumulative or unnecessarily prejudicial under Evidence
22 Code Section 352, the Court will, upon the objection of
23 counsel, exclude it, unless the Court believes that too
24 much time has been spent on a particular piece of
25 evidence which the Court deems is unnecessary. Okay.

1 We have motions in limine in front of us.
2 MR. ROSARIO: Your Honor, one moment.
3 THE COURT: Sure.
4 MR. ROSARIO: There was an opposition to my
5 motion for continuance based upon the fact that they
6 claim there was no evidence of my medical things.
7 Are you saying that this information that I
8 collected over the last couple of weeks from my medical
9 appointments -- is that outside of the discovery still
10 and so it would have to be admitted again? In order to
11 get that information in, all the records that I have
12 just provided to you, Your Honor, in the black book, in
13 the first section which includes all of my medical
14 records, the information that the doctors have provided,
15 and we've disclosed to the Court, the most recent,
16 there's no -- none of that information -- I've gone
17 ahead and included the after-visit summary --
18 after-visit summaries for the defense, but we did not
19 include the actual doctor's notes because those are
20 HIPAA and are my private notes.
21 Unless discovery is reopened, Your Honor, they
22 don't have access to that, but also at the same time,
23 some of this information is pertinent to the case
24 because -- well, it's the result of the injuries.
25 THE COURT: Well, are you saying this was

1 attached as an exhibit to your motion to continue?
2 MR. ROSARIO: No. They were provided because
3 they're my personal records. Your Honor had asked that
4 I make sure that I provide to you good cause for why I
5 was -- why I wasn't able to make it in the last two
6 appearances, and I provided those to you directly.
7 The defense had claimed that I had no reason
8 for it, but you said you granted that, that there was
9 good cause. But does that mean that that medical data
10 would then be privy to have to be resubmitted under a
11 discovery again in order for them to be able to access
12 that? Because it's not available to them yet, this new
13 evidence, which has to do with my loss of my eye vision
14 and the ongoing -- there are several things in there.
15 THE COURT: You mean since January 27, 2025?
16 MR. ROSARIO: Yes, Your Honor. There's new
17 evidence that was brought up here that was found by the
18 doctors, and that evidence -- before we start talking
19 about all the other motion in limines, the thing is that
20 that new evidence has caused -- would be absolutely
21 relevant to the case. It's the compound of things like
22 the brain damage and other things that has come up, and
23 so it would be fair for the defense to be able to
24 have -- you know, to observe that and look at that and
25 be able to get their own experts to determine whether

1 they think it's relevant.
2 Because right now, my doctors are already
3 feeling that it's relevant to the case, but, you know,
4 this is where we're at. We're at this impasse. It's
5 unfortunate that this happened when the trial started.
6 My health deteriorated quickly. I was under so much
7 stress. I was trying to get the 911 data, with the
8 defense denying its existence took a toll on me.
9 So I just want to know, what do we do with this
10 new medical evidence? The doctor said that they found,
11 you know, advanced deterioration and things like that.
12 What do we do? Do we pause to get that in? Do we
13 reopen discovery? Whatever pleases the Court, but it's
14 absolutely relevant.
15 THE COURT: Ms. Navaratnasingham.
16 MS. NAVARATNASINGHAM: Yes. From the defense's
17 perspective, the medical records of any alleged brain
18 damage is not relevant to our case because the Court
19 sort of granted a motion in limine excluding the
20 plaintiff from offering testimony or argument about a
21 traumatic brain injury or brain injury.
22 The medical records, my understanding was that
23 they were being produced in connection with the request
24 for the continuance of the trial. However, I believe
25 that plaintiff requested accommodations which this Court

1 is meeting all of his accommodation requests, and so,
2 once again, I don't think these medical records are
3 relevant.
4 I'm not sure what purpose Mr. Rosario is using
5 them for, but I think this has already been adjudicated
6 by this Court by granting him all of the requests for
7 his accommodations.
8 MR. ROSARIO: Because these are sealed medical
9 evidence is not available to them right now, Your Honor.
10 If we can put this aside, talking about the
11 medical, until you review what the doctors have said and
12 determine whether you feel it's something that would be
13 admissible because, you know, this is my personal
14 medical stuff. Discovery is closed. And now we are at
15 this place where they're saying it's not relevant. My
16 actual doctors are saying it's the compound effect of me
17 being struck and almost killed by a truck. So they're
18 saying it's not; my doctor saying it is.
19 And I provided them for you to review so that
20 Your Honor would be able to determine that and say,
21 Mr. Rosario, you should probably have discovery reopened
22 in order to get that evidence in; that way it can be
23 admitted. It's up to you, Your Honor. But the doctors
24 are saying that it is related to my injuries that I
25 incurred.

1 THE COURT: Well, the general rule is if you
2 have placed the matter of your medical -- of your
3 physical injury at issue, then the defense may have
4 access to those medical records. I mean, you
5 essentially waived your privilege.
6 MR. ROSARIO: They just don't have access to
7 the doctor's notes. They have access to the fact that I
8 went to the doctor and they have access to the doctor
9 gave me a referral, but they are not able to see what
10 the doctors are saying.
11 THE COURT: Right. That's based on privilege?
12 MR. ROSARIO: Correct.
13 THE COURT: Okay. So then the question is, if
14 you put it in as relating to your damages, then they're
15 entitled to see that information. You waived your
16 privilege. I'm trying to find the Evidence Code
17 section. It eludes me right offhand.
18 MR. ROSARIO: Your Honor, would knowledge of
19 going to a doctor mean that you're disclosing what's
20 going on inside the doctor's office, your medical
21 information, Your Honor?
22 THE COURT: Only if you put it in play. As
23 someone would put it out in the street --
24 MR. ROSARIO: Someone, yeah --
25 THE COURT: -- you put it in play. If you put

that issue in play, then, of course, they have a right to evaluate whatever you're putting in play before the jury.

MR. ROSARIO: But that would also mean that discovery is closed. How could I put something forward and put it in play but also -- so they can use it? So they can selectively choose what goes in and out?

THE COURT: No, sir. You -- okay. First of all, there is -- under Evidence Code Section 996, there is no privilege under the Evidence Code as to a communication relevant to an issue concerning the condition of a patient if such issue has been tendered by, A, the patient; B, any party claiming through or under the patient; C, any party claiming as a beneficiary of the patient through a contract in which the patient is or was a party; and, finally, the plaintiff in an action brought by Section 376 or 377 of the Code of Civil Procedure for damages for the injury or death of the patient.

The first three don't apply. You are the patient, and under 996, subdivision A of the Evidence Code, that section provides, in pertinent part, that there is no privilege.

So if you don't put it out there, they don't have access to that material.

1 Secondly, the Court has ruled already that you
2 are precluded from -- because you did not follow the
3 Code of Civil Procedure with regard to your exchange of
4 expert witnesses or even non-designated witnesses -- let
5 me rephrase it.
6 Whether it's designated or non-designated
7 expert witnesses, you didn't follow the rules for that.
8 There was an exchange, I think in mid-December, and that
9 was not followed.
10 When you do that, then everybody has an
11 opportunity to work through those schedules of the
12 experts and there are certain rules that must be
13 followed with respect to their availability and so
14 forth, but that all has to be listed. You didn't do
15 that, so I'm not quite sure how or why this information
16 that you have acquired since January 27th, 2025 would be
17 pertinent in this case.
18 If you put it in -- if you try to put it in
19 before the jury, you are going to have to have a doctor
20 testify about it. So far, I haven't heard any reason
21 why you should have that opportunity, to put in a doctor
22 to testify as to the link between your injuries
23 resulting from the accident that brought you here and
24 your subsequent medical history after January 27, 2025.
25 So tell me what do you want me to do?

1 MR. ROSARIO: I thought if the document was
2 listed, they can't testify but because of the new
3 evidence there --
4 THE COURT: You'll have to tell me in plain
5 English. Why is it important for what happened to you
6 after January 27, 2025 -- why it is important to have
7 these medical records brought into the courtroom?
8 MR. ROSARIO: Yeah. Bear with me. There's
9 several witnesses.
10 Can you explain?
11 MR. SOBATI: Your Honor, if I may, I've spent a
12 lot of time around Mr. Rosario, especially in recent
13 weeks, and I've known Mr. Rosario for a fair amount of
14 time, and based on, certainly in recent time, he
15 exhibits diminished capacity even further from where
16 he's been historically.
17 I have personally witnessed him having several
18 emotional, mental health breakdowns where he is not
19 capable of functioning, much less doing any case work.
20 I'm his assistant --
21 MR. ROSARIO: The medical stuff again.
22 MR. SOBATI: -- there's consistent issues
23 around -- not everything from ambulation and moving
24 around the room, I have seen his hands freeze up right
25 in front of me while typing.

1 Issues big and small. And I've seen -- and
2 I've been in and out -- multiple people have been in and
3 out of the emergency rooms with him. Sometimes he's
4 waiting there for hours, sleeping on some sort of
5 surface he shouldn't be, trying to actually get help
6 because he doesn't actually know what's going on with
7 his medical condition ultimately. There's several
8 things that are puzzling, needless to say.
9 I'm a decorated veteran. I've been in a war
10 zone. I've been under a lot of pressure just working
11 day in and day out at times. I've never seen anybody
12 push themselves to try to conform and do the amount of
13 research that I've seen this man doing myself. It's
14 because he cares. He cares about this case. He cares
15 about doing things the right way. It's just he's
16 literally, I feel, at times incapable of understanding
17 the requirements of even a normal life, much less a
18 courtroom.
19 MR. ROSARIO: The doctors, Your Honor, are
20 investigating right now the conditions of the brain
21 damage and to what extent. As you've already said that
22 the TBI -- and you've blocked that. Regardless of the
23 TBI, the effects of the TBI are directly affecting my
24 vision and my ability to move.
25 My spinal cord is severely damaged from this

condition. That's already in the evidence. And the evidence is now -- you know, we're four years past the date when I started this trial, Your Honor, and we're at a place now where the doctors are finally getting a chance to see it and, you know, suddenly -- it's very, very unfortunate to have this happen the first week with the added stress. You know, I've -- I've lost sensation in the -- in the outer part of my right arm, my neck is severe, and my vision has been going in and out, and the doctors are recording that and they're saying that it is definitely more likely than not as a cause of severe trauma to my body.

And these things are now just coming up. I've not -- I've not had financial capacity, my wife and I. And she can tell you.

Please, Victoria, please come up and tell the judge about how many appointments that we've made. I don't -- I don't have -- I barely even remember all the doctors offices that I've been to, because my wife is the one that's helping me afford that.

The judge has invited you to please explain. But this is a condition of what the doctors -- please tell this court.

MRS. VICTORIA ROSARIO: I'm Victoria Rosario. I'm quite sleep deprived. Excuse me. Yeah, we've --

it's been -- oh, gosh, so many appointments. We've had vision appointments, checking out his brain. I mean, I can't tell you how many. Recent or just in the past?

MR. ROSARIO: Just in the last -- since January 27th, whatever the doctors are finding.

MRS. VICTORIA ROSARIO: Yeah. I mean, he's got severe -- his neck. He's lost vision in the left eye. Lost mobility in his arms. Spinal damage. I mean, it's just -- it's ongoing. And we're trying to figure out exactly what's happening with your brain.

MR. ROSARIO: What did the doctors say? What do you think that they're coming to the conclusion --

MRS. VICTORIA ROSARIO: It's definitely from him getting hit by this truck, absolutely.

MR. SOBATI: The last ophthalmologist said there's neurological issues and he referred to yet another specialist.

MRS. VICTORIA ROSARIO: Yeah. There was another neurology referral that he has, so ...

MR. ROSARIO: The spinal doctor asked me the other day, You're pretty much in this permanently now. You need to get therapy.

And these pieces of information were not available during the discovery. Like I said, it's really unfortunate that my health took this south turn,

1 but the stress and the challenges for me as a pro per
2 litigant, Your Honor, has caused severe stress.
3 Now, at least they checked to make sure it
4 wasn't a heart attack that's causing my vision loss and
5 my loss of control on my left arm, but we're lucky that
6 it's not, but it doesn't change the fact that it's very
7 real, whether we want to ignore the fact -- they want to
8 ignore the images, the doctors are treating me for it.
9 So we're at this place where we have to establish
10 whether discovery is reopened to be able to allow a fair
11 and impartial jury to be able to see information that
12 has only become recently available.
13 You know, I didn't complain immediately for the
14 week and week-and-a-half up to this trial, because I
15 thought I was -- it was live or die. I was under the
16 impression if I don't show up and agree to go forward
17 they were going to dismiss my case. That's what we all
18 thought. That's the only reason I agreed to do this is
19 because I was told if I don't show up on the 27th and
20 start this case, I can't try it. So here I am, but it's
21 not going to stop the fact that the doctors are treating
22 me.
23 So we have a situation where we have to address
24 where doctors are saying, you have severe medical
25 conditions that are -- that are more likely than not

1 caused by the collision that the defendant put you
2 through, and we are going to start treating you. But
3 that information, if you're saying it's not relevant,
4 then the doctors are going to disagree with you. They
5 already are. It's absolutely relevant. We can -- we
6 can sit here until the cows come home, but that's not
7 going to reverse the brain damage that I have. That's
8 permanent. I can sit there and try and maybe mend the
9 muscles and maybe even get stem cell treatments for my
10 nerve endings and my spine, but that's not going to
11 erase the brain damage.
12 THE COURT: All right.
13 MS. NAVARATNASINGHAM: Yes, Your Honor.
14 The Burnete case, which the Court cited
15 earlier, is directly on point to what is happening here.
16 I'm not sure what the request is, frankly, Your Honor.
17 The motions in limine as to the traumatic brain
18 injury and the expert situation have been ruled upon.
19 In Burnete, the plaintiff made the exact same
20 claims as Rosario's making now: Disability, lack of
21 counsel, debilitating medical conditions, and the Court
22 did order that trial to proceed.
23 I also want to remind the Court that we
24 answered "ready" in Department 206, and we came up here
25 and Your Honor asked us again when we came to this

1 courtroom, Are you ready to proceed to trial? And
2 Mr. Rosario at that time raised no issues and said that
3 he was ready to proceed with the jury trial.
4 MR. ROSARIO: That's changed. My health has
5 deteriorated. Before we take up the Court's time and
6 the witnesses -- that's why I've asked for these
7 continuances, to be able to collect the information,
8 Your Honor. That way my doctor doesn't say, Hey,
9 Dylan's health has deteriorated. There's a need to put
10 him on -- and immobilize my neck. They're already
11 talking about putting my neck into a brace so that way
12 my spine quits slipping out. My vision is going out.
13 And you are going to force me into this because it's
14 convenient for the defense, after multiple people,
15 multiple doctors and everyone is telling you this.
16 Okay.
17 But if it's -- because I made the mistake and
18 don't understand that I was not able to say, no, I don't
19 want to do this. Okay. That's my mistake, and I
20 understand that the Court is privy to try to make this
21 happen, but we're going to keep on getting back to this.
22 My vision could completely go out next week and I'll
23 need to seek accommodations. I don't know how to read
24 Braille yet. Or my neck can fall out of place where I'm
25 in a paraplegic chair. These things are out of my

control.

And the defense wants to pretend it's not there, but I want to tell you, it can very well happen. The doctors have been giving me warning signs. So ...

THE COURT: Mr. Rosario, you were sent here for trial.

MR. ROSARIO: Yes, sir.

THE COURT: You represented that you're ready for trial.

MR. ROSARIO: Well, I was mistaken.

THE COURT: You made the representation to the presiding judge of this court that you were ready for trial. Now --

MR. ROSARIO: I can't control my body.

THE COURT: You are now -- sir, don't interrupt me.

Compose yourself, sir.

Now, how many doctors are you talking about?

MR. ROSARIO: How many doctors have I seen?

MRS. VICTORIA ROSARIO: Probably -- the doctors or --

MR. SOBATI: Can you clarify? Are you saying how many doctors is he to see?

MR. ROSARIO: You Honor, I don't understand. When you say --

THE COURT: Here's what I'm hearing. I am not granting a continuance. However, the Code of Civil Procedure, in my discretion, allows for the Court to have experts deposed.

You're saying in this case that you didn't know any better. I frankly don't believe that's an excuse. But what you -- and I'll hear from defense counsel, but what I would expect you to do -- this is my proposal -- is that you have to exchange with defense counsel a list of your experts who will discuss not what happened before January 27, 2025, but only the -- well, I can't really say that. I think we need to know the doctors who will explain the connection between your current injuries and the accident.

We need to have a list of those doctors to defense counsel by the end of this week, the 21st of February, by 4:30 p.m.

You also must provide -- with each of these doctors, you must provide an explanation of what they're going to testify about and whether they are, in fact, available to testify.

You must also say how long it will take for each deposition. That all must take place before the end of this week, the 21st.

You have to tell the other side whether they

are ready and available for deposition.

I will allow the parties to set a time during the week of February 24th for depositions of these doctors, these treating physicians -- they are not designated. You will not be permitted to have designated experts. They are treating physicians -- between now and the trial date in this case which would be March 10th. I'm giving you two weeks.

If you cannot arrange to have a scheduled deposition between the 24th and the 7th -- the Court will designate three days: The 5th, the 6th, and the 7th of March for depositions of your experts that are listed.

We will start trial on March 10th.

MR. ROSARIO: Your Honor, did you say experts or treating physicians?

THE COURT: Treating physicians, yes. Non-designated. These are non-designated experts who are otherwise in this case be known as the treating physicians, so they have to be available between the 24th and March 7th.

MR. SOBATI: Yes, Your Honor.

THE COURT: If you don't make them available for deposition on the 5th, 6th, and 7th, they will not be allowed to testify unless the defendant agrees to

1 have a deposition taken on another date during the
2 trial, but trial will start on the 10th.
3 We are available on the 10th, are we not?
4 THE CLERK: We are, yes.
5 THE COURT: You can offer your objection.
6 MS. NAVARATNASINGHAM: You Honor, if I can
7 reply to this for my record.
8 Your Honor, we obviously wholly object to this
9 proposal.
10 The Court is essentially reopening discovery
11 and expert discovery. The case has been pending for
12 almost five years. Expert designations, I think, were
13 actually done mid-November and so there was no response
14 whatsoever to our designation of experts. We did
15 everything properly and correctly. And the Court is now
16 allowing for -- we're essentially one month past the
17 date that this matter was set for trial, and the Court
18 is reopening discovery and allowing plaintiff to now
19 designate treaters. And I'm confused because if they're
20 going to testify about post-start-trial date medical
21 condition but then they won't be allowed to offer expert
22 testimony, I'm not sure what their role would be at this
23 trial because the Court has already granted our motion
24 to exclude any reference to a brain injury or a
25 traumatic brain injury.

1 So we oppose this proposal and, you know, our
2 position is that discovery is closed, expert discovery
3 is closed. This is exactly the Burnete versus the
4 La Casa Bana case.
5 THE COURT: The problem with the Burnete case,
6 as I recall, it's not entirely factually parallel to
7 this case.
8 MR. ROSARIO: Exactly.
9 THE COURT: Excuse me, sir.
10 MR. ROSARIO: Sorry.
11 THE COURT: Be careful where you tread.
12 MR. ROSARIO: Sorry, sir.
13 THE COURT: When I'm speaking, I don't want to
14 hear a word out of you.
15 It's different largely because in that case the
16 plaintiff did not take ill during the trial, or at some
17 point after the trial deadline. That's the distinction
18 here. And what I'm concerned about is the fact that the
19 request, albeit a tardy request, may be a problem for
20 the Court with regard to its discretion. I think in
21 this case, depending on what is said by the doctors --
22 and I don't have a proffer from him, but I have to rely
23 on Mr. Sobati's representations -- this would be an
24 exceptional circumstance for which an expert deposition
25 will be permitted in this case.

1 And I'm looking at 2034.710, and it says, in
2 pertinent part, "On motion of any party who has failed
3 to submit an expert witness information on the date
4 specified in a demand for that exchange, the Court may
5 grant leave to submit that information on a later date."
6 Subdivision (b) says, "A motion under
7 subdivision (a) shall be made in sufficient time in
8 advance of the time limit for the completion of
9 discovery under Chapter 8 (commencing with Section
10 2024.010) to permit the deposition of any expert, to
11 whom the motion relates, to be taken within the time
12 limit."
13 Obviously, that doesn't apply because he's
14 failed to meet that requirement.
15 However, subdivision "(d) provides, quote,
16 "Under exceptional circumstances, the Court may permit
17 the motion to be made at a later time," close quote.
18 However, I'll point out that you failed, sir,
19 to meet and confer with opposing counsel. Your
20 characterization of them as liars and otherwise does not
21 make the Court particularly enthusiastic about agreeing
22 to grant this sua sponte order, so if you do not have
23 these experts available, they're not going to testify.
24 I expect you to be ready on the 10th, and if
25 you do not show, the Court will reconsider. It has

1 not -- it's still pending, defendant's motion to dismiss
2 for abandonment of this case.
3 The objection is noted. I think it's
4 well-founded. However, given the tenor of how we treat
5 in pro per plaintiffs these days, I have to give them
6 every latitude I can in order to enable them to make
7 their case, and to the extent there will be limitations
8 that you want imposed on the questioning or in an in
9 limine motion.
10 I mean, I think the deposition is your
11 opportunity to see what they have to say, but to the
12 extent that they get into extraneous or irrelevant
13 material, you're free to return to motion in limine
14 number one and motion in limine number two to cut off
15 their testimony. The Court will consider it.
16 MS. NAVARATNASINGHAM: Your Honor, may I make
17 one request?
18 THE COURT: Yes.
19 MS. NAVARATNASINGHAM: Just because it's
20 putting us in a bit of a bind, with scheduling and costs
21 and everything else.
22 Can these depositions be done at plaintiff's
23 cost? We are going to be expending a significant amount
24 of fees to take --
25 THE COURT: Of course.

MS. NAVARATNASINGHAM: Thank you.

THE COURT: It's at your cost, sir. So if the doctor says, I need $500 to testify at a deposition, defendants don't have to pay it. It's your fault -- it's not really your fault, but the burden is on you to make sure that they show up. If they don't show up, sorry. They don't show up on the date that the deposition is going to be taken, you need to meet and confer and talk to defense counsel about when they're going to be available and set a date, but I'm going to give you the 5, 6, and 7 dates as the dates where they have to take place.

If they don't take place on March 5th, March 6th, or March 7th, then they won't be allowed to testify.

MR. ROSARIO: Thank you, Your Honor. My family and --

THE COURT: I don't need to hear that, sir. This is all business.

MR. ROSARIO: Yes, sir.

THE COURT: Very well. We'll see you back here on March 10th. We will -- on that day, we will complete the rest of the in limine motions. On Tuesday, the 11th, we will start the trial. That will -- we will continue to the 12th for jury selection. The 11th --

the 11th and 12th will be for jury selection, and then we will start the trial on the 17th once we have a completed jury.

MS. NAVARATNASINGHAM: Yes, Your Honor. Those dates are great.

Your Honor, the only thing -- and this is probably not an issue. I just want to raise it to the Court that I do have a conflict on March -- that last week of March but, hopefully, we'll be done by that point.

THE COURT: Which one?

MS. NAVARATNASINGHAM: So March 26th through the 30th, which is the last week in March.

THE COURT: That's fine. I think you have to anticipate how long the case is going to be. You'll need to set up a short --

I require the parties to complete a very short two- or three-sentence statement to the jury about what you anticipate this case is going to be. You should meet and confer to determine how long you think the case is going to be and I will tell the jury. So if you think the jury is going to -- the trial is going to be completed on the 27th -- remember, I don't hear cases on Fridays and, in fact, the 13th and the 14th, I'm not going to be here, so ...

MS. NAVARATNASINGHAM: Okay.
MR. SOBATI: Which dates, 13th and 14th?
THE COURT: Yes.
MR. SOBATI: Thank you, Your Honor.
THE COURT: Any questions?
MS. NAVARATNASINGHAM: No, Your Honor.
THE COURT: Okay. Feel free to contact Department 504 if you have any other questions.
MR. ROSARIO: Thank you, Your Honor.
THE COURT: Thank you.
The other thing is, I should -- though it's understood, the Court has taken into consideration Section 2034.720 which says, "When leave to submit tardy expert witness information may be granted." The Court has looked at subdivisions (a), (b), and (c) and also considered the fact that there has been some new information that has arisen in this court. And I will point out that subdivision (d) makes clear that the order is conditioned "on the moving party making the expert available immediately for deposition...and on any other terms as may be just, including, but not limited to, leave to any party opposing the motion to designate additional expert witnesses or to elicit additional opinions from those previously designated. And a continuance," if defense counsel seeks it, "for a

reasonable period of time," although I doubt that that's a request. And finally, "the awarding of costs and litigation expenses to any party opposing the motion."

So folded within that is also a monetary sanction for opposing the motion. That doesn't apply in this case. But the Court will impose litigation expenses and costs upon -- well, the costs of the deposition of the expert, those fees, should be attributed to plaintiff in this matter.

And you are to arrange -- I don't know who is going to arrange for the deposition. I assume defense is going to notice the deposition and have a court reporter available.

MR. SOBATI: I will be the point of contact, Your Honor, for plaintiff.

THE COURT: Very well. Meet and confer. You should discuss the matter with Ms. Navaratnasingham right now.

MR. SOBATI: Yes, Your Honor.

THE COURT: We'll see you on the 10th.

MR. SOBATI: Thank you, Your Honor.

(Court adjourned at 11:50 A.M.)

- - -

State of California)
)
County of San Francisco)

I, Sandra L. Carranza, Certified Shorthand Reporter, do hereby certify:

That I was present at the time of the above proceedings;

That I took down in machine shorthand notes all proceedings had and testimony given;

That I thereafter transcribed said shorthand notes with the aid of a computer;

That the above and foregoing is a full, true, and correct transcription of said shorthand notes, and a full, true and correct transcript of all proceedings had and testimony taken;

That I am not a party to the action or related to a party or counsel;

That I have no financial or other interest in the outcome of the action.

Dated: February 21st, 2025

Sandra L. Carranza, CSR No. 7062

Reference No.: 12424517

Case: ROSARIO vs ABDELHALIM, ET AL.

DECLARATION UNDER PENALTY OF PERJURY

I declare under penalty of perjury that I have read the entire transcript of my Deposition taken in the captioned matter or the same has been read to me, and the same is true and accurate, save and except for changes and/or corrections, if any, as indicated by me on the DEPOSITION ERRATA SHEET hereof, with the understanding that I offer these changes as if still under oath.

_____

Hearing

NOTARIZATION OF CHANGES

(If Required)

Subscribed and sworn to on the _____ day of

_____, 20____ before me,

(Notary Sign)_____

(Print Name) Notary Public,

in and for the State of _____

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In the Matter Of:

FRANCISCUS DYLAN ROSARIO V. SUBHI ABDELHALIM

CGC-21-594102

TRANSCRIPT OF PROCEEDINGS

February 28, 2025

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IN THE SUPERIOR COURT OF THE STATE OF CALIFORNIA

IN AND FOR THE COUNTY OF SAN FRANCISCO

DEPARTMENT 504 BEFORE HON. GARRETT L. WONG

FRANCISCUS DYLAN ROSARIO,)
)
PLAINTIFF,)
)
VS.)No. CGC-21-594102
)
SUBHI ABDELHALIM, INDIVIDUALLY, AND DBA)
SONOMA LIQUOR, DOES 1 TO 50,)
)
DEFENDANTS.)
_____)

REPORTER'S TRANSCRIPT OF VIDEOCONFERENCE PROCEEDINGS

FEBRUARY 28, 2025

JAIME PLY, CSR NO. 13323
COURT REPORTER PRO TEMPORE
(REPORTED VIA VIDEOCONFERENCE)

APPEARANCES:

FOR THE PLAINTIFF: FRANCISCUS DYLAN ROSARIO, IN PRO PER

FOR THE DEFENDANTS: PHILLIPS, SPALLAS & ANGSTADT, LLP
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ALSO PRESENT: KARIM SOBATI

INDEX - FRANCISCUS DYLAN ROSARIO V. SUBHI ABDELHALIM

FEBRUARY 28, 2025

WITNESSES

(NONE.)

INDEX OF EXHIBITS

(NONE.)

FRIDAY, FEBRUARY 28, 2025, 9:35 A.M.

(The following proceedings were held in open court and reported via videoconference:

THE COURT: We're on the matter of Rosario versus Abdelhalim, Case No. CGC-21-594102, San Francisco Superior Court. One moment. We'll go off the record.

(Court in recess.)

THE COURT: We're back on the record. We're here on San Francisco Case No. CGC-21-594102.

Appearances, please. Mr. Rosario, you're first.

MR. ROSARIO: Yes. Your Honor, due to CCP 2025.420 --

THE COURT: No. I need your appearance only, please.

MR. ROSARIO: Oh, okay. Franciscus Rosario is appearing as plaintiff.

THE COURT: Okay. Mr. Sobati, your appearance, please.

MR. SOBATI: Karim Sobati appearing as medical and legal advocate for Mr. Rosario.

THE COURT: Thank you.

Mr. Reyna, good morning.

MR. REYNA: Good morning, your Honor. Alberto Reyna on behalf of Defendant Subhi Abdelhalim.

THE COURT: All right. Before we begin, I

received this morning at 9:29 a.m. an E-mail from Mr. Rosario.

It's entitled, "Plaintiff's statement of defense past discovery abuse and treating physicians' testimony."

Mr. Reyna, did you receive that memorandum?

MR. REYNA: I received it a few seconds ago, your Honor.

THE REPORTER: Mr. Reyna, it's a little hard to hear you. It sounds a little muffled.

MR. REYNA: Sorry about that. Let me get a little closer.

Is this better?

THE REPORTER: That's better. Thank you.

THE COURT: Mr. Reyna, have you had an opportunity to review the E-mail?

MR. REYNA: No, your Honor. I just received it a few seconds ago.

THE COURT: Okay. I think we'll have to break five minutes until 9:40 so that Mr. Reyna can review it, please.

Mr. Rosario, the Court doesn't appreciate E-mail correspondence to either party or to the Court one minute before our hearing.

MR. ROSARIO: Oh. Yes, your Honor.

THE COURT: That's not how it works, sir. That's not how it works.

MR. ROSARIO: I was sharing this because I was

1 going to verbally speak it, so I just do it for my own
2 notes, your Honor. I apologize. It's kind of a thing I
3 do.
4 I was going to speak about these matters, and I
5 just wanted to make sure that I memorialized them so
6 that way I have it for my own notes. I didn't mean to
7 cause you some kind of surprise.
8 These things were already kind of mentioned
9 before, and I just wanted to make sure that they were
10 completely there because I was going to speak to these.
11 These are my speaking notes. I apologize, your Honor.
12 THE COURT: That's fine, but that's not the way
13 it works. Mr. Reyna is entitled to review anything that
14 you submit to the Court in a reasonable amount of time.
15 One minute before the hearing is improper, sir.
16 MR. ROSARIO: Oh, I understand, sir. There's
17 no variation. I understand. I get it, everything. He
18 needs to be able to get everything regardless of whether
19 it's just my speaking notes or not. I get it. Okay.
20 THE COURT: So I'm going to give Mr. Reyna at
21 least an opportunity to review these communications that
22 you have set forth in your E-mail. I'm going to give
23 you some time to do that, Mr. Reyna.
24 Let's come back in five minutes. I don't think
25 it's going to take that long, but let's come back at
26 9:45. All right.
27 MR. ROSARIO: Okay. Thank you, your Honor.
28 I'll wait.

THE COURT: Thank you.

(Court in recess.)

THE COURT: We're back on the record in the matter of Rosario versus Abdelhalim. The record should reflect that Mr. Rosario and Mr. Sobati are here for plaintiff, and Mr. Reyna is here for Mr. Abdelhalim.

Mr. Reyna, have you had an opportunity to review the E-mail?

MR. REYNA: Yes, your Honor.

THE COURT: Do you need more time to review it?

MR. REYNA: No, your Honor.

THE COURT: All right. Because I can give you more time if you need it.

MR. REYNA: No. I've read the E-mail. Thank you.

THE COURT: Okay. Thank you.

All right. Mr. Rosario, we're here on your motion for protective order and enforcement of court order regarding treatment physicians' depositions.

And before we begin, I have a question for you, and that is that you named two health practitioners, Dr. Renee Gonzalez, M.D. and Brian Balbon, B-a-l-b-o-n, Doctor of Chiropractic, QME as the designate -- well, not designated, but the two treating physicians in your memorandum submitted to the Court.

You then have in your E-mail a reference to a deposition of Dr. Thomas Sean, S-e-a-n, Halligan, H-a-l-l-i-g-a-n.

Has that deposition already been taken? Tell me who that person is.

MR. ROSARIO: Yes, your Honor.

That deposition happened, let's see here. I believe Mr. Reyna asked for that deposition to happen, and we did it on December 20th of last year, and he deposed one of my doctors.

And as I stated in my E-mail here, which is my speaking notes, that he went outside the realm of what should have been -- what appropriately should be covered in a conversation with my treating doctor.

He tried to solicit a number of pieces of information where he wasn't authorized. And then following the deposition he never provided a hyperlink for me to be able to access that deposition, and from that he violated CCP 2025.570.

I have a right to that under 2025.510, which essentially constitutes discovery abuse to me. He deposed my own doctor.

Asked overbroad questions. Tried to violate my medical privacy. And then failed to provide the deposition record or link to that afterwards.

And so I don't trust that he's going to abide by the discovery and conduct rules of depositions any further. I have no reason to believe that. He's already done it once.

THE COURT: Mr. Reyna.

MR. REYNA: Yes, your Honor. We appreciate the

opportunity to be heard on such short notice.

This deposition of Dr. Thomas Halligan took place in December of 2024. Plaintiff was there in attendance.

This was a treater that was disclosed as part of plaintiff's medical records even as far back as the time when he had personal counsel representing him.

This isn't something that we just sort of pulled out of the blue. As I mentioned, he was there. He made objections on the record.

And as far as any transcript, he had the opportunity to get his own deposition transcripts at his own expense through the service that we used that day.

MR. ROSARIO: We were never -- I'm sorry. Your Honor, we were never provided the name of the service that was using it.

And, secondly, I did not have counsel at the time. My counsel had already withdrawn, so I was self-representing on that date.

THE COURT: Well, I think that begs the question if you were there.

Did you not ask the court reporter for his or her or their name and how you would contact them?

Because there's no obligation by Mr. Reyna or his colleagues to provide you with that information if you are present at the deposition.

Why would they provide that to you if you were there?

MR. ROSARIO: Your Honor, I got into the meeting late, all right, and yet Mr. Reyna had called me.

The court reporter had already presented, and out of respect for other people, I've always provided all information to him.

If Mr. Reyna has decided that he's going to conceal it or not provide that information to me, I asked for it afterwards in an E-mail, which I've already provided in that big, pink binder for you.

I requested the name of the deposition, and there was no response to that. I can only ask. And, unfortunately, as I stated, he made no effort even in a subsequent request for the information at the deposition. He didn't provide that.

Furthermore, that doesn't omit the fact that he did a number of overreaching and overbroad questions that were outside of the realm.

Unfortunately, you're going to probably -- I would imagine you're going to say, "Mr. Rosario, you don't have the deposition, so it's very difficult to prove that."

So that's where we're at. It's been a consistent lack of any communication or disclosure from the defense towards me.

THE COURT: Mr. Rosario.

MR. ROSARIO: Yes, sir.

THE COURT: Let me ask Mr. Reyna, do you recall

receiving or your law firm receiving a request by Mr. Rosario regarding the name or the service of the court reporter who attended and took the deposition of Dr. Halligan?

MR. REYNA: Your Honor, off the top of my head, I don't currently remember that. I'm not saying that wasn't the case.

We may have received a communication that requested such information. But as I previously stated, Mr. Rosario already had the information because we wouldn't have started a deposition before the parties obviously made their appearances on the record.

So, again, I'm not sure if that actually ever was received by our firm, but if it were, I'm not sure why that was necessary since he had the opportunity to get the transcript on his own.

THE COURT: Okay. So let's put that first issue to bed by submitting the name of the deposition reporter to Mr. Rosario. Okay. So that's the first item on the agenda.

MR. ROSARIO: So then I guess we're -- I agree. Thank you very much. That's appropriate. I've never gotten that, and I'm glad that we're finally going to get that sent to me.

Then I guess the next thing is, you know, the fact that we want to make sure that the scope of the conversation -- these doctors are actively treating doctors.

They are not hired experts for the purpose of litigation, so they don't have -- they are coming in. They are unpaid.

They are being deposed because, you know, I'm their patient, and they want to make sure that the information about me is coming out about what's going on.

We've already addressed that these are lay witnesses. If the defense is trying to establish them as experts, that's not going to happen.

I mean, the line of questioning is specifically around their observations of myself and their professional opinions.

So I want to make sure that the defense understands that any conversation or insinuation that they are experts or trying to dig to solicit that would be inappropriate.

We've clearly defined them as lay witnesses, and I don't believe that it would be appropriate to try and get them to redesignate them based upon a line of questioning.

THE COURT: Mr. Rosario, they are not lay witnesses. They are treating physicians.

Mr. Reyna, your response to the scope of your deposition inquiry. That would be of Dr. Gonzalez and Dr. Balbon.

MR. REYNA: Yes, your Honor.

In plaintiff's documents that he served via

1 E-mail February 21st which were titled, "Plaintiff's
2 compliance with court order regarding treating physician
3 disclosure and proposed protective order," it's clear
4 that plaintiff is attempting to reopen discovery and
5 expert discovery.
6 And to be clear, the defense is not attempting
7 to make these two treaters experts. In his documents,
8 nowhere in either of these documents --
9 (Interruption in the proceedings.)
10 THE COURT: Hello. "It's ten o'clock," who
11 said that?
12 MR. ROSARIO: Oh, I apologize. That was a
13 computer message, I apologize.
14 THE COURT: Let's turn your computer off, at
15 least that who gives those time --
16 MR. ROSARIO: Yes, I will. I apologize.
17 THE COURT: You realize they are treating
18 physicians. They are not experts.
19 Okay. So next, Mr. Reyna.
20 MR. REYNA: Yes.
21 So as I was saying, your Honor, nowhere in any
22 of these documents is it stated that the depositions
23 will be limited only to the medical issue that plaintiff
24 has experienced since January 27, 2025.
25 And plaintiff makes reference to causation
26 multiple times in these documents. And this Court has
27 already ruled that plaintiff can't offer any expert
28 witness testimony, and causation is expert witness

testimony.

So with regard to the scope of these depositions, we are concerned that plaintiff will try to elicit information since February 2021 and, in addition, try to elicit information or testimony regarding causation, which is in the realm of expert witness testimony.

THE COURT: Well, I understand it, Mr. Reyna, but the problem is that they are giving -- they are permitted to give a discussion per Schreiber versus Estate of Kiser to relate their testimony to causation issues and so forth.

So it's very difficult for them to give their diagnosis and prognosis without the basis, factual basis, for that, albeit hearsay.

But I think what I meant to say was that he can't actually put on an individual expert, a designated expert, because he failed to do so, but I don't think the treating physicians are limited in that way.

So at that point the Court was very clear that he couldn't add any experts. But given the fact that he's saying that his current medical issues relate to the purported injuries as a result of this accident back in 2021, I don't think I can limit it in that fashion.

So you're partially correct that he can't add another witness to address causation. On the other hand, I think if you want to get into causation issues and anything else related to diagnosis, prognosis, and

so forth, current treatment, you can do so.

The Court is not going to -- and this is somewhat related -- narrow the scope of the testimony given by either doctor to 45 minutes.

I know, Mr. Rosario, you would like to have the testimony limited to 45 minutes, and it's possible, but I don't know whether or not Mr. Reyna can do so or his colleagues.

MR. ROSARIO: Your Honor, Mr. Sobati has got something to say about that. He's spoken with the doctors about their availability.

THE COURT: Yes.

MR. SOBATI: Sorry, just unmuting, your Honor. I'm sorry, go ahead. I apologize.

MR. ROSARIO: Karim, can you share with the judge about the availability and why the 45 minutes was required due to them being treating doctors.

MR. SOBATI: Correct. So Dr. Gonzalez, as we can imagine working at Kaiser, is under a heavy schedule, and both doctors are treating physicians, and they have full patient loads.

So they both -- obviously, they've been subpoenaed, and they were both highly scheduled. Obviously, when it comes to just putting that time requirement in place, that was just out of respect for their individual schedules more so than anything.

Also, your Honor, I would also like to mention that per your instruction I did contact

Ms. Navaratnasingham after proceedings regarding these depositions as well as I did respond to an E-mail of Mr. Reyna's to neither of which I have received a response to confirming that they have received that information regarding the depositions on March 4th at 11:00 a.m.

MR. ROSARIO: Your Honor -- thank you, Karim.

Your Honor, the reason I didn't want to bother them for more than 45 minutes is both of them on that day, like I said, they have lots of patients.

And for me to take up a four-hour thing on something that effectively -- you know, being that Mr. Reyna is an attorney, he should be very capable of being succinct like you've already stated.

We're not going to get into information that's not pertaining to my current injury or their treatment. Mr. Reyna is fully aware of what was disclosed about the treatments that I've been going through.

He doesn't have the specific details. He has very explicitly stated that he doesn't want to open up discovery or at least from his position.

But the point of being here was that I have additional evidence that's come forward, and the question was, is it relevant?

THE COURT: Let me stop you there because you said you don't want to get into anything about your current injuries, but the whole point of this was that I'm allowing Mr. -- you to put on two doctors, treating

1 physicians, that have been addressing your issues, your
2 medical concerns, from January, I think it was, 20 --
3 January 21st on where you didn't show up.
4 So I'm allowing that, but that necessarily
5 means that Mr. Reyna can, if it becomes part of the
6 statements by these treating physicians, can get into
7 questions about that.
8 Let me also explain that, in my view, the
9 particular testimony that's given by these doctors, if
10 they are limited in some fashion to 45 minutes, as far
11 as I'm concerned, that may very well limit what kind of
12 testimony that can be given at trial.
13 MR. ROSARIO: That makes sense. I understand.
14 I see what you're saying. I don't want to cut off my
15 options of giving the defense the full option to be able
16 to access it.
17 The other thing was also cost, your Honor. I
18 don't have a lot of money.
19 THE COURT: Let's just focus on one issue at a
20 time. We're talking about scope, and I would like to
21 hear about -- from Mr. Reyna what these revelations may
22 mean to the defendant taking depositions in this matter.
23 I don't know what your concerns are with regard
24 to the scope of the deposition, Mr. Reyna. You need to
25 tell me whether you need more than 45 minutes or maybe
26 that's more than enough time. I don't know.
27 MR. REYNA: Yes, your Honor. Thank you.
28 First of all, we would like clarification on

the scope of the depositions to ensure that it is limited to any issues, medical issues, that the plaintiff has experienced since January 27, 2025 through the present.

Is that the case, your Honor?

THE COURT: Well, it is, but here's the issue the Court has, which is, if the doctor says -- well, someone is going to ask him, "Well, why is he having these problems?" and then he's going to say, "Well, the reason is because there was this accident, I understand, way back in 2021 that he suffered."

And then it becomes a question of whether he can get into issues like causation and so forth, which he's allowed to do under the Schreiber case.

And the cite for Schreiber -- I know you have it, but I need to put this on the record. Schreiber is, S-c-h-r-e-i-b-e-r, versus Estate of Kiser, a 1999 decision, 22 Cal.4th 31.

So that puts you in a different position, I'm certain, because I don't know how you could ask a series of questions after -- about what happened to him after that first hearing in our court regarding his medical condition because the moment he testifies and says, "Well, these injuries are the result of this accident, and my current situation is a result of this accident," then you're going to be in a bit of a bind if you don't get to ask the doctor about the basis of his opinion.

MR. REYNA: Understood, your Honor. And that's

one of the concerns why limiting this to 45 minutes is, honestly, just out of the question.

I mean, I think the line of questioning from plaintiff himself would be more than 45 minutes. And in addition to that --

THE COURT: Wait a minute, are you talking about a deposition or a trial?

MR. REYNA: Deposition, your Honor.

THE COURT: Well, if you're taking a deposition, you have the opportunity to take the deposition -- if you're noticing it, you have the opportunity to take it first; right?

MR. REYNA: Well, your Honor, the plaintiff is the one who we understood was responsible for setting up this deposition and yet he was responsible for the costs and fees associated with this deposition.

THE COURT: That's true, but he's not noticing the deposition. You are.

Are you not?

MR. REYNA: No, your Honor. We understood it to be that the plaintiff was noticing his deposition. We're not looking to even take this deposition at all, your Honor. If it were for us, we wouldn't even have these depositions occur in the first place.

THE COURT: Okay.

MR. ROSARIO: I believe, your Honor, that the fundamental here is that there was new information, new evidence, about my treatment that if those were

presented in the trial, the defense hasn't been able to ask questions to the treating doctors to get an understanding of what that is due to them trying to make an objection of relevancy or something like that because discovery is closed.

So what I did is I said, "Hey, if you'd like, you can talk to my treating doctors and provide" -- I asked that in the first thing.

I said, "Please provide a set of questions." As a matter of fact, I can even assist Mr. Reyna in writing questions if he's having trouble with that, and he can ask my doctors.

THE COURT: Well, I'm confused because originally what I thought was, if he's going to name treating physicians, then defendants would have an opportunity to take the deposition of either health practitioner here.

But if that's not the case and your expectation is for plaintiff to take the deposition then, I don't know, what are the issues here? Are there any, Mr. Reyna?

Explain this to me. Your viewpoint was that they are taking it, and you're not going to ask any questions at a deposition.

Mr. Sobati, you keep nodding your head, and I want you to stop doing that. It's very distracting.

MR. SOBATI: I'm sorry, your Honor. I was doing it unconsciously. My apologies. I will pay

1 attention and not do that. My apologies, your Honor.
2 THE COURT: Be stoic here.
3 Okay. Mr. Reyna.
4 MR. REYNA: Yes, your Honor.
5 The defense's position has been since the
6 beginning that discovery is closed, expert discovery is
7 closed, that Mr. Rosario has failed to produce any
8 information with regard to any experts way back when it
9 was due in December 2024.
10 And as such, we are honestly confused as to the
11 ultimate purpose of these depositions if ultimately
12 these treating physicians are not going to be able to
13 speak to causation as they are not being designated as
14 experts.
15 And the Court has already ruled on defendants'
16 motion in limine precluding plaintiff from introducing
17 either expert witnesses or non-retained expert
18 witnesses.
19 THE COURT: No, I think you -- I've taken a
20 look at the law here, and I've looked at Schreiber. And
21 from my viewpoint, if I allow the treating physicians to
22 testify for the period in January up to and through this
23 month about his particular condition, I would expect
24 that defendant would want to take the deposition here.
25 Yes, I did say you can't add or designate a new
26 expert witness in this case to address causation. That
27 doesn't prevent plaintiff in this case, given that he
28 has two treating doctors, from having them testify as to

1 what's been going on in January and then relating the
2 basis for their diagnosis, their prognosis and whatever
3 causation issues they think contributed to their given
4 opinions here.
5 It's different. They aren't designated experts
6 here. So I think you have to separate the two because
7 they are treating physicians. And under Schreiber those
8 questions can be asked.
9 So I don't know if that changes your view about
10 this, but I would think that you would want to take the
11 deposition of these two doctors. Plaintiff -- I don't
12 know why plaintiff would want to take the deposition of
13 these individuals.
14 MR. ROSARIO: You're absolutely right, your
15 Honor.
16 THE COURT: Mr. Rosario, I don't want to hear
17 from you. I want to hear from Mr. Reyna.
18 MR. REYNA: Yes, your Honor.
19 In that case we are asking for clarification
20 then. Ultimately, what are these treating physicians
21 going to be able to testify about at trial?
22 THE COURT: I've been very clear. They are
23 going to talk about what happened between the date that
24 Mr. Rosario didn't show up in court, which was in
25 January -- I can't remember offhand whether it was the
26 21st or the 27th. I think it was the 27th of January --
27 and the last few weeks, let's say the last month,
28 between then and the 28th.

1 They can address those issues as treating
2 physicians, and they can give a basis for their opinion,
3 which necessarily would include issues like causation
4 and so forth.
5 So, yeah, if you're thinking this opens it all
6 the way up, yes, it does. It goes back to the original
7 accident if they have the basis for the testimony as
8 treating physicians, if they know. I don't know if they
9 were there.
10 You would want to know about that because I'm
11 not going to limit them under the Schreiber decision
12 solely to that treatment if they can -- because one of
13 the things you're going to be cross-examining them is, I
14 would assume, is, what is your reasoning for this?
15 And then they are going to say whatever they
16 are going to say, "This goes back to 2021 when he had
17 the accident." So it is your deposition.
18 It appears that they are not seeking fees here,
19 which under the code the party taking the expert would
20 have to pay those fees.
21 They are not -- apparently they are giving up
22 their time. At least what I'm hearing from Mr. Rosario,
23 they are giving up their time of 45 minutes for you to
24 get into that information.
25 If you need more time, then you need to let me
26 know. It sounds like you do. And to that extent, the
27 code requires -- I can't change that. The code requires
28 that you pay for the time for that expert.

However, I'm going to point out that any other fees and costs associated with that -- and that's not having to do with the transcript.

You folks have to pay for the transcript. Any other fees associated with a court reporter, that's on Mr. Rosario.

So, for example, the court reporter requires someone to assist him or her with regard to travel or expense associated with that, maybe it's mileage, so forth -- I don't know what reporters charge these days -- then it's on Mr. Rosario.

I have the authority under the CCP to grant requests under 2034.720, Subdivision (d) to condition these depositions on any other terms as may be just, including but not limited to leave to any party opposing the party to -- motion to designate additional expert witnesses or to elicit additional opinions from those previously designated, a continuance for a reasonable period of time, and the awarding of costs and litigation expenses to any party opposing the motion.

So if there are other expenses that are incurred aside from the required ones laid out in the code, then Mr. Rosario is on the hook for those costs and expenses.

MR. REYNA: Your Honor, may I?

THE COURT: Yes.

MR. REYNA: To that point, your Honor, some clarification.

Is Mr. Rosario responsible for paying the defense counsel's attorney fees?

THE COURT: No.

MR. REYNA: Your Honor, another point.

Since the hearing back on February 18th, we haven't yet received any medical records from either of these treaters that are supposed to be deposed.

And Mr. Rosario has scheduled these depositions to take place March 4th, which clearly without any records doesn't provide defense counsel with enough time to prepare for these depositions.

THE COURT: Okay. Let's ask Mr. Rosario.

You're supposed to turn over a file for each of these individuals.

Have you done so yet?

MR. ROSARIO: Your Honor, we provided the defense counsel a booklet with the documents of the treatments that were there.

It's important to note that Dr. Gonzalez was already designated as a treating physician. He's been known by the defense for many, many months. Actually, a couple years now. So he's not a new character on the scene.

The new individual here is Dr. Balbon. All prior records of Dr. Gonzalez are already available. He's been a treating physician. He's not an expert.

The primary purpose I was trying to get at today is that they don't try to redesignate these

1 treating physicians as experts. Thank you very much for
2 clarifying that to the defense.
3 What we wanted to do is we wanted to make sure
4 that the defense had every opportunity to ask the
5 questions that were permissible due to discovery being
6 closed so that way they wouldn't have objection when
7 those individuals came forward with their testimony
8 during trial.
9 We were trying to be considerate in that case,
10 and he was very insightful. And thank you very much for
11 suggesting this to make sure that the testimony cannot
12 be objected by the defense once we get to the trial.
13 This is their opportunity to do that, and it's
14 on them now to tell us what questions they want to ask
15 and how long they want to do it.
16 I mean, imagine if they are going to have
17 something that's within the scope of the law that
18 specifies these are treating physicians. They aren't
19 experts, so you can't challenge them in particular ways.
20 They are entitled to their opinions.
21 THE COURT: Mr. Rosario, what you just said
22 doesn't make any sense at all.
23 No. 1, you need to provide them with the
24 medical records from both doctors now and their files.
25 You need to provide them with their files as
26 soon as possible. If they don't have the files, no
27 deposition can go forward, and they are excluded as
28 witnesses.

No. 2 --

MR. ROSARIO: Your Honor, I filed a subpoena duces tecum.

Can I get their files at the deposition for them?

THE COURT: No, because that will simply delay everything. And I told you that you have to have a date which they are available. Otherwise, the depositions will take place on the 5th, the 6th, the 7th.

If you do not comport with the Code of Civil Procedure on these matters, the witnesses will be excluded.

MR. ROSARIO: I understand, your Honor. I delivered subpoenas to them the day before yesterday, so I will ask them for their charts immediately.

THE COURT: Well, it's not merely their charts. Their notes, their impressions, and everything else that is contained in their medical files.

Whether it's just charts alone or anything else, you must provide those items to Mr. Reyna as soon as possible.

MR. ROSARIO: All right. I will make sure that the responses from them that I will forward and cc, I will forward and cc to the Court my request for those documents from those doctors.

They are inside their computer systems. I don't have ability to get into their computers unless they give me access or export them, so I immediately

have requested those.

THE COURT: Mr. Rosario, today is the 28th.

MR. ROSARIO: Yes, your Honor.

THE COURT: If the lawyers come back from -- who represent defendant in this matter say that's not enough time to have received them on the 3rd in preparation for the 4th, then the deposition, I would assume, is not going forward.

So make sure you get these materials to the defense firm as soon as possible, perhaps by close of business today, so that they have a fair opportunity to review these materials and to be able to move to the 4th.

MR. ROSARIO: Okay, your Honor.

THE COURT: To be very explicit, I will not limit Mr. Reyna or his colleagues in the manner of questions here.

They have a right to question your treating physicians about anything and everything they wish to talk about.

Complaining about past discovery abuses, in your view, falls on deaf ears. All the issues that you're concerned about, you can make objections at trial.

If you think there was some objectionable conduct during discovery, you may do so in a proper fashion. You must make the objection under the Evidence Code.

We are going to address issues regarding the motions in limine on the 10th of March. If you want to bring up any issues with regard to discovery or your grievances about how it was conducted, you can do so on the 10th.

But with regard to your relief that's been requested, the Court finds that none of these have merit at this time, and I'm going to go over them.

But before we do so, I want to make sure that Mr. Reyna has a clarification with respect to the manner in which the depositions of Mr. -- or Dr. Gonzalez and Dr. Balbon is taken.

Any questions, sir?

MR. REYNA: Yes, your Honor.

With respect to the records, Mr. Rosario just said that he only submitted a subpoena, I believe, today or yesterday.

I don't see how we're going to be able to receive medical records in a timely fashion to review them sufficiently and then conduct depositions the week of March 3rd, your Honor.

THE COURT: Mr. Rosario.

MR. ROSARIO: The whole concept of this hearing was just given to me a couple days ago. So we had to file a subpoena in order to get -- the doctors are not, I guess you would say, blocking this.

They want to provide the information. They are offering it. So it's not like we have to force them

like through a duces tecum.

They're going to provide it willingly. So it's going to be provided today to the defense like you asked, your Honor.

MR. REYNA: Your Honor, the Court ordered defendant to produce the records on February 18th. It's been almost two weeks.

This has robbed the defense of the opportunity to properly prepare. And to order that plaintiff only submit those records now, it really prejudices us in every way to prepare for these depositions.

THE COURT: All right. Mr. Rosario, how do you address that? I gave this court order on February 18th. I think you were told that you had to set up the depositions sometime between -- you were supposed to do the exchange on the 21st.

And you are required to -- were required to have a deposition set up sometime during the week of the 24th through March 7th.

The ruling being that the deposition, if you couldn't arrange it between the 24th and the 4th, then the depositions would take place on the 5th, 6th, or 7th.

MR. ROSARIO: That's fair. I get it.

Your Honor, I have a question then for the Court. When a doctor is a treating doctor, he has a chart, and then he also has his memory and his opinion and his experience.

If the chart isn't available, and they say, "Okay. We're going to exclude the documents," the testimony is still valid; correct?

A person doesn't have to have paperwork to make a testimony; is that correct?

THE COURT: That's correct. That's correct. They can testify.

MR. ROSARIO: Okay. So if the defense is saying that we can't use the charts from my doctors, then the doctors can just relate the charts from the best of their memory since they are treating physicians.

So if the defense doesn't want them, they are insisting and saying that we can't submit them, I -- I don't see why they would want to do that.

The doctor is going to be able to speak directly to them. They can have their own notes. They just won't be submittable to the jury; is that right, your Honor?

THE COURT: Wait a minute, they can have their own notes. If they don't turn the notes over to Mr. Reyna and his colleagues, then they won't be able to testify from those notes.

MR. ROSARIO: I thought that a witness is allowed to have their own writings for being able to recall that as long as it's not shown to the jury; is that correct?

I mean, I thought a witness testimony, they could come in and say, "I have my chart. I'm going to

read it directly so I can refresh my memory," but that paper cannot go to the jury for inspection. I thought that's how it worked.

THE COURT: Mr. Reyna.

MR. REYNA: Your Honor, plaintiff is essentially asking for legal advice from the Court, which is inappropriate, first of all.

Second of all, even if we were to receive these records in the next hour, it would still not provide us with enough time to prepare for these depositions the week of March 3rd.

And as such, we respectfully request the Court to reconsider even allowing these depositions to take place in the first place and allow his treating physicians to testify to the conditions that arose January 27th on the first day of trial. At this rate there's just not enough time.

THE COURT: Mr. Rosario, what have you done between February 18th and today's date to arrange for the production of these records from your treating physicians?

MR. ROSARIO: There's a lot, your Honor. We have an entire log of all the requests and everything. The doctors are still compiling them.

My treating doctor, Dr. Gonzalez, had to wait for information to come back from the neurosurgeon -- neurology and several other groups.

He just got them the other day when I got to

1 see him, and we made every effort in all good faith.
2 Mr. Sobati can speak to that, my wife, everyone. I
3 provided all of the records of my visits to the doctors.
4 It just takes time for it to go through the
5 system. I'm surprised that they don't want to see those
6 records.
7 But as you stated, the doctors will still be
8 fully capable of speaking to their experience and their
9 first-hand knowledge of treating me.
10 So if they don't want to enter the charts,
11 that's very difficult for me, but I believe that my
12 doctors will be able to testify to my treatment during
13 the trial, and they would have to cross-examine, as you
14 stated.
15 MR. REYNA: Your Honor, if I may.
16 THE COURT: Yes.
17 MR. REYNA: Mr. Rosario continuously says that
18 we don't want to see records. We're literally telling
19 the Court that we haven't had the opportunity to even
20 get a single record of any of these treaters to review
21 in preparation for the deposition.
22 And Mr. Rosario just said that one of his
23 treating physicians is compiling records implying that
24 there are multiple records here that we will need to
25 review and that he just got the records, meaning,
26 implying, within the last couple days.
27 This is just -- honestly, the plaintiff has
28 already violated the Court's orders with regard to these

1 treater depositions by not providing us with the records
2 to sufficiently prepare for these depositions, your
3 Honor.
4 MR. ROSARIO: Your Honor, the discovery wasn't
5 reopened, so I was expressing that the defense was going
6 to review them. You told me that the things were
7 privileged. You said that specifically at our last
8 hearing.
9 So I'm unaware of what the defense is entitled
10 to see. I just know that you told me to get the doctors
11 into a deposition. I threw in there that my doctors
12 should possibly bring their charts.
13 The information I provided to you, your Honor,
14 is in your book, which includes the information there.
15 It was printed for you.
16 And so if the defense, if you say that it's --
17 that the defense should receive those documents, I
18 provided them to the Court of the prior -- all of the
19 records since the 18th to you, your Honor. They are
20 printed there. You told me they were protected, so --
21 THE COURT: You misunderstood, clearly.
22 MR. ROSARIO: Okay.
23 THE COURT: If your medical record -- if you're
24 putting your medical condition before the trier of fact,
25 then you have essentially waived any right to the
26 medical records which pertain to your medical condition.
27 I've never said it's subject to doctor-patient privilege
28 of any type.

Now, I may have said that, and you misunderstood, or I may have misunderstood and said something. I'm not going to get into that.

I'm making it very clear, because I think I told your other assistant, Mr. Keegan, when he was asked -- telling me that some of the information about why you were absent was subject to HIPAA, I told him -- and I think Mr. Reyna was there.

I told him that that is not a HIPAA concern when you put your medical condition in play before the trier of fact, before a judge. If it's being litigated, you waive that privilege.

MR. ROSARIO: That's where my confusion was, your Honor, because if I give it to him --

THE COURT: Mr. Rosario, I have been extremely patient with regard to your inability to follow the Code of Civil Procedure.

Now, you haven't done so, and I'm going to give you some opportunities to cure your problems, but you need to follow the rules. Your exchange that was given to me was wholly improper under the Code of Civil Procedure.

MR. ROSARIO: Okay. Your Honor, I apologize.

This is the question. If I give them the document on the 18th, would they say that it was outside of discovery? Does that --

THE COURT: No.

MR. ROSARIO: I'm confused. If I give it to

1 them --
2 THE COURT: I've ordered those documents. They
3 are part of the file for your doctors that need to be
4 turned over as part of the deposition process.
5 They need to conduct their examination of each
6 expert or -- not expert but each treating physician in
7 this case so that they can be prepared to deal with any
8 of your concerns that you've expressed about your
9 medical condition from January 27th to the current date,
10 February 28th.
11 MR. ROSARIO: Oh, okay. I didn't understand.
12 I thought that if I gave it to them, it was outside of
13 discovery, and then it wouldn't be submissible.
14 Okay. So if I give it to them, then it is
15 submissible. I was completely confused about whether
16 discovery --
17 THE COURT: Sir, I'm not saying it's admissible
18 or otherwise. It is their right to conduct discovery in
19 a limited fashion on the materials that they receive
20 from the doctors' files.
21 MR. ROSARIO: Okay. I can forward them exactly
22 what I forwarded to you, your Honor, and gave to you on
23 the 19th. There's no difference.
24 And then there's the new chart that's coming
25 from Dr. Balbon today. I can give that all to them
26 today.
27 MR. REYNA: Your Honor.
28 THE COURT: Yes, sir.

1 MR. REYNA: That doesn't change the fact that
2 we're still going to be prejudiced in preparation for
3 these depositions that have been ordered to take place
4 March 3rd.
5 And during the last hearing that took place on
6 February 18th, the Court clearly stated to Mr. Rosario,
7 who was present in court, that if he were to put any
8 sort of damages over his health into controversy, that
9 he has waived his privilege to any sort of medical
10 privacy associated with those records.
11 And Mr. Rosario expressed understanding at that
12 hearing, your Honor, and then still almost two weeks
13 later hasn't provided a single document which provides
14 any of the treatment that he's received from these
15 treaters.
16 Respectfully, we request that the Court not
17 allow that these treaters provide any testimony.
18 MR. ROSARIO: Your Honor, there's a book in
19 front of you that contains all of that. I gave it to
20 the Court.
21 MR. REYNA: Your Honor, Mr. Rosario
22 specifically said in open court that those are just
23 notes. They are not medical treatment records.
24 There's nothing in there that we can use for
25 the deposition that would provide any substantive
26 information, your Honor.
27 MR. SOBATI: Your Honor, if I may in regards to
28 the records, just factually. I have been Mr. Rosario's

1 medical advocate and helping him get all his treatment
2 and otherwise.
3 I do know for a fact that some of these records
4 in particular with Dr. Balbon haven't been generated
5 yet.
6 Statement of fact, the timeline with the modern
7 medical system just doesn't align, is the easiest way to
8 put it, in that, you know, even with urgency and
9 requests for expedition, that they are limited by their
10 systems.
11 And so we -- as Mr. Rosario said, we are
12 waiting on Dr. Balbon's report, as we have been, and
13 haven't had any other tools other than our requests in
14 the past to get those records.
15 Dr. Gonzalez has been his treating physician
16 for, I believe, in excess of two years now. So those
17 are relatively current.
18 But to Mr. Rosario's point, all the
19 specialists, all those reports are still coming back
20 even as we speak. He even has medical appointments. So
21 I would just like to inform the Court of that.
22 MR. ROSARIO: This is why we -- thank you,
23 Karim.
24 This is why we asked for the continuance from
25 the defense so that way they could get this information.
26 And the point was, is that it -- it goes in.
27 I could have started sending little pieces here
28 and there, but it would have been incomplete. My effort

1 was to get it to them by that time.
2 Since we're talking about treating physicians,
3 the rules of expert witness type of discovery or, you
4 know, essentially giving them this lead time to look at
5 it doesn't apply because they aren't experts.
6 So they don't get to go over there and say,
7 "Hey, you're not allowed to have an opinion." So if
8 they give him my report and say, "This is my opinion,"
9 that's no different than them delivering it verbally.
10 So the defense really doesn't have an argument
11 against something that a treating physician is going to
12 be able to verbalize just as easily.
13 It all comes down to that, is that these aren't
14 experts. He's trying to apply expert testimony
15 discovery and giving him the advance time to look at
16 that when this is simply giving him an opportunity to be
17 able to hear what's going on and make any -- and
18 determine some kind of objection before the trial where
19 the person would have to be completely stricken
20 because -- you know, and say, "Oh, are you a doctor?
21 Have you seen Mr. Rosario?" "Yes." Okay. Then he's
22 in.
23 The defense really can't block that. And if
24 that person has notes that they want to bring at that
25 time, I can't force a doctor to do that. That's their
26 personal opinion notes. Those aren't expert opinions.
27 He's trying to apply expert testimony onto
28 treating physician testimony, and they just don't

compute.

I don't understand how this conversation really is even going other than the fact that if a treating doctor brings his own notes, he's allowed to bring them.

That's what I understand. I don't believe that Mr. Reyna has ground or foundation to be able to object to that.

THE COURT: Mr. Reyna.

MR. REYNA: Thank you, your Honor.

Honestly, I'm not -- I can't comprehend what Mr. Rosario just said over the last 30 seconds, honestly.

But my point is that Mr. Rosario, since the first day of trial back on January 27th, more than a month ago, your Honor, has argued ignorance over and over and over again in light of his status as a pro per plaintiff and now continues to do the same thing here today, your Honor, for a hearing from February 18th saying, "I didn't know better. I didn't know better. I didn't know better."

And now he's prejudicing us of our opportunity to be prepared. At this rate, again, your Honor, we respectfully request that these treaters just not be allowed to provide any testimony, which is in line with the Court's ruling with defendants' Motion in Limine No. 1, which precludes the plaintiff from providing any sort of testimony with regard to either expert or non-retained expert witnesses.

THE COURT: But that ruling stands. The complication, as I've said already many times, is that he absented himself because of illness, which is purportedly tied to the injuries purportedly resulting from the accident in 2021.

I think the law provides that I allow for him to make a tardy filing of these two non-designated expert witnesses.

They are still expert witnesses, sir, but they are non-designated. And the Court has extended every courtesy to Mr. Rosario with respect to Section 2034.720.

The Court has granted leave for Mr. Rosario to submit further information to Mr. Reyna. And that date, as I recall, was to provide further information in the form of an exchange or a statement about what experts, that is his treating physicians who are not designated, to be made available by February 21 regarding the treatment that's taken place from January 27th until today.

I didn't notice this date because this is a date that was requested by the defendant regarding a clarification of the order.

So I'm making a clarification now that you need to understand if they are, in fact, treating physicians, under the Schreiber case the doctors can testify as to issues relating to causation, diagnosis, prognosis, and so forth.

1 However, the burden is on Mr. Rosario to follow
2 the code, which means that he had to provide a name of
3 the doctors, which he has done so.
4 He is supposed to provide the amount of time,
5 which he is trying to limit. The cost associated with
6 the testimony of each health professional, who
7 apparently are willing to do this without a fee.
8 And the Court also told him to set a date. If
9 the date wasn't set by March 5th, 6th, or March 7th, any
10 time between the 21st and March 7th, then the Court will
11 render appropriate relief in this matter, which may
12 include dismissal of the case.
13 The Court hasn't gone that far with that
14 sanction yet. However, I will also make it clear that
15 upon review of the code, the Court did say that
16 plaintiff will be responsible for expenses.
17 But under the code the party taking the
18 deposition is responsible for paying the fees of the
19 non-designated expert or expert.
20 That is no longer an issue. It's moot because
21 the doctors have said that they are willing to do this
22 without a fee.
23 So the question is, now what do we do, because
24 the records by the doctors are not available?
25 Mr. Rosario has had since February 18th to obtain these
26 materials.
27 Defense maintains that receiving the materials,
28 even if it was done today, because they still haven't

been made available to the defense, that there's insufficient time between now and March 4th to prepare for those two depositions.

Given that, what the Court is going to do -- because the Court originally said that we would have motions in limine on the 10th, pick -- start the jury selection on the afternoon of the 11th, and continue through the 12th.

The Court is going to do this: I'm not inclined to extend this but for one more week. We will conduct motions in limine on March 17th.

You will have an extra week to prepare, Mr. Reyna, and you will have to arrange with your doctors for another date to be available for a deposition.

I will not -- although the code says that the party taking the deposition must pay the expert fees, given what's gone on in this case, I'm going to ask the doctors for the same arrangement where defense counsel is not obligated to pay the fees.

If they cannot pay the fees, then you're going to need to come back to me, Mr. Reyna, but I think the code is pretty clear about who has to pay fees before one of these depositions are taken.

Frankly, I think defendants should be taking the deposition. And if you want to know my tentative decision here, you'll be obliged to compensate the non-designated experts for their time.

If you prevail in this case, of course I think there are -- there may be grounds to recover those costs. So I think you need to take it back to them and let them know.

Mr. Rosario, I am emphatic that you ask the doctors to reconsider a day somewhere between the 10th and the 14th, please.

MR. ROSARIO: Yes, sir.

THE COURT: Send an E-mail to Mr. Reyna telling them when they can be available. We are going to start trial on the 17th.

If you do not turn over those files of each doctor within the next three working days -- is March 5th sufficient time, Mr. Reyna, or do you want it earlier?

MR. REYNA: We would like it as soon as possible, your Honor.

THE COURT: Okay. So let's see if we can get those files here as soon as possible. I think I need to put a deadline date. By close of business March 3rd, Monday.

If you don't get those files to Mr. Reyna's office by close of business March 3rd, then the depositions aren't going to go forward.

And if the doctors' depositions don't go forward, they will be excluded from trial because they -- that is defense counsel, and defendant is entitled to have the medical records to examine the doctors before

they testify, period.

You folks need to set up a day anywhere between the 10th and the 14th for a deposition. I have no idea. I think you need to contact each other after the 3rd, after the delivery of the papers, to determine what would be an appropriate date.

If you give -- if the doctors provide a five-foot stack of medical records, then you'll need to come back to me.

But I am not here on the 13th and the 14th. I am expecting the trial to go forward on the 17th. Motions in limine will be heard on March 17th.

Mr. Rosario, you must read the Code of Civil Procedure. Do not enter areas, address areas which simply -- I read your protective order.

Much of the material that you are citing to has nothing to do with a deposition, but everything to do with trial.

Your grievances about discovery abuses and so forth are not a concern for the Court. The only concern I have is whether you are going to be ready on the 17th.

When you announced "ready" at the beginning of this year for trial, the Court expected you to be here ready to go.

MR. ROSARIO: Yes, your Honor. I acknowledge that was incorrect. I misspoke, and I wasn't ready. I humbly apologize for that, these delays for you, sir.

THE COURT: Well, sir, this is an aside, but

I've had to pass up multiple cases simply to address your problems. I don't appreciate that.

There are many cases that are ready to go in this courthouse, and I have had to delay them simply to address your concerns.

So I expect on the 17th if those depositions aren't taken, then I expect defendant to make a reasonable effort.

And I'm going to emphasize "reasonable effort" to schedule these depositions, but if your doctors aren't available, they are not going to be allowed to testify in this case.

MR. ROSARIO: Your Honor, Dr. Renee was already provided before in the list. The new one is Dr. Balbon. He's the new one.

THE COURT: I don't know whether -- I think you meant Dr. Gonzalez.

MR. ROSARIO: Yeah.

THE COURT: But I don't know. I don't have the history of this case in front of me.

MR. ROSARIO: Okay.

THE COURT: I don't monitor each and every case that comes to me for trial. By the time it reaches Department 504, discovery is supposed to be complete, and only for exceptional circumstances will I delay the case.

But the case is going forward on March 17th absolutely unless there is, again, some good cause

reason, exceptional circumstance, where I will have to put the matter off.

But I am not continuing this case. I have read and reviewed the relief requested in your motion for protective order. At this time each and every one of your requests is denied without prejudice.

You can make your objections at trial if you believe they are pertinent and relevant. The Court will rule on each and every one of your objections during the trial. Please do not send multiple copies of documents to the courtroom at the last minute.

MR. ROSARIO: All right. Yes, sir.

Would you like my -- then I guess what it is is a supplemental witness list and my supplemental exhibit list then this weekend, your Honor?

THE COURT: Mr. Reyna.

MR. REYNA: I'm not sure what supplemental witness list he's referring to, your Honor, if he's talking about the two treaters that are supposed to be deposed.

I mean, can he clarify?

THE COURT: Who is on your supplemental list?

MR. ROSARIO: Like you clearly stated, you're not keeping track of that. There's the doctors. There's also --

THE COURT: That's why I'm asking.

Who is on your list?

MR. ROSARIO: I have the police officers who

1 were on this case. There's my two treating doctors.
2 There is my former employees, business partners.
3 There was a -- there's about two dozen people
4 on my list. I'm not going to go over all of them right
5 now, but I can provide a supplemental one updated for
6 that and my exhibits like right away.
7 THE COURT: Okay. So this is what I want you
8 to do: Do not send it to the Court. Please exchange
9 that with Mr. Reyna and his colleagues.
10 MR. ROSARIO: Okay.
11 MR. REYNA: Your Honor, if I may.
12 THE COURT: I will expect on the 17th of March
13 a list of witnesses that you expect to be mentioned in
14 the case or discussed or referred to.
15 This is for the purpose of the jury to
16 determine whether they know anybody in the case that's
17 going to be referenced. This doesn't mean that these
18 witnesses will be called.
19 However, if Mr. Reyna or Mr. Rosario, you
20 choose to exclude some of these witnesses for relevance
21 reasons, I will certainly consider another motion in
22 limine.
23 MR. ROSARIO: As for exhibits, your Honor.
24 THE COURT: What's your question?
25 MR. ROSARIO: Do you want me to send these
26 immediately also to the defense also and handle that
27 with them?
28 THE COURT: That's up to -- yeah, if you want

to -- if you want to send materials over to Mr. Reyna letting them know what exhibits you're going to use, you're welcome to do so.

That's between the parties. I don't have any say in what is going to be presented in the courtroom. That's between the parties.

But you should have those exhibits enumerated starting with 100 and going through to the end of your exhibits.

And, Mr. Reyna, I don't know how many exhibits he's going to have, but you might start at 500, or you can start at 1,000, it's really up to you, as a defense exhibit. You can let us know on the 17th.

MR. REYNA: Your Honor, are these supposedly the exhibits that plaintiff has already produced?

THE COURT: Well, it's not exhibits.

Are you talking about discovery or exhibits to be -- sought to be admitted at trial?

MR. REYNA: Well, I just wanted to make sure that Mr. Rosario wasn't going to produce anything that he didn't previously produce in discovery and, I guess, it's limited to just what's going to be in the trial.

MR. ROSARIO: I --

THE COURT: Right. I think if he -- excuse me, Mr. Rosario. I think if he has exhibits that he seeks to have admitted at trial, and he's going to tell you what they are, then my expectation would be that you would cross-check to see whether that material has been

actually produced.

So, for example, if the medical records for Dr. Balbon and Dr. Gonzalez happen to show up in this list of exhibits and they were not produced as part of the deposition, then it's an easy exclusion for the Court, that is if you make the motion to exclude or you make an objection.

"Judge, this wasn't produced at the deposition of Dr. Gonzalez or of Dr. Balbon." All right. They are excluded.

"They weren't produced during or before the deposition, and we ask the Court to exclude those materials." It's as straightforward as that.

Mr. Rosario, something else?

MR. ROSARIO: Yes, your Honor.

I asked clearly in an E-mail for the defense to provide what they have, and every single time I show something, they say that they never got it. So we keep on going back to this.

And I'm asking that the defense be transparent about what they have so that way I don't send things over that they say they've never seen before. They keep on pulling this over and over and over.

And I would just like to say, "Send me what you do have that you know that you've been disclosed." And then what we can do is then we can establish that through a meet and confer and understand the discrepancy, but he refuses to do that.

I keep on asking -- this is multiple times. I say, "Please tell me what you have," because I show up with something, and he goes, "Oh, we never got that."

And then I have to go and spend all this time litigating that he did have it like we just did for the 911 call, which they've had -- the defense has had since January 2024.

THE COURT: Let's not go over old territory, Mr. Rosario.

Your obligation, your role here, is to choose whatever documents you wish to have admitted at trial. That's simply it.

You tell them what it is. And if they say they didn't receive it, then the Court will resolve the issue.

However, I don't really want to hear about your complaints about the other side. They have an ethical obligation to tell you that they don't have the materials.

Whether their predecessor law firm gave the materials to them or not isn't really an issue for the Court currently.

To the extent that they didn't receive the 911 call or anything else that they say they didn't have it, they don't have it.

If they can -- I'm not going to question a lawyer's remarks regarding what they have and don't have.

1 They are an officer of the Court, and they are
2 supposed to conduct themselves appropriately before the
3 Court. If they are not, there are other sanctions that
4 they could suffer here.
5 So far I haven't heard or seen anything on the
6 part of the current law firm which tells me that they
7 have conducted themselves improperly.
8 I want to make that very clear. Your
9 grievances or complaints about what happened are a
10 function of the management of your case.
11 Frankly, I look at the materials that you
12 submitted. I have a very difficult time trying to
13 understand what you are trying to accomplish with your
14 submissions.
15 They are just thrusted in front of the Court
16 and say, "Here, this is what I have." And then there's
17 a series of objections, and I know you're not a lawyer,
18 but there are a series of objections that the Court
19 considers, and in each case many of your objectives
20 conflict with what's done at the trial.
21 Many of the things that you want to have occur
22 are simply things that you will have to make objections
23 at trial.
24 Much of the pretrial discovery issues that
25 you've run into have simply passed now because the
26 discovery cutoff has occurred.
27 If they don't have documents, or if you submit
28 to them what you're going to seek to have admitted in

this case, and they say they don't have it, it's like -- it's required of you to send the documents over.

Otherwise, I won't allow them in. And it works for them too. If Mr. Reyna and his firm have documents that they plan to seek admission for, they should be -- and you don't have them, then you should ask for them.

But, frankly, we don't try cases by ambush. That is the whole goal. So if you're at trial and you're in front of a jury, the proper way of introducing an item of evidence is to show the other side the item or the document or the exhibit.

And then once they say, "Yes, we have it," then you can show it to the witness. That's how it works. So much of your issues about, "I never got this. I never got that," or, "I'm demanding that they show me this and show me that," that gets taken care of at trial. Although it makes the trial much longer.

If you're going to exchange what exhibits you have, then I would encourage you to do so. I don't want to be sitting up here saying -- having to resolve disputes over what you did or didn't have as a result of the discovery process.

MR. ROSARIO: I mean, I understand what you're saying. If I was in the defense's position, you know, of course I could overlook my duty to preserve and Rule 3.4(a) of the professional conduct of making sure that I have a document that is substantive to a case.

And if that's where we're at where he can just

1 continuously just say, "Oh, I never got anything," you
2 have to continuously prove it, there's a point that
3 after my proof of services and all the discovery -- I
4 mean, as a defense attorney I could do the same thing.
5 I could say, "Oh, yeah. Well, I never got it,
6 and you've got to keep on proving it until I get" --
7 have to spend huge amount of resources to litigate that
8 they were even given it in the first place. We're kind
9 of back to this behavior of the defense where they are
10 saying --
11 THE COURT: Mr. Rosario, let me interrupt you.
12 If you have a proof of service of an
13 interrogatory or you have a proof of service of a
14 request for production of documents or you have a proof
15 of service for a form interrogatory or some proof of
16 service that it was given to them, then they can't
17 complain they didn't get it. It's as simple as that.
18 Mr. Reyna, anything else?
19 MR. REYNA: Yes, your Honor.
20 I would like to bring to the Court's attention
21 the lack of decorum and respect that plaintiff has
22 exhibited to defense counsel throughout this litigation
23 since he became a pro per litigant.
24 And most recent in his E-mail to the Court back
25 on Sunday at 10:49 p.m. in which he refers to me as
26 "Miss" twice in the E-mail, "Ms. Alberta Reyna," by
27 misspelling my name.
28 And then also goes out of his way to insult

Ms. Priya Navaratnasingham by typing the letters, r-a-t, in all capitals to emphasize the word "rat" in her name.

This display of blatant disrespect is not only offensive but egregious concerning that he would copy the Court in this E-mail.

And we have previously outlined these concerns relating to plaintiff's disrespect in our Motion in Limine No. 8 and the supplement thereto.

THE COURT: I haven't seen those E-mails, but, Mr. Rosario, Mr. Sobati, you're going to have to monitor because it doesn't seem as if Mr. Rosario can exercise any self-control, at least according to defense counsel.

You're going to have to monitor his remarks. If you fail to do so, Mr. Rosario, there are other remedies, and there are consequences to your correspondence, which will not be something you want to have in front of a jury.

Because if a document is being moved in and there's a correspondence attached to it that shows a lack of decorum or courtesy, it may very well end up in front of the jury.

I'm not saying I'm going to do that, but I'm cautioning you now to exercise good judgment, and -- I won't say "professionalism," but good judgment and good manners.

MR. ROSARIO: Yes, your Honor.

THE COURT: Mr. Rosario, please address your opposing counsel in an appropriate fashion. If they

raise that in front of the Court, I will sanction you.

And there's all kinds of ways of sanctioning you. There are monetary sanctions, and there are other sanctions which may make it very well embarrassing for you.

MR. ROSARIO: Yes, your Honor.

THE COURT: I don't want you to be doing that.

MR. ROSARIO: Your Honor, I use voice recognition. I've been having a hard time reading and typing, so I use voice recognition, so I speak from my knowledge.

And I can't really type very well because I've been having difficulty with typing. My vision goes in and out. So the accommodation I've asked to be able to use voice typing.

Secondly, my thalamus was damaged. Your Honor, I understand that he might feel that my reaction to him is based upon some kind of emotional thing, but I have a biological damage to my thalamus, which causes these emotional type of things as a result of the defendant's negligence.

If it wasn't for him hitting me, my behavior very likely wouldn't have been so severe. And I almost died from this man's actions. So I am a little upset.

I will try to control myself. I can only guarantee that my voice recognition gets it as close as I can. And I apologize, sometimes it's hard for me to read when I -- to do the proofreading and late at night.

1 You're right, I shouldn't send E-mails late at
2 night, I apologize. Sometimes my sleep schedule is
3 different because of the pain that I'm constantly going
4 through.
5 So I'm adjusting as I can in the light of the
6 severe damages that I currently have, and I'm going to
7 try and make my best effort to make sure that they are
8 proofread by other people before they are sent out. I
9 apologize.
10 THE COURT: Mr. Rosario, this is a warning.
11 You will be cited for contempt. Contempt citation is up
12 to $1,000 fine. Again, this is a warning.
13 We will have a separate hearing independent of
14 this case to address your remarks and your lack of
15 decorum in this case.
16 Mr. Sobati, I encourage you and Mr. Keegan to
17 review every one of his E-mails to opposing counsel.
18 MR. SOBATI: Yes, your Honor.
19 THE COURT: If I find out that you are still
20 issuing these E-mails or these messages to Mr. Reyna and
21 his colleagues, I will order a hearing to cite you for
22 contempt. And I am warning you, it's up to $1,000 fine
23 for such misjudgements.
24 Do you understand me?
25 MR. ROSARIO: Yes, your Honor.
26 MR. SOBATI: Yes, your Honor.
27 THE COURT: Anything else, Mr. Reyna?
28 MR. REYNA: Just one point of clarification,

your Honor.

With regard to the costs for the deposition, including court reporters and such, that will be covered by the plaintiff?

THE COURT: Well, again, litigation costs and expenses other than what is required of defense in 2034.430 shall be borne by Mr. Rosario.

If it's a transcript, you folks are going to have to pay for that, but outside of that any other litigation costs and expenses will be borne by Mr. Rosario.

Attorney's fees, there's nothing in here that the Court is willing to grant with regard to attorney's fees. Even though they mention litigation expense, the Court is not going to impose that upon Mr. Rosario.

MR. REYNA: Your Honor, do these fees have to be paid before the deposition moves forward?

THE COURT: Isn't that what you typically do?

MR. REYNA: I just want to confirm for plaintiff's sake.

MR. SOBATI: Your Honor, just as -- I've been dealing with this matter with the well-reputed firm that has been established in the Bay Area for over four decades, Uccelli & Associates, their procedure is that they have our materials for payment on file.

They charge the card 24 hours prior to the deposition. At the same time they circulate a Zoom link. That is their procedure.

THE COURT: The problem is they are not part of this case, sir.

Mr. Reyna.

MR. REYNA: Your Honor, if we're going to be the one taking the deposition, then we'd like to use our services that we are on contract to use.

So I think it's appropriate for us to forward the invoices for that -- for those costs and then have that payment be relayed before the deposition can move forward.

MR. ROSARIO: Your Honor, that's going to cause an undue prejudice to me. I don't know what type of service or what they are going to charge me.

I think that an appropriate service that can be defined since I've been asked to retain it, it's only fair that I retain one that's affordable to me.

And the defense, you know, demanding that I use their service at the price that -- they are a big law firm -- to pay is unacceptable.

They can get something that's $6,000, and I wouldn't be able to pay that, your Honor. I think that any certified reporter should be acceptable by the court, and Mr. Reyna insisting that I use his is silly.

MR. REYNA: Your Honor, it's within the purview of the noticing party, which has been identified as the defense, to use the reporting services that they choose.

THE COURT: Agreed.

Mr. Rosario, again, I've extended every

courtesy. Frankly, I'm not certain that you would fall under 2034.720.

You didn't even make a motion. The Court on its own motion, given the circumstances, are allowing you -- the Court is allowing you to put on these two tardy witnesses. You have very little in your wheelhouse right now to argue anything otherwise.

Mr. Reyna is the opposing party, and, frankly, he has, because he is paying -- frankly, he's paying the fees of the doctors.

You should find out what the fees are, if at all, and then allow or tell Mr. Reyna what they are asking for. You have to set a date and ask them how much they are going to charge.

And, again, part of this is Mr. Reyna has to look at the documentation behind this case. If he says two hours, then he's going to pay for two hours of that doctor's time.

Now, if you lose this case, there may be a recovery under various statutes for those costs, just understand that. This is an undertaking here.

So if you want to put these experts on, fine, but you've got to make them available. You've got to provide the file and do everything else that's required by the code.

Has there been a 998 offer in this matter?

MR. ROSARIO: Yeah, there was in 2022, your Honor -- excuse me, there was a 998 request. They

denied it back in 2022.

THE COURT: Okay. I don't want to know the amount. I just want to know, Mr. Reyna, has there been one made?

MR. REYNA: Yes, your Honor. There's been one made by the defense.

THE COURT: Recently?

MR. REYNA: Within the last six months, your Honor.

MR. ROSARIO: Your Honor, they had two years of opportunity to --

THE COURT: Sir, I told you I don't want to know what the amount is or the details. All I need to know is whether there was one made in the last six months.

It does make a difference. If it was made two years ago, that's one thing. But if there was one made recently to you personally, that does tell me something about how the case will be handled should one party prevail or not.

Okay?

MR. REYNA: One moment, your Honor, if I may.

Can we set a date for when payment needs to be relayed to defense counsel for the reporter costs?

THE COURT: I'm sorry, I missed that.

A date for reporter costs?

MR. REYNA: Yeah. Can we set a date for when plaintiff is responsible for providing us with the costs

associated with the reporters for the depositions?

THE COURT: This is an advance fee?

MR. REYNA: To my understanding, it is, your Honor.

THE COURT: Okay.

MR. ROSARIO: So, again, we're saying that he gets to pick the reporter. He gets to pick the price that we're going to pay. He's going to send that to us. I thought that we are allowed to -- we just needed a reporter in general.

I'm still confused why he's establishing the reporter other than the fact that a reporter is required. I agree with that.

But him establishing the pricing and whatever reporter that he goes to and the bill is -- you're essentially submitting me to have to pay whatever service that he gets.

MR. REYNA: Your Honor, I have no control over the prices. I just use the service.

MR. ROSARIO: Well, your Honor, any comparable service that's affordable by -- for me should be acceptable if the Court accepts the reporter.

Again, we're kind of back to the same thing is, essentially, I'm susceptible to whichever one he decides.

If he negotiates a price ahead of time, whatever. He can very well just say, "Let's go find the most expensive one and submit Mr. Rosario to that," when

any reporter is acceptable.

THE COURT: Sir, let me read this to you: Section 2034.720, which relates to a tardy expert witness.

The order which grants the allowance of a tardy expert witness, which is and concerns your two treating physicians, states in pertinent part, Subdivision (d).

2034.720, Subdivision (d) states in pertinent part, "The order is conditioned on the moving party making the expert available immediately for a deposition."

You are trying to do that right now. You have met that part of the subdivision. And I want to emphasize, quote, On any other terms as may be just, including but not limited to leave to any party opposing the motion to designate additional expert witnesses or to elicit additional opinions from those previously designated a continuance of the trial for a reasonable period of time" -- which the Court declines to do so -- "and emphatically the awarding of costs and litigation expenses to any party opposing the motion."

Mr. Reyna's firm opposes this sua sponte decision by the Court to do so. I would gather that you have no opposition because you want these two treating physicians at trial.

So what is fair and just in this matter is that you foot the bill for the reporter. That is a litigation expense.

Mr. Reyna said he has no control over what the invoicing looks like, but you need to get back to Mr. Reyna about a date when those fees can be advanced.

I think Mr. Reyna is going to go find out how much it's going to cost, but he can't do that until he has the doctors' files in front of him.

He won't be able to predict how long it's going to take to get through the deposition until he looks at those papers. He gets the papers. He figures he's going to take two-and-a-half hours. That's the cost.

MR. ROSARIO: These are fact witnesses, not retained or any type of expert, so I understand.

THE COURT: I'm not getting into that, sir. There are certain rules for taking depositions of these witnesses. Mr. Reyna knows them.

And if he takes a deposition and he gets into other areas which are related to the treating physician's work, be it his experience, they can do that, that is defense counsel can elicit questions about his background, his experience, and so forth.

These are qualifications for the expert that he's entitled to get into. The question for any deposition is whether or not the questions lead to evidence that's reasonably calculated to lead to admissible evidence. It's not what you think is right or wrong.

At trial, sir, you will be able to object based on relevance, but defense has the right, and you do too,

to get into areas that will be reasonably calculated to lead to admissible evidence in this case.

So if he wants to ask a question about something, he may be permitted. Your requests in your protective order to limit the kinds of questions here are not permitted under our rules of discovery.

Anything else?

MR. REYNA: Just to clarify, your Honor.

So the fees will have to be paid by plaintiff prior to the deposition, the reporter costs?

THE COURT: Yes, yes.

MR. REYNA: Thank you.

MR. SOBATI: Your Honor, if I may, please, just in regards to having spent several hours on the phone with multiple deposition companies, including Esquire Solutions, who doesn't take pro se or pro per clients anymore whatsoever.

None of them were able to give me an estimate, including Esquire, who I'm not sure what service Mr. Reyna is referring to.

But regardless of any of them, none of them were able to give me any type of estimate because they said they don't know how long counsel will be taking for these depositions.

So not a single firm would provide even a basic estimate. We have no idea what's to be discussed, what questions are to be asked.

THE COURT: Mr. Sobati, I just spent the last

15 minutes explaining how this works. I wouldn't be able to estimate how long the deposition would take.

Only Mr. Reyna can do that after he's had an opportunity to look at the paperwork, the files from each doctor. Then he can make an estimate.

He can't do that right now because he doesn't have the papers that Mr. Rosario was supposed to provide to him.

MR. SOBATI: Yes, your Honor.

THE COURT: Listen carefully, I'm going to expect that you follow what I tell you is required of everyone in this case.

All right. We're starting on the 17th. If you cannot get this squared away, the trial is going to go forward.

If you can't take a -- if Mr. Reyna cannot take a deposition of these doctors because they are unavailable, they will be excluded.

Make sure you get their files in front of Mr. Reyna by Monday, March 3rd, close of business.

MR. SOBATI: Yes, your Honor.

MR. REYNA: Your Honor, would the Court like us to address orders for the Court's signature?

THE COURT: Sure. If you want to provide a written order, the Court will review it. Please provide it in Word. Please copy Mr. Rosario so that he can approve as to form.

If he doesn't approve as to form, I will review

the documents, provide it in Word format, and send it to Department 504.

MR. REYNA: Thank you, your Honor.

THE COURT: We're adjourned.

(PROCEEDINGS CONCLUDED)

REPORTER'S CERTIFICATE

STATE OF CALIFORNIA)
)SS.
COUNTY OF SONOMA)

I, JAIME N. PLY, CSR 13323, a Certified Shorthand Reporter in and for the State of California, do hereby certify that the foregoing transcript, consisting of pages 1 through 69, inclusive, is a true and correct transcript of my shorthand notes, and is a full, true, and correct statement of the proceedings had in said cause.

Dated this 4th day of March, 2025.

JAIME N. PLY, CSR #13323

JAIME N. PLY, CSR #13323

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